

REQUEST FOR PROPOSALS CONSULTING SERVICES



for

Project Management Consultant (PMC)

RFP No: APDCL/CGM (NRE)/NRE-125/2023-24

Project Name:

“ASSAM SOLAR PROJECT”

(A 1000 MWp (750MWac) Grid Connected solar project in Karbi Anglong District of Assam,
under “MUKHYA MANTRI SAURO SHAKTI PROKOLPO ”)

Project Number: TBP



Client	:	Assam Power Distribution Company Ltd
(APDCL)		
Country	:	India
Date Issued	:	24th June 2024

Abbreviations

ADB	Asian Development Bank
APDCL	Assam Power Distribution Company Limited
BTP	biodata technical proposal
CMS	consultant management system
CQS	consultants' qualifications selection
CSC	consultant selection committee
CSRN	consulting services recruitment notice
CV	curriculum vitae
EA	executing agency
EOI	expression of interest
ETP	evaluated total price
FBS	fixed-budget selection
FTP	full technical proposal
ICS	individual consultants selection
LCS	least-cost selection
MDB	multilateral development bank
OAI	Office of Anticorruption and Integrity
PES	personnel evaluation sheet
QBS	quality-based selection
QCBS	quality- and cost-based selection
RFP	request for proposal
SES	summary evaluation sheet
SRFP	standard request for proposal
SSS	single-source selection or direct contracting
STP	simplified technical proposal
TOR	terms of reference
UN	United Nations

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Section 1. Letter of Invitation

Consulting Services

Name of Assignment : Project Management Consultant (PMC) for ASSAM SOLAR PROJECT

RFP Ref No. : APDCL/CGM (NRE)/NRE-125/2023-24/___ Dtd 24/06/2024

Country : INDIA

Date of issue : 24th June 2024

[INSERT: NAME AND ADDRESS OF CONSULTANT. IN CASE OF A JOINT VENTURE (JV), FULL NAME OF THE JV AND THE NAMES OF EACH MEMBER AS IN THE SUBMITTED EXPRESSION OF INTEREST SHALL BE USED]

Dear Mr. /Ms.:

1. The **Government of India** (hereinafter called "Recipient") has applied for financing from the **Asian Development Bank** (the "Bank") in the form of a "loan" (hereinafter called "loan") towards the cost of implementing the Assam Solar Project. This is a 1000 MWp (750MWac) Grid Connected solar project in Karbi Anglong District of Assam, under "MUKHYA MANTRI SAURO SHAKTI PROKOLPO".

Assam Power Distribution Company Limited (APDCL), an implementing agency of the Recipient, hereinafter referred to as the Client, intends to apply a portion of the proceeds of this loan to eligible payments under the contract for which this Request for Proposals is issued.

Payments by the Bank will be made only at the request of the Government of India and upon approval by the Bank, and will be subject, in all respects, to the terms and conditions of the loan agreement. The loan agreement prohibits a withdrawal from the loan account for the purpose of any payment to persons or entities, or for any import of goods, if such payment or import, to the knowledge of the Bank, is prohibited by a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations. No party other than the Recipient shall derive any rights from the loan agreement or have any claims to the proceeds of the loan.

2. The Client now invites proposals to provide the following consulting services (hereinafter called "Services"): **Consulting Services for Project Implementation and Management Support.**

More details on the Services are provided in the Terms of Reference (Section 7).

3. This Request for Proposals (RFP) has been addressed to the following shortlisted consultants:

No.	Name of Consultant	Country of Incorporation	Nature of Association
1	<i>Tractebel Engineering Private Limited with JV Pricewaterhousecoopers Pvt. Ltd. & ES Safeguards Compliance Services Private Limited</i>	<i>India</i>	<i>Joint Venture</i>
2	<i>AFRY Switzerland Ltd</i>	<i>Switzerland</i>	<i>Solo Entity</i>
3	<i>Técnica y Proyectos S.A</i>	<i>Spain</i>	<i>Solo Entity</i>
4	<i>OCA Global Consulting and Technical Advisory Services, S.L.U. with JV decon international GmbH & SgurrEnergy India Pvt Ltd</i>	<i>OCA Global Consulting and Technical Advisory Services, S.L.U: Spain JV decon international GmbH: Germany SgurrEnergy India Pvt Ltd: India</i>	<i>Joint Venture</i>
5	<i>SMEC International Pty Ltd with JV SMEC (India) Pvt. Limited & SURBANA JURONG INFRASTRUCTURE PTE. LTD</i>	<i>SMEC International Pty Ltd: Australia SMEC (India) Pvt. Limited: India Surbana Jurong Infrastructure PTE. Ltd: Singapore</i>	<i>Joint Venture</i>
6	<i>RODIC Consultants Pvt. Ltd. with JV ARTELIA & Artelia Consulting Engineers Limited</i>	<i>RODIC Consultants Pvt. Ltd: India ARTELIA: France Artelia Consulting Engineers Limited: India</i>	<i>Joint Venture</i>
7	<i>Agua y Estructuras S.A. with JV Dohwa Engineering Co., Ltd</i>	<i>Agua y Estructuras S.A: Spain Dohwa Engineering Co., Ltd: South Korea</i>	<i>Joint Venture</i>
8	<i>Fichtner Consulting Engineers (India) Private Limited with JV Fichtner GmbH & Co. KG, Deloitte Touche Tohmatsu India LLP & ENVIRONMENTAL PLANNING</i>	<i>Fichtner Consulting Engineers (India) Private Limited: India Fichtner GmbH & Co. KG: Germany</i>	<i>Joint Venture</i>

	MANAGEMENT CONSULTANCY	Deloitte Tohmatsu India LLP: India Environmental Planning Management Consultancy: India	
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1. It is not permissible to transfer this invitation to any other firm, such as Consultant's parent companies, subsidiaries and affiliates. The Client will reject a Proposal if the Consultant drops a joint venture (JV) partner without the Client's prior consent, which is given only in exceptional circumstances, such as debarment of the JV partner or has been declared bankrupt or an occurrence of force majeure.
2. A firm will be selected under QCBS procedures using a Full Technical Proposal (FTP) format as described in this RFP, in accordance with the policies of the Bank ***detailed in the Procurement Regulations*** which can be found at the following website:
<https://www.adb.org/documents/adb-procurementpolicy>,
<https://www.adb.org/documents/procurement-regulations-adb-borrowers>.
3. The RFP includes the following documents:
 - Section 1 - Letter of Invitation
 - Section 2 - Instructions to Consultants, Data Sheet, Summary and Personnel Evaluation Forms, and Grounds for Disqualification of the Experts
 - Section 3 - Technical Proposal [FTP] - Standard Forms
 - Section 4 - Financial Proposal - Standard Forms
 - Section 5 - Eligible Countries
 - Section 6 - Anticorruption Policy
 - Section 7 - Terms of Reference
 - Section 8 - Standard Forms of Contract [Time-Based]
4. Please inform us by **26/06/2024**, in writing to the **Chief General Manager (NRE), O/o The CGM, NRE, APDCL, 2nd Floor, Annex Building, Bijulee Bhawan, Paltan Bazar, Guwahati-781001, Assam, India**, or by E-mail cgm.nre@apdcl.org regarding the following:
 - a. whether you intend to submit a proposal or not and, if affirmative
 - b. whether you intend to enhance your experience by requesting permission to associate with other firm(s) (if permissible under Section 2, Instructions to Consultants (ITC), Data Sheet 14.1.1).
5. Details on the proposal's submission date, time and address are provided in Clauses 17.7 and 17.9 of the instructions to consultants (ITC).

Yours sincerely,

- **S/d-**
Smt. Rijumani Sarma
Chief General Manager, NRE
Assam Power Distribution Company Ltd
2nd Floor, Annex Building, Bijulee Bhawan
Paltan Bazar, Guwahati-781001

Section 2. Instructions to Consultants (ITC) including Data Sheet (DS)

A. General Provisions

1. Definitions

- (a) “Affiliate(s)” means an individual or an entity that directly or indirectly controls, is controlled by, or is under common control with the consultant.
- (b) “Applicable Guidelines” means the guidelines or policies of the Asian Development Bank governing the selection and Contract award process as specified in the **Data Sheet**.
- (c) “Applicable Law” means the laws and any other instruments having the force of law in the Client’s country, or in such other country as may be specified in the **Data Sheet**, as they may be issued and in force from time to time.
- (d) “Bank” means the Asian Development Bank.
- (e) “Borrower [or Recipient or Beneficiary]” means the Government, Government agency or other entity that signs the financing [or loan/credit/grant/project] agreement with the Bank.
- (f) “Client” means the [implementing or executing agency] that signs the Contract for the Services with the selected consultant.
- (g) “Consultant” means a legally-established professional consulting firm or an entity that may provide or provides the Services to the Client under the Contract.
- (h) “Contract” means a legally binding written agreement signed between the Client and the Consultant and includes all the attached documents listed in its Clause 1 of the Form of Contract.
- (i) “Data Sheet” means an integral part of the Instructions to Consultants in Section 2 used to reflect the specific country and assignment conditions to supplement, but not to over-write, the provisions of the ITC.
- (j) “Day” means a calendar day.
- (k) “Experts” means, collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-Consultant or Joint Venture member(s) listed in the **Data Sheet**.
- (l) “Government” means the government of the Client’s country.
- (m) “Joint Venture (JV)” means an association with or without a legal personality distinct from that of its members, of more

than one Consultant where one member has the authority to conduct all business for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.

- (n) “Key Expert(s)” means an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose curriculum vitae (CV) is taken into account in the technical evaluation of the Consultant’s proposal.
- (o) The “Instructions to Consultants (ITC)” (this Section 2 of the RFP) provides the shortlisted consultants with all the information needed to prepare their Proposals.
- (p) The “Letter of Invitation (LOI)” (Section 1 of the RFP) is the letter being sent by the Client to the shortlisted consultants.
- (q) “Non-Key Expert(s)” means an individual professional provided by the Consultant or its Sub-Consultant and who is assigned to perform the Services or any part thereof under the Contract and whose CVs are not evaluated individually although the Client retains the prerogative to approve or reject the CV of the Non-Key Expert based on the proposed approach and methodology.
- (r) “Proposal” means the Technical Proposal and the Financial Proposal of the Consultant.
- (s) The “Request for Proposals (RFP)” is prepared by the Client for the selection of Consultants, based on the SRFP.
- (t) The “Standard Request for Proposals (SRFP)” must be used by the Client as the basis for the preparation of the RFP.
- (u) “Services” means the work to be performed by the Consultant pursuant to the Contract.
- (v) “Sub-Consultant” means an entity to whom the Consultant intends to subcontract any part of the Services while remaining responsible to the Client during the performance of the Contract.
- (w) The “Terms of Reference (TOR)” (Section 7 of the RFP) explain the objectives, scope of work, activities, and tasks to be performed, respective responsibilities of the Client and the Consultant, and expected results and deliverables of the assignment.

2. Introduction

2.1 The Client named in the **Data Sheet** intends to select a Consultant from those listed in the Letter of Invitation, in accordance with the method of selection specified in the **Data Sheet**.

2.2 The shortlisted consultants are invited to submit a Technical

Proposal and a Financial Proposal, or a Technical Proposal only, as specified in the **Data Sheet**, for consulting services required for the assignment named in the **Data Sheet**. The Proposal will be the basis for negotiating and ultimately signing the Contract with the selected Consultant.

2.3 The Consultants should familiarize themselves with the local conditions and take them into account in preparing their Proposals, including attending a pre-proposal conference if one is specified in the **Data Sheet**. Attending any such pre-proposal conference is optional and is at the Consultants' expense.

2.4 In a timely manner and at no cost to the Consultants, the Client will provide the inputs, relevant project data, and reports required for the preparation of the Consultant's Proposal as specified in the **Data Sheet**.

3. Conflict of Interest

3.1 The Consultant is required to provide professional, objective, and impartial advice, at all times holding the Client's interests paramount, strictly avoiding conflicts with other assignments or its own corporate interests, and acting without any consideration for future work.

3.2 The Consultant has an obligation to disclose to the Client any situation of actual or potential conflict that impacts its capacity to serve the best interest of its Client. Failure to disclose such situations may lead to the disqualification of the Consultant or the termination of its Contract and/or sanctions by the Bank.

3.3 Without limitation on the generality of the foregoing, the Consultant shall not be hired under the circumstances set forth below:

Conflicting activities

3.3.1 **Conflict between consulting activities and procurement of goods, works, or non-consulting services.** A firm that has been engaged by the Client to provide goods, works, or non-consulting services for a project, or any of its Affiliates, shall be disqualified from providing consulting services resulting from or directly related to those goods, works, or non-consulting services. Conversely, a firm hired to provide consulting services for the preparation or implementation of a project, or any of its Affiliates, shall be disqualified from subsequently providing goods or works or non-consulting services resulting from or directly related to the consulting services for such preparation or implementation.

Conflicting assignments

3.3.2 **Conflict among consulting assignments.** A Consultant (including its Experts and Sub-Consultants) or any of its Affiliates shall not be hired for any assignment that, by its nature, may be in conflict with another assignment of the Consultant for the same or for another Client.

Conflicting relationships

3.3.3 **Relationship with the Client's staff.** A Consultant (including its Experts and Sub-Consultants) that has a close business or family relationship with a professional staff of the [Borrower or the Client or the Recipient or Beneficiary] or of the [implementing/executing agency] or of a recipient of a part of the Bank's financing who are directly or indirectly involved in any part of (i) the preparation of the TOR for the assignment, (ii) the selection process for the Contract, or (iii) the supervision of the Contract, may not be awarded a Contract, unless the conflict stemming from this relationship has been resolved in a manner acceptable to the Bank throughout the selection process and the execution of the Contract.

3.3.4 Any other types of conflicting relationships as indicated in the **Data Sheet**.

4. Unfair Competitive Advantage

4.1 Fairness and transparency in the selection process require that the Consultants or their Affiliates competing for a specific assignment do not derive a competitive advantage from having provided consulting services related to the assignment in question. To that end, the Client shall indicate in the **Data Sheet** and make available to all shortlisted consultants together with this RFP all information that would in that respect give such a Consultant any unfair competitive advantage over competing Consultants.

5. Corrupt and Fraudulent Practices

5.1 The Bank requires compliance with its Anticorruption Policy as set forth in Section 6.

5.2 In further pursuance of this policy, the Consultant shall permit and shall cause its sub-consultants and sub-contractors to permit the Bank or its representatives to inspect their site, assets, accounts, records and other documents relating to the submission of the Proposal and execution of the contract, and to have the accounts and records audited by auditors appointed by the Bank.

6. Eligibility

6.1 The Bank permits consultants (individuals and firms, including JVs and their individual members) from the eligible countries as stated in Section 5 (Eligible Countries) to offer consulting services for Bank-financed projects. In the case of a JV,

- (a) all partners shall be jointly and severally liable; and
- (b) the JV shall nominate a representative who shall have the authority to conduct all business for and on behalf of any and all the parties of the JV during the bidding process and, in the event the JV is awarded the Contract, during contract execution.

6.2 The Consultant, and all parties constituting the Consultant,

should be nationals of an eligible country, in accordance with Section 5 (Eligible Countries). A Consultant shall be deemed to have the nationality of a country if the Consultant is a citizen or is constituted, incorporated, or registered, and operates in conformity with the provisions of the laws of that country. This criterion shall also apply to the determination of the nationality of proposed subcontractors for any part of the Contract including related services.

6.2.1 International Experts employed or engaged by an eligible consulting firm will be considered eligible regardless of their nationality.

6.2.2 National Experts proposed by the firm must meet eligibility requirements as defined in **Data Sheet 1(k)**.

6.3 As an exception to Clauses 6.1 and 6.2 above:

Sanctions

6.3.1 A firm or an individual temporarily suspended or debarred (including cross debarred) by the Bank in accordance with the above Clause 5.1 or in accordance with the Applicable Guidelines shall be ineligible to participate in or to be awarded a Bank-financed, - administered, or -supported contract, or to benefit from a Bank-financed, -administered, or -supported contract, financially or otherwise, during such period of time as the Bank shall determine. A bid from a temporarily suspended or debarred firm or individual will be rejected and such bid may be in breach of debarment conditions, thereby subject to further ADB's investigation. ADB's Complete Anticorruption Sanctions List is contained in the **Data Sheet**.

Prohibitions

6.3.2 Firms and individuals of a country or goods manufactured in a country may be ineligible if so indicated in Section 5 (Eligible Countries) and:

- (a) as a matter of law or official regulations, the Borrower's/Beneficiary's country prohibits commercial relations with that country, provided that the Bank is satisfied that such exclusion does not preclude effective competition for the provision of Services required; or
- (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in respect of goods or services originating in that country, or the Borrower's Country prohibits payments to particular persons or entities or for particular goods or services by such an act of compliance.

**Restrictions for
Government-
owned
Enterprises**

6.3.3 Government-owned enterprises or institutions in the Borrower's country shall be eligible if they can establish that they (i) are legally and financially autonomous, (ii) operate under commercial law, and (iii) that they are not dependent agencies of the Client.

**Restrictions for
public
employees**

6.3.4 Government officials and civil servants may only be hired under consulting contracts, as members of a team of a consulting firm, if they (i) are on leave of absence without pay; (ii) are not being hired by the agency they were working for immediately before going on leave; and (iii) their employment would not create a conflict of interest).

B. Preparation of Proposals

**7. General
Considerations**

7.1 In preparing the Proposal, the Consultant is expected to examine the RFP in detail. Material deficiencies in providing the information requested in the RFP may result in rejection of the Proposal.

**8. Cost of
Preparation of
Proposal**

8.1 The Consultant shall bear all costs associated with the preparation and submission of its Proposal, and the Client shall not be responsible or liable for those costs, regardless of the conduct or outcome of the selection process. The Client is not bound to accept any proposal, and reserves the right to annul the selection process at any time prior to Contract award, without thereby incurring any liability to the Consultant.

9. Language

9.1 The Proposal, as well as all correspondence and documents relating to the Proposal exchanged between the Consultant and the Client, shall be written in the language(s) specified in the **Data Sheet**.

**10. Documents
Comprising the
Proposal**

10.1 The Proposal shall comprise the documents and forms listed in the **Data Sheet**.

10.2 The Consultant shall include a statement of an undertaking of the Consultant to observe, in competing for and executing a contract, the Client country's laws against fraud and corruption (including bribery).

10.3 The Consultant shall furnish information on commissions, gratuities and fees, if any, paid or to be paid to agents or any other party relating to this Proposal and, if awarded, Contract execution, as requested in the Financial Proposal submission form (Section 4).

11. Only One

11.1 The Consultant (including the individual members of any

Proposal	JV) shall submit only one Proposal, either in its own name or as part of a JV in another Proposal. If a Consultant, including any JV member, submits or participates in more than one proposal, all such proposals shall be disqualified and rejected. This does not, however, preclude a Sub-Consultant, or the Consultant's staff from participating as Key Experts and Non-Key Experts in more than one Proposal when circumstances justify.
12. Proposal Validity	12.1 The Data Sheet indicates the period during which the Consultant's Proposal must remain valid after the Proposal submission deadline. 12.2 During this period, the Consultant shall maintain its original Proposal without any change, including the availability of the Key Experts, the proposed rates and the total price. 12.3 If it is established that any Key Expert nominated in the Consultant's Proposal was not available at the time of Proposal submission or was included in the Proposal without the Key Expert's confirmation, the Proposal shall be disqualified and rejected for further evaluation, and may be subject to sanctions in accordance with Clause 6 of this ITC.
Extension of Validity Period	12.4 The Client will make its best effort to complete the negotiations within the proposal's validity period. However, should the need arise, the Client may request, in writing, all Consultants who submitted Proposals prior to the submission deadline to extend the Proposals' validity. 12.5 If the Consultant agrees to extend the validity of its Proposal, it shall be done without any change in the original Proposal. 12.6 The Consultant has the right to refuse to extend the validity of its Proposal in which case the Proposal will be considered withdrawn.
Substitution of Key Experts at Validity Extension	12.7 If any of the Key Experts become unavailable for the extended validity period, the Consultant shall provide a written adequate justification and evidence satisfactory to the Client together with the substitution request. In this case, a replacement Key Expert shall have equal or better qualifications and experience than those of the originally proposed Key Expert. 12.8 If the Consultant fails to provide a replacement Key Expert with equal or better qualifications, or if the provided reasons for the replacement or justification are unacceptable to the Client, the Proposal will be rejected with the Bank's prior no objection.

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| Sub-Contracting | 12.9 The Consultant shall not subcontract the whole of the Services. |
| 13. Clarification and Amendment of RFP | <p>13.1 The Consultant may request a clarification of any part of the RFP during the period indicated in the Data Sheet before the Proposals' submission deadline. Any request for clarification must be sent in writing, or by standard electronic means, to the Client's address indicated in the Data Sheet. The Client will respond in writing, or by standard electronic means, and will send written copies of the response (including an explanation of the query but without identifying its source) to all shortlisted consultants. Should the Client deem it necessary to amend the RFP as a result of a clarification, it shall do so following the procedure described below:</p> <p style="padding-left: 40px;">13.1.1 At any time before the proposal submission deadline, the Client may change the RFP by issuing an amendment in writing or by standard electronic means. The amendment shall be sent to all shortlisted consultants and will be binding on them. The shortlisted consultants shall acknowledge receipt of all amendments in writing.</p> <p style="padding-left: 40px;">13.1.2 If the amendment is substantial, the Client shall extend the proposal submission deadline to give the shortlisted consultants reasonable time to take an amendment into account in their Proposals.</p> <p>13.2 The Consultant may submit a modified Proposal or a modification to any part of it at any time prior to the proposal submission deadline. No modifications to the Technical or Financial Proposal shall be accepted after the deadline.</p> |
| 14. Preparation of Proposals – Specific Considerations | <p>14.1 While preparing the Proposal, the Consultant must give particular attention to the following:</p> <p style="padding-left: 40px;">14.1.1 If a shortlisted consultant considers that it may enhance its expertise for the assignment by associating with other consultants in the form of a JV or as Sub-Consultants, it may do so with either (a) non-shortlisted consultants(s), or (b) shortlisted consultants if permitted in the Data Sheet. When associating with non-shortlisted firms in the form of a JV or a sub-consultancy, the shortlisted consultant shall be a lead member. If shortlisted consultants associate with each other, any of them can be the lead member.</p> <p style="padding-left: 40px;">14.1.2 The Client may indicate in the Data Sheet the estimated Key Experts' time input (expressed in person-months) and the Client's estimated total cost</p> |
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of the assignment. This estimate is indicative, and the Proposal shall be based on the Consultant's own estimates for the same.

14.1.3 If stated in the **Data Sheet**, the Consultant shall include in its Proposal at least the same time input (in the same unit as indicated in the **Data Sheet**) of Key Experts, failing which the Financial Proposal will be adjusted for the purpose of comparison of proposals and decision for award in accordance with the procedure in the **Data Sheet**.

14.1.4 The total available budget, with an indication whether it is inclusive or exclusive of taxes, is given in the **Data Sheet**, and the Financial Proposal shall not exceed this budget.

15. Technical Proposal Format and Content

15.1 The Technical Proposal shall not include any financial information. A Technical Proposal containing material financial information shall be declared non-responsive.

15.2 Depending on the nature of the assignment, the Consultant is required to submit a full technical proposal (FTP), a biodata technical proposal (BTP) or a simplified technical proposal (STP) as indicated in the **Data Sheet** and using the Standard Forms provided in Section 3 of the RFP.

16. Financial Proposal

16.1 The Financial Proposal shall be prepared using the Standard Forms provided in Section 4 of the RFP. It shall list all costs associated with the assignment, including (a) remuneration for Key Experts and Non-Key Experts, (b) other expenses, (c) provisional sums when applicable and (d) contingency indicated in the **Data Sheet**.

Price Adjustment

16.2 For assignments with a duration exceeding 18 months, a price adjustment provision for foreign and/or local inflation for remuneration rates applies if so stated in the **Data Sheet**.

Taxes

16.3 The Consultant and its Sub-Consultants and Experts are responsible for meeting all tax obligations arising out of the Contract in accordance with the instructions in the **Data Sheet**.

Currency of Proposal

16.4 The Consultant may express the price for its Services in the currency or currencies as stated in the **Data Sheet**. If indicated in the **Data Sheet**, the portion of the price representing local cost shall be stated in the national currency.

Currency of Payment

16.5 Payment under the Contract shall be made in the currency or currencies stated in the Proposal.

C. Submission, Opening and Evaluation

17. Submission, Sealing, and Marking of Proposals

- 17.1 The Consultant shall submit a signed and complete Proposal comprising the documents and forms in accordance with Clause 10 (Documents Comprising Proposal). The submission can be done by mail or by hand. If specified in the **Data Sheet**, the Consultant has the option of submitting its Proposals electronically.
- 17.2 An authorized representative of the Consultant shall sign the original submission letters in the required format for both the Technical Proposal and, if applicable, the Financial Proposals and shall initial all pages of both. The authorization shall be in the form of a written power of attorney attached to the Technical Proposal.
- 17.2.1 A Proposal submitted by a JV shall be signed by all members so as to be legally binding on all members, or by an authorized representative who has a written power of attorney signed by each member's authorized representative.
- 17.3 Any modifications, revisions, interlineations, erasures, or overwriting shall be valid only if they are signed or initialed by the person signing the Proposal.
- 17.4 The signed Proposal shall be marked "ORIGINAL", and its copies marked "COPY" as appropriate. The number of copies required is indicated in the **Data Sheet**. All copies shall be made from the signed original. If there are discrepancies between the original and the copies, the original shall prevail. If there are discrepancies in the delivery time of the original or copies, the time of delivery of the original shall prevail.
- 17.5 The original and all the copies of the Technical Proposal shall be placed inside a sealed envelope clearly marked "**TECHNICAL PROPOSAL**," *"[insert Name of the Assignment]"*, reference number, name and address of the Consultant, and with a warning "**DO NOT OPEN UNTIL [INSERT THE DATE AND THE TIME OF THE TECHNICAL PROPOSAL SUBMISSION DEADLINE].**".
- 17.6 Similarly, the original Financial Proposal (if required for the applicable selection method) and its copies shall be placed inside of a separate sealed envelope clearly marked "**FINANCIAL PROPOSAL**" *"[Name of the Assignment]"*, [reference number], [name and address of the Consultant], and with a warning "**DO NOT OPEN WITH THE**
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TECHNICAL PROPOSAL. .

- 17.7 The sealed envelopes containing the Technical and Financial Proposals shall be placed into one outer envelope and sealed. This outer envelope shall bear the submission address, RFP reference number, the name of the assignment, the Consultant's name and the address, and shall be clearly marked "**DO NOT OPEN BEFORE [insert the time and date of the submission deadline indicated in the Data Sheet]**".
- 17.8 If the envelopes and packages with the Proposal are not sealed and marked as required, the Client will assume no responsibility for the misplacement, loss, or premature opening of the Proposal. For QCBS, FBS and LCS, if the Technical and Financial Proposals are not submitted in separate sealed envelopes as required, the Client shall reject the Proposal.
- 17.9 The Proposal or its modifications must be sent to the address indicated in the **Data Sheet** and received by the Client no later than the deadline indicated in the **Data Sheet**, or any extension to this deadline. Any Proposal or its modification received by the Client after the deadline shall be declared late and rejected, and promptly returned unopened.

18. Confidentiality

- 18.1 From the time the Proposals are opened to the time the Contract is awarded, the Consultant should not contact the Client on any matter related to its Technical and/or Financial Proposal. Information relating to the evaluation of Proposals and award recommendations shall not be disclosed to the Consultants who submitted the Proposals or to any other party not officially concerned with the process, until the publication of the Contract award information.
- 18.2 Any attempt by shortlisted consultants or anyone on behalf of the Consultant to improperly influence the Client in the evaluation of the Proposals or Contract award decisions may result in the rejection of its Proposal, and may be subject to the application of the Bank's prevailing sanctions procedures.
- 18.3 Notwithstanding the above provisions, from the time of the Proposals' opening to the time of Contract award publication, if a Consultant wishes to contact the Client or the Bank on any matter related to the selection process, it should do so only in writing.

**19. Opening of
Technical
Proposals**

- 19.1 The Client's evaluation committee shall conduct the opening of the Technical Proposals in the presence of the shortlisted consultants' authorized representatives who
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choose to attend (in person, or online if this option is offered in the **Data Sheet**). The opening date, time and the address are stated in the **Data Sheet**.

- 19.2 At the opening of the Technical Proposals the following shall be read out: (i) the name and the country of the Consultant or, in case of a JV, the name of the JV, the name of the lead member and the names and the countries of all members; (ii) the presence or absence of a duly sealed envelope with the Financial Proposal; (iii) any modifications to the Proposal submitted prior to the proposal submission deadline; and (iv) any other information deemed appropriate or as indicated in the **Data Sheet**.

20. Proposals Evaluation

- 20.1 Subject to the provision of Clause 15.1 of the ITC, the evaluators of the Technical Proposals shall have no access to the Financial Proposals until the technical evaluation is concluded and the Bank issues its “no objection”, if applicable.
- 20.2 The Consultant is not permitted to alter or modify its Proposal in any way after the proposal submission deadline except as permitted under Clause 12.7 of this ITC. While evaluating the Proposals, the Client will conduct the evaluation in accordance with the process specified in the **Data Sheet** and solely on the basis of the submitted Technical and Financial Proposals.
- 20.3 From the time the proposals are received by the Client to the time that the Contract is awarded, the Client shall not request the Consultant to provide clarification on any matter related to the Consultant's Technical or Financial Proposal. In exceptional cases and with prior approval of the Bank, the Client may request clarifications relating to minor clarifications or corrections of obvious errors or inconsistencies. This request shall be made in writing and copied to the Bank.
- 20.4 Any request for clarification must be sent and responded to in writing and should be date-stamped.

21. Evaluation of Technical Proposals

- 21.1 The Client's evaluation committee shall assess the Technical Proposals on the basis of their responsiveness to the TOR and the RFP, applying the evaluation criteria, sub-criteria, and point system specified in the RFP. Each responsive Proposal will be given a technical score. A Proposal shall be rejected if it fails to achieve the minimum technical score indicated in the **Data Sheet**.

22. Financial Proposals for Quality-Based

- 22.1 Following the ranking of the Technical Proposals, when the selection is based on quality only (QBS), the top-ranked

Selection	Consultant is invited to negotiate the Contract.
22.2 If Financial Proposals were invited together with the Technical Proposals, only the Financial Proposal of the technically top-ranked Consultant is opened by the Client's evaluation committee. All other Financial Proposals are returned unopened after the Contract negotiations are successfully concluded and the Contract is signed.	
23. Public Opening of Financial Proposals for Quality- and Cost-Based Selection (QCBS), Fixed Budget Selection (FBS), and Least-Cost Selection (LCS) methods	23.1 After the technical evaluation is completed and the Bank has issued its no objection (if applicable), the Client shall notify those Consultants whose Proposals were considered non-responsive to the RFP and TOR or did not meet the minimum qualifying technical score (and shall provide information relating to the Consultant's overall technical score). The Client shall simultaneously notify in writing the Consultants that have achieved the minimum overall technical score and inform them of the date, time and location of the opening of the Financial Proposals. The opening date should allow the Consultants sufficient time to make arrangements for attending the opening. The Consultant's attendance at the opening of the Financial Proposals (in person, or online if such option is indicated in the Data Sheet) is optional and is at the Consultant's discretion. 23.2 The Financial Proposals shall be opened by the Client's evaluation committee in the presence of the representatives of the Consultants whose proposals have passed the minimum technical score. At the opening, the names of the Consultants, and the overall technical scores, shall be read aloud. These Financial Proposals shall then be opened, and the total prices read aloud and recorded. Copies of the Record of Opening of Financial Proposals shall be sent to all Consultants who submitted Proposals.
24. Correction of Errors	24.1 Activities and items described in the Technical Proposal but not priced in the Financial Proposal, shall be assumed to be included in the prices of other activities or items, and no correction is made to the Financial Proposal. 24.2 In accordance with 16.1 above, the Consultant is required to submit a detailed price proposal¹. The Client's evaluation committee will (a) correct any computational or arithmetical errors, and (b) adjust the prices if they fail to reflect all inputs included for the respective activities or items in the Technical Proposal. If there is a discrepancy between (i) a

¹ If only a fixed-price proposal is required by the Client (i.e., without any breakdown of costs), the Consultant is deemed to have included all prices in the Financial Proposal, so neither arithmetical corrections nor price adjustments shall be made.

partial amount (sub-total) and the total amount, or (ii) between the amount derived by multiplication of a unit price with the quantity and the total price, or (iii) between words and figures, the former will prevail. In case there is a discrepancy between the Technical and Financial Proposals in indicating quantities of input, the Technical Proposal prevails and the Client's evaluation committee shall correct the quantity indicated in the Financial Proposal so as to make it consistent with that indicated in the Technical Proposal, apply the relevant unit price included in the Financial Proposal to the corrected quantity, and correct the total Proposal cost.

- 25. Taxes** Except as set out in the **Data Sheet**, all taxes are deemed included in the Consultant's Financial proposal, and, therefore, included in the evaluation.
- 26. Conversion to Single Currency** 26.1 For evaluation purposes, prices shall be converted to a single currency using the selling rates of exchange, source and date indicated in the **Data Sheet**.
- 27. Combined Quality and Cost Evaluation**
- Quality- and Cost-Based Selection (QCBS)** 27.1 In the case of QCBS, the total score is calculated by weighting the technical and financial scores and adding them as per the formula and instructions in the **Data Sheet**. The Consultant that will achieve the highest combined technical and financial score will be invited for negotiations.
- Fixed-Budget Selection (FBS)** 27.2 In the case of FBS, those Proposals that exceed the budget indicated in Clause 14.1.4 of the **Data Sheet** shall be rejected.
- 27.3 The Client will select the Consultant that submitted the Technical Proposal with the highest score that does not exceed the budget indicated in the RFP, and invite the Consultant to negotiate the Contract.
- Least-Cost Selection (LCS)** 27.4 In the case of LCS, the Client will select the Consultant with the lowest evaluated total price among the consultants that achieved the minimum technical score, and invite the Consultant to negotiate the Contract.

D. Negotiations and Award

- 28. Negotiations** 28.1 The negotiations will be held at the date and address indicated in the **Data Sheet** with the Consultant's representative(s). The representative must have a written power of attorney to negotiate and sign a Contract on behalf

of the Consultant.

28.2 The Client shall prepare the minutes of negotiations, which will be signed by the Client and the Consultant's authorized representative.

Availability of Key Experts

28.3 The invited Consultant shall confirm the availability of all Key Experts included in the Proposal as a prerequisite to the negotiations, or, if applicable, a replacement in accordance with Clause 12 of the ITC. Failure to confirm the Key Experts' availability may result in the rejection of the Consultant's Proposal and the Client proceeding to negotiate the Contract with the next-ranked Consultant.

28.4 Notwithstanding this, the substitution of Key Experts at the negotiations may be considered if it is due solely to circumstances outside the reasonable control of and not foreseeable by the Consultant, including but not limited to death or medical incapacity. In this case, the Consultant shall offer a substitute Key Expert within the period of time specified in the letter of invitation to negotiate the Contract. The substitute shall have equivalent or better qualifications and experience than the original Key Expert.

Technical negotiations

28.5 The negotiations include discussions of the TOR, the proposed methodology, the Client's inputs, the special conditions of the Contract, and finalizing the "Description of Services" part of the Contract. These discussions shall not substantially alter the original scope of services under the TOR or the terms of the contract, lest the quality of the final product, its price, or the relevance of the initial evaluation be affected.

Financial negotiations

28.6 The negotiations include the clarification of the Consultant's tax liability in the Client's country and how it should be reflected in the Contract.

28.7 If the selection method included cost as a factor in the evaluation, the total price stated in the Financial Proposal for a Lump Sum contract, subject always to adjustment pursuant to 24.2 above, shall not be negotiated.

29. Conclusion of Negotiations

29.1 The negotiations are concluded with a review of the finalized draft Contract, which shall then be initialed by the Client and the Consultant's authorized representative.

29.2 If the negotiations fail, the Client shall inform the Consultant in writing of all pending issues and disagreements and provide a final opportunity to the Consultant to respond. If the disagreement persists, the Client shall terminate the negotiations informing the Consultant of the reasons for doing so in writing. After having obtained the Bank's no objection, the Client will invite the next-ranked Consultant to

negotiate a Contract. Once the Client commences negotiations with the next-ranked Consultant, the Client shall not reopen the earlier negotiations.

30. Award of Contract

30.1 After completing the negotiations the Client shall obtain the Bank's no objection to the negotiated draft Contract, if applicable; sign the Contract; publish the award information as per the instructions in the **Data Sheet**; and promptly notify the other shortlisted consultants.

30.2 The Consultant is expected to commence the assignment on the date and at the location specified in the **Data Sheet**.

31. Procurement-Related Complaint

31.1 The procedures for making a procurement-related complaint are as specified in the **Data Sheet**.

E. Data Sheet

A. General	
ITC Clause Reference	
1 (b)	<u>Applicable Guidelines</u> ADB Procurement Policy 2017 (Policy) and Procurement Regulations for ADB Borrowers 2017 (as amended from time to time) (Procurement Regulations)
1 (c)	<u>Country of Applicable Law</u> India
1(k) ² (definitions)	<u>Experts</u> ADB differentiates between International and National Experts. <u>International Experts</u> An International Expert means an expert who has the qualification and experience required for an international position. Note that per ITC 6.2.1, International Experts employed or engaged by an eligible consulting firm will be considered eligible regardless of their nationality. <u>National Experts</u> <u>National experts mean experts who are citizens of the Client's country.</u> Nationals of the Client's country who possess the appropriate international experience may be considered for assignments that require international expertise in the national's own country. Individuals of ADB member countries who have appropriate authorization to legally reside and work in the country of the assignment but do not hold the nationality of that country may also be considered as national consultants.

² Citizenship is determined from the passport the expert holds or other legal document in the case of national experts in certain countries who do not have passports.

2.1	<u>Method of Selection</u> Name of the Client: Assam Power Distribution Company Limited Method of selection: Quality and Cost Based Selection (QCBS) in accordance with 1 b.
2.2	<u>Submission of Proposals</u> Financial Proposal to be submitted together with Technical Proposal: Yes The name of the assignment is: Project Management, Supervision and Implementation Support for Assam Solar Project. (This is a 1000 MWp (750 MWac) Grid Connected solar project in Karbi Anglong District of Assam, under "MUKHYA MANTRI SAURO SHAKTI PROKOLPO)
2.3	<u>A pre-proposal conference will be held: Yes</u> Date of pre-proposal conference: 04.07.2024 Time: 13:00 hrs IST Address: O/o- Chief General Manager (NRE), APDCL, 2nd Floor, Annex Building, Bijulee Bhawan, Paltan Bazar, Guwahati-781001, Assam, India. E-mail: cgm.nre@apdcl.org Contact person or Conference Co-ordinator: Smt. Rijumani Sarma, CGM, NRE , APDCL The request for the link to join the conference online is to be sent at <u>cgm.nre@apdcl.org</u> on or before 03 July 2024 till 17:00 hours IST.
2.4	<u>Information for Proposal Preparation</u> The Client will provide the following inputs, project data, reports, etc. to facilitate the preparation of the Proposals: <i>Please refer to Section 7, TOR</i>
3.3.4	<u>Conflicting Relationships</u>

	<u>Not Applicable</u>
4.1	<u>Unfair Competitive Advantage</u> <i>Not Applicable</i>
6.3.1	<u>ADB's Sanctions List</u> A published list of debarred firms and individuals is available at the Bank's external website https://www.adb.org/site/Integrity/sanctions
B. Preparation of Proposals	
9.1	<u>Language</u> This RFP has been issued in the English language. Proposals shall be submitted in English language. All correspondences shall be in English language.
10.1	<u>Documents Comprising the Proposal</u> The Proposal shall comprise the following: <u>For FULL TECHNICAL PROPOSAL (FTP):</u> 1st Inner Envelope with the Technical Proposal: (1) Power of Attorney to sign the Proposal (2) Proof of Legal Status and Eligibility (3) TECH-1 (including Statement of Undertaking) (4) TECH-2 (5) TECH-3 (6) TECH-4 (7) TECH-5 (8) TECH-6 AND 2nd Inner Envelope with the Financial Proposal:

	(1) FIN-1 (2) FIN-2 (3) FIN-3 (4) FIN-4 Proof of legal status establish Consultant's legal capacity to enter into binding and enforceable contracts and shall be supported by the following or its equivalent as deemed acceptable by the Bank: • Certificate of incorporation in an ADB member country • Partnerships duly organized in an ADB member country • Universities, institutions, public sector organizations, and nongovernment organizations that are not legally incorporated shall provide other documentation that establishes their legal capacity to enter into binding and enforceable contracts with the Client (such as charter, statute, etc.). <i>[Please refer to CHECKLIST OF REQUIRED FORMS in Section 3.]</i>
10.2	Statement of Undertaking is required Yes In competing for (and, if the award is made to us, in executing) the Contract, we undertake to observe the laws against fraud and corruption, including bribery, in force in the country of the Client.
11.1	Participation of Sub-consultants and Key Experts in more than one Proposal: Not permissible.
12.1	<u>Proposal Validity</u> Proposals must remain valid for 180 calendar days after the proposal submission deadline.
13.1	<u>Clarification of Request for Proposal</u> Clarifications may be requested upto maximum 7 days prior to the bid submission deadline. The contact information for requesting clarifications is Smt. Rijumani Sarma, Chief General Manager (NRE), APDCL, 2nd Floor, Annex Building, Bijulee Bhawan, Paltan Bazar, Guwahati-781001, Assam, India. E-mail: cgm.nre@apdcl.org

14.1.1	Preparation of Proposals – Specific Considerations (Association with Shortlisted Consultants) Shortlisted consultants may associate with (a) non-shortlisted consultant(s): Yes (b) other shortlisted consultants (lead firms and JV partners): No
14.1.2	Estimated input of international Key Experts' time-input: 84 Person Months Estimated input of national Key Experts' time-input: 264 Person Months Estimated total cost of the assignment: USD 3.74 Million including contingency of USD 0.29 Million, inclusive of GST @ 18% amounting to 0.57 million USD except for local taxes defined in DS 25.
14.1.3	<u>Preparation of Proposals – Specific Considerations (Minimum Time and Cost Inputs for Time Based Contracts)</u> Minimum time-input of international Key Experts' is: 84 person-months. Minimum time-input of national Key Experts' is: 264 person-months Minimum time-input of national Non-Key Experts is: 312 person-months. For the evaluation and comparison of Proposals only: if a Proposal includes less than the required minimum time-input, the Client will adjust the proposal price following the Guidance Note for Financial Evaluation. ADB. 2021. Guidance Note on Financial Proposal Evaluation (Loans/Grants). Manila. https://www.adb.org/documents/guidance-note-financial-proposal-evaluation-loans-grants. Proposals that are quoted higher than the required minimum of time-input will not be adjusted.
14.1.4	<u>Maximum budget for the assignment: USD 3.74 Million including provisional sums and contingency, inclusive of GST @ 18% amounting to 0.57 million USD except for local taxes defined in Data Sheet 25</u> <i>If an evaluated Financial Proposal (Adjusted Total Price) exceeds the maximum budget, such proposal will be held non-responsive and be given a zero score.</i> Note: <i>In such cases, if the firm submitting a Financial Proposal exceeding the maximum budget still obtains the highest combined score in final ranking, this winning firm will be required, as a condition of contract negotiations, to reduce</i>

	<i>the Financial Proposal to the maximum budget without compromising the TOR for the assignment (and without modification of proposed unit rates). If negotiations fail, the Client can seek approval from ADB to negotiate with the next-ranked firm.</i>
14.1.4 and 27.2	<u>Only for FBS</u> <i>Not applicable</i>
15.2	<u>Format of Technical Proposal</u> The format of the Technical Proposal to be submitted is: Full Technical Proposal (FTP) Please refer to the Checklist of Required Forms in Section 3 Submission of the Technical Proposal in incorrect format may lead to the Proposal being deemed non-responsive to the RFP requirements.
16.1	<u>Financial Proposal</u> (1) <i>a per diem allowance, including hotel, for experts for every day of absence from the home office for the purposes of the Services;</i> (2) <i>cost of travel by the most appropriate means of transport and the most direct practicable route;</i> <i>Provisional sums: 0.11 Million USD. (Breakdown provided)</i> • <i>Office Maintenance and Operation: 0.07 Million USD</i> • <i>Procuring server/cloud access on which the MIS and all data will be stored: 0.03 Million USD</i> • <i>Office Furniture and Equipment etc: 0.01 Million USD</i> <i>Contingency: 0.29 Million USD</i>
16.2	<u>Price Adjustment</u> A price adjustment provision applies to remuneration rates: Yes <i>Refer to SCC 42.3 in the time-based contract and Consultants should include indices of currency of payments as part of the Financial Proposal. The indices shall not be evaluated but will be considered during negotiations with the 1st ranked firm.</i>
16.3 and 25	The Consultant and Sub-Consultants and Experts are responsible for

	meeting all Tax liabilities arising out of the contract. “Information on the Consultant’s tax obligations in the Client’s country can be found in the official source of Govt. Of India https://www.india.gov.in/topics/finance-taxes/taxes” Taxes - Evaluation (ITC 25) Except as set out below, all taxes are deemed included in the Consultant’s Financial proposal, and, therefore, included in the evaluation. The Client does not take into account the following taxes during financial proposal evaluation. Therefore, the Consultant shall not include the following taxes in its Financial Proposal: (a) all local identifiable indirect taxes such as sales tax, excise tax, VAT, or similar taxes levied on the contract invoices; and (b) all additional local tax on the remuneration of services rendered by non-resident experts of the Consultant in the Client’s country. If the Consultant nevertheless includes the above taxes in its Financial Proposal, no adjustments will be made by the Client for the purposes of evaluation. Taxes - Negotiation At contract negotiations, the above-described local taxes will be discussed and agreed (using the itemized list as guidance) and added to the contract amount in separate lines, as needed, also indicating which taxes shall be paid by the Consultant and which are withheld and paid by the Client on behalf of the Consultant.
16.4	<u>Currency of Proposal</u> The Financial Proposal shall be stated in the following currencies: Consultant may express the price for their Services singly or in combination of up to three foreign currencies – Yen, USD and Euro. Consultant must state local costs in the Client’s country currency (local currency): Yes (Indian Rupees INR)
C. Submission, Opening and Evaluation	
17.1	<u>Electronic Submission of Proposals</u> The technical and financial Proposals must be submitted through online mode only at https://www.assamtenders.gov.in on or before the Bid Submission

	Deadline. The Consultant shall submit its Price Bid in online mode only, in the excel sheet format set out and uploaded in the https://www.assamtenders.gov.in. Please note that, the price bid should not be uploaded along with the technical bid. If the price bid is submitted as a part of technical bid submission, all the quoted bids will be rejected. <table border="1" data-bbox="386 436 1398 940"> <tr> <th data-bbox="386 436 889 506"></th><th data-bbox="889 436 1398 506">Date & Time</th></tr> <tr> <td data-bbox="386 506 889 638">Downloading of bidding document from http https://www.assamtenders.gov.in</td><td data-bbox="889 506 1398 638">13:00 Hrs. (IST) on 24th June 2024</td></tr> <tr> <td data-bbox="386 638 889 737">Start date & time for online submission of bid</td><td data-bbox="889 638 1398 737">From 11:00 Hrs. (IST) on 15th July 2024</td></tr> <tr> <td data-bbox="386 737 889 835">Last date & time for online submission of bid document</td><td data-bbox="889 737 1398 835">Upto 11:30 Hrs. (IST) on 5th August 2024</td></tr> <tr> <td data-bbox="386 835 889 940">Date & time for online opening of technical bid</td><td data-bbox="889 835 1398 940">12:00 Hrs. (IST) on 5th August 2024</td></tr> </table>		Date & Time	Downloading of bidding document from http https://www.assamtenders.gov.in	13:00 Hrs. (IST) on 24 th June 2024	Start date & time for online submission of bid	From 11:00 Hrs. (IST) on 15 th July 2024	Last date & time for online submission of bid document	Upto 11:30 Hrs. (IST) on 5 th August 2024	Date & time for online opening of technical bid	12:00 Hrs. (IST) on 5 th August 2024
	Date & Time										
Downloading of bidding document from http https://www.assamtenders.gov.in	13:00 Hrs. (IST) on 24 th June 2024										
Start date & time for online submission of bid	From 11:00 Hrs. (IST) on 15 th July 2024										
Last date & time for online submission of bid document	Upto 11:30 Hrs. (IST) on 5 th August 2024										
Date & time for online opening of technical bid	12:00 Hrs. (IST) on 5 th August 2024										
17.4	Submission of Proposals The Consultant must submit: (a) Technical Proposal (Online mode only): i. one (1) original; and ii. one (1) softcopy in PDF format to ADB Headquarters, Manila at loanconsultingproposals@adb.org and ADB Resident Mission, New Delhi, India which should include the following information on the subject line of the email: Client, Country, Project, name of consultant). The FINANCIAL PROPOSAL SHALL NOT BE INCLUDED (b) Financial Proposal: one (1) original to the Client. Must be submitted online mode only.										
17.7 and 17.9	<u>The Proposals must be submitted online not later than:</u> Date: 05.08.2024 Time: 11:30 Hours, IST <u>No hard copies of the proposal (except for the documents specifically mentioned to be submitted in hard copy) need be submitted.</u>										

19.1	<u>Opening of Technical Proposals</u> An online option for the opening for the Technical Proposals is offered: Yes The opening shall take place at: <u>O/o the CGM (NRE), APDCL, Bijulee Bhawan, 2nd Floor, Annex Building, Paltanbazar, Guwahati-01</u> Date: 05. 08. 2024 Time: 12:00 Hrs. IST <i>The Technical Proposal opening will be held electronically and via video-conferencing using a video conferencing portal such as Microsoft Teams, zoom, google meet etc. from the O/o- The CGM (NRE) office. The link to this event shall be sent out to all Shortlisted Consultants through mail in advance. The opening process will be recorded. The Consultant or their representatives willing and capable to attend in person may do so. The location and address of the opening is</i> The opening shall take place at: O/o- The Chief General Manager (NRE), APDCL, Address: Second Floor, Annex Building Bijulee Bhawan, Paltan Bazar City: Guwahati State: Assam Country: India e-mail: cgm.nre@apdcl.org Date: 05.08.2024 Time: 12:00 Hours, IST
19.2	<u>Information to be read out and recorded during the opening of the Technical Proposals</u> During Technical Proposal Opening, the name of the Consultant Firm and any association or Joint Venture, and in addition, the following information will be read aloud at the opening of the Technical Proposals: Confirmation that invitation to submit proposal was not transferred to another party.
20.2	<u>Financial Proposal Evaluation</u> The Client will follow the Guidance Note for Financial Evaluation. ADB. 2021. Guidance Note on Financial Proposal Evaluation (Loans/Grants), Manila. https://www.adb.org/documents/guidance-note-financial-proposal-evaluation-loans-grants

21.1	<u>Evaluation Criteria</u> The evaluation criteria, sub-criteria, and point system are specified in the Summary and Personnel Evaluation Sheets that are attached to the Data Sheet. The minimum technical score (St) required to pass is: 750 (maximum 1000 points)
23.1	<u>Public Opening of Financial Proposals</u> An online option of the opening of the Financial Proposals is offered: Yes. <i>The online opening procedure shall be: Virtual connection will be enabled for the participants/representatives from the Consultants that submitted Proposals (using a video conferencing portal such as Microsoft Teams, zoom, google meet etc).</i>
26.1	<u>Conversion into Single Currency</u> The single currency for the conversion of all prices expressed in various currencies into a single one is: INR The official source of the selling (exchange) rate is: Reserve Bank of India Website: https://www.rbi.org.in/scripts/ReferenceRateArchive.aspx The date of the exchange rate is: 24th July 2024 confirmed by the Reserve Bank of India.
27.1	The lowest evaluated Financial Proposal (Fm) is given the maximum financial score (Sf) of 1000. The formula for determining the financial scores (Sf) of all other Proposals is calculated as follows: $Sf = 1000 \times Fm / F$, in which “Sf” is the financial score, “Fm” is the lowest ETP Evaluated Total Price (ETP), which is equal to the Adjusted Total Price (ATP) less the Non-competitive Component, i.e., provisional sums and contingency; and “F” is the ETP of the proposal under consideration. The weights given to the Technical (T) and Financial (P) Proposals are: T = 90% and P = 10%

	Proposals are ranked according to their combined technical (St) and financial (Sf) scores using the weights (T = the weight given to the Technical Proposal; P = the weight given to the Financial Proposal; T + P = 1) as following: $S = St \times T\% + Sf \times P\%.$
D. Negotiations and Award	
28.1	<u>Negotiations</u> Expected date and address for contract negotiations: Date: 30.08.2024 O/o- The Chief General Manager (NRE), APDCL, Address: Second Floor, Annex Building, Bijulee Bhawan, Paltan Bazar City: Guwahati State: Assam Country: India e-mail: cgm.nre@apdcl.org
30.1	<u>Contract Award Notice</u> The publication of the contract award information following the completion of the contract negotiations and contract signing will be done as following: Website: www.apdcl.org The publication will occur within ten (10) days after the contract signing.
30.2	Date of Commencement of Services Expected date for the commencement of the Services: Date: 06:09:2024 at: Bijulee Bhawan, Guwahati, Assam-781001
31.1	<u>Procurement-Related Complaints</u> The procedures for making a procurement-related complaint are detailed in paragraph 1.31 and 1.32 of the Procurement Regulations. If a Consultant wishes to make a procurement-related complaint, the Consultant shall submit its complaint following these procedures, in writing (by the quickest means available, such as by email), to:

	For the attention: Shri Rakesh Kumar, IAS Title or position: Managing Director Client: Assam Power Distribution Company Ltd, O/o- The CGM (NRE), 2nd Floor, Bijulee Bhawan, Paltan Bazar, Guwahati-781001 <i>Project:</i> Project Management Consultant-1000 MWp GRID CONNECTED ASSAM SOLA PROJECT in KARBI ANGLONG DISTRICT of Assam, Email address: <u>md.apdcl@apdcl.org</u> In summary, a procurement-related complaint may challenge any of the following: (i) the terms of this Request for Proposal; (ii) the Client's decision to exclude a consultant from the procurement process prior to the award of contract; and (iii) the Client's decision to award the contract.
--	---

Insert the Summary and Personnel Evaluation Sheet based on the type of Proposal used.

Appendix 1: Summary and Personnel Evaluation Sheet for Full Technical Proposal

CONFIDENTIAL														
Assam Power Distribution Company Limited														
SUMMARY EVALUATION SHEET FOR SIMPLIFIED TECHNICAL PROPOSALS														
RFP No: APDCL/CGM (NRE)/NRE-125/2023-24/ Dtd DD/MM/2024														
(QCBS)														
Assignment: Project Management Consultant (PMC) for "1000 MWp (750 MWac) GRID CONNECTED ASSAM SOLAR PROJECT in KARBI ANGLONG DISTRICT of Assam														
EVALUATION CRITERIA		Max.	Firm 1		Firm 2		Firm 3		Firm 4		Firm 5		Firm 6	
		Weight	Rating	Score	Rating	Score	Rating	Score	Rating	Score	Rating	Score	Rating	Score
I. Qualification		100		0		0		0		0		0		0
a.	Experience in Similar Projects	50		0		0		0		0		0		0
b.	Experience in Similar Geographic Area	50		0		0		0		0		0		0
II. Approach and Methodology		150		0		0		0		0		0		0
a.	Understanding of Objective	40		0		0		0		0		0		0
b.	Quality of Methodology	20		0		0		0		0		0		0
c.	Innovativeness/Comments on TOR	20		0		0		0		0		0		0
d.	Work Program	20		0		0		0		0		0		0
e.	Personnel Schedule	20		0		0		0		0		0		0
f.	Counterpart Personnel and Facilities	20		0		0		0		0		0		0
g.	Proposal presentation	10		0		0		0		0		0		0
II. Personnel (Areas of Expertise)		750		0		0		0		0		0		0
Key Experts (International)		450		0		0		0		0		0		0
a.	Team Leadership * & Solar Power Plant Expert	200		0		0		0		0		0		0
b.	Power Systems Expert	100		0		0		0		0		0		0
c.	Environment Specialist	100		0		0		0		0		0		0
d.	Health and Safety Specialist	50		0		0		0		0		0		0
Key Experts (National)		300		0		0		0		0		0		0
e.	Civil and Structural Expert	20		0		0		0		0		0		0
f.	Procurement & Contract Specialist	20		0		0		0		0		0		0
g.	ESMS Expert (BESS)	15		0		0		0		0		0		0
h.	Environment Specialist (Support Lead Distribution Component and BESS)	15		0		0		0		0		0		0
i.	Health and Safety Specialist (Support Lead Distribution Component and BESS)	15		0		0		0		0		0		0
j.	Ecologist	10		0		0		0		0		0		0
k.	Labor Expert	5		0		0		0		0		0		0

l.	Social Safeguard Specialist	5		0		0		0		0		0		0
m.	Gender Expert	5		0		0		0		0		0		0
n.	Community Development and Livelihood Specialist	5		0		0		0		0		0		0
o	** Deputy Team Leader & Resident Engineer (Solar)	75		0		0		0		0		0		0
p.	Resident Engineer (Transmission)	20		0		0		0		0		0		0
qn	Resident Environment, Health and Safety Supervisor (EHSS) – Solar Power Plant	15		0		0		0		0		0		0
r.	Resident Environment, Health and Safety Supervisor (EHSS) – Distribution Component and CTU Transmission Line	15		0		0		0		0		0		0
s.	Resident Environment, Health and Safety Supervisor (EHSS) – BESS component	15		0		0		0		0		0		0
t.	Financial Expert	15		0		0		0		0		0		0
u.	PPP Expert	15		0		0		0		0		0		0
v.	Battery Energy Storage Expert (BESS)	15		0		0		0		0		0		0
TOTAL		1000		0		0		0		0		0		0
Rating: Excellent: 100% Very Good: 90 -99% Above Average: 80 - 89% Average: 70 - 79% Below Average: 1 - 69% Non-complying: 0%														
Please refer to F. Disqualification of an Expert, Section 2, RFP.														
Score: Maximum Weight x Rating / 100		* The Team Leader must be Solar Power Plant Expert. ** Deputy Team Leader must be Resident Engineer (Solar) and be a National Expert												
Criteria Approved by:		Date Approved:		Evaluation Done by:						Date Evaluated:				
CHAIRPERSON						CHAIRPERSON								

CONFIDENTIAL

Assam Power Distribution Company Limited
PERSONNEL EVALUATION SHEET FOR SIMPLIFIED TECHNICAL PROPOSALS

RFP No: APDCL/CGM (NRE)/NRE-125/2023-24/ Dtd DD/MM/2024

Assignment: Project Management Consultant (PMC) for "1000 MWp GRID CONNECTED ASSAM SOLAR PROJECT in KARBI ANGLONG DISTRICT of Assam".

Name of Firm:

POSITION / AREA OFEXPERTISE		NAME	A		B		C		TOTAL SCORE (A+B+C)
			General Qualification		Project Related Experience		Overseas/ Country Experience		
			20%		60%		20%		
International Consultants			Rating	Score	Rating	Score	Rating	Score	
a.	Team Leadership* & Solar Power Plant Expert								
b.	Power Systems Expert								
c.	Environment Specialist								
d.	Health and Safety Specialist								
National Consultants		NAME	A		B		C		TOTAL SCORE (A+B+C)
			General Qualification		Project – Related Experience		Experience w/Intl. Org. Experience		
			20%		60%		20%		
			Rating	Score	Rating	Score	Rating	Score	
e.	Civil and Structural Expert								
f.	Procurement & Contract Specialist								
g.	ESMS Expert (BESS)								
h.	Environment Specialist (Support Lead Distribution Component and BESS)								
i.	Health and Safety Specialist (Support Lead Distribution Component and BESS)								
j.	Ecologist								
k.	Labor Expert								
l.	Social Safeguard Specialist								
m.	Gender Expert								
n.	Community Development and Livelihood Specialist								
o	** Deputy Team Leader & Resident Engineer (Solar)								

F. Disqualification of an Expert

	Zero (0%) rating resulting in disqualification will be given to a nominated expert in particular circumstances:	Reference
1.	The expert is proposed for a national position but does not fulfil the requisite criteria as defined in DS 1(k).	ITC 6.2, DS 1(k)
2.	The expert failed to state his or her citizenship on the curriculum vitae.	ITC 6.1/2, Section 6, TECH-6
3.	The expert is a current employee of the Client.	ITC 6.2/6.3.4, TECH-6
4.	The Consultant and the expert failed to disclose any situation of an actual or potential conflict of interest, sanctions, criminal records or other information that would make the expert ineligible under Sections 5 and 6 about the expert.	ITC 3/6.2, Section 5, 6

Section 3. Technical Proposal – Standard Forms

CHECKLIST OF REQUIRED FORMS

Required for FTP, STP or BTP	FORM	DESCRIPTION	Page Limit
FTP			
√	TECH-1	Technical Proposal Submission Form.	
√	TECH-1 Attachment	Proof of legal status and eligibility	
“√” If applicable	TECH-1 Attachment	If the Proposal is submitted by a Joint Venture (JV), attach a letter of intent or a copy of an existing agreement.	
“√” If applicable	Power of Attorney	No pre-set format/form. In the case of a JV, several are required: a power of attorney for the authorized representative of each JV member, and a power of attorney for the representative of the lead member to represent all JV members	
FTP			FTP
√	TECH-2	Consultant's Organization and Experience.	
√	TECH-2A	A. Consultant's Organization	2
√	TECH-2B	B. Consultant's Experience	20
√	TECH-3	Comments or Suggestions on the Terms of Reference and on Counterpart Staff and Facilities to be provided by the Client.	<i>For the FTP, the total number of pages for combined forms TECH-3 (FTP) and TECH-4 (FTP) should not exceed 50. A page is defined as one printed side of A4 or letter-sized paper.</i>

√	TECH-3A	A. On the Terms of Reference	n/a
√	TECH-3B	B. On the Counterpart Staff and Facilities	2
√	TECH-4	Description of the Approach, Methodology, and Work Plan for Performing the Assignment	50
√	TECH-5	Work Schedule and Planning for Deliverables	n/a
√	TECH-6A	Team Composition, Key Experts Inputs,	n/a
√	TECH 6B	Attached Curriculum Vitae (CV)	5 per CV

FORM TECH-1
TECHNICAL PROPOSAL SUBMISSION FORM

[Insert location, date]

To: *[Insert name and address of Client]*

Dear Sirs:

We, the undersigned, offer to provide the consulting services for *[Insert title of assignment]* in accordance with your Request for Proposals dated *[Insert Date]* and our Proposal. *[Select appropriate wording depending on the selection method stated in the RFP: "We are hereby submitting our Proposal, which includes this Technical Proposal and a Financial Proposal sealed in a separate envelope" or, if only a Technical Proposal is invited "We hereby are submitting our Proposal, which includes this Technical Proposal only in a sealed envelope."].*

If the Consultant is a Joint Venture (JV), insert the following: We are submitting our Proposal in a joint venture with: *Insert a list with full name and the legal address of each member, and indicate the lead member.* We have attached a copy *insert: "of our letter of intent to form a joint venture" or, if a JV is already formed, "of the joint venture agreement"* signed by every participating member, which details the likely legal structure of and the confirmation of joint and severable liability of the members of the said JV.

OR

If the Consultant's Proposal includes Sub-Consultants, insert the following: We are submitting our Proposal with the following firms as Sub-Consultants: *Insert a list with full names and countries of each Sub-Consultant.*

We, by submitting the Proposal, acknowledge that we have read and understand ADB's Anticorruption Policy and Integrity Principles and Guidelines, both as amended from time to time.

We hereby declare that:

- (a) All the information and statements made in this Proposal are true and we accept that any misinterpretation or misrepresentation contained in this Proposal may lead to our disqualification by the Client or cancellation of the
-

contract, if awarded, and/or may result in remedial actions including being sanctioned by the Bank.

- (b) Our Proposal shall be valid and remain binding upon us for the period of time specified in the **Data Sheet**, Clause 12.1.
- (c) We have no conflict of interest in accordance with ITC 3.
- (d) We meet the eligibility requirements as stated in ITC 6.
- (e) We are not subject to any national or international sanctions, temporary suspension or debarment by ADB or other multilateral development banks (MDB).
- (f) Neither we, nor our joint venture or associate partners or sub-consultants or any of the proposed experts prepared the TOR for this consulting assignment
- (g) Except as stated in the **Data Sheet**, Clause 12.1, we undertake to negotiate a Contract on the basis of the proposed Key Experts. We accept that the substitution of Key Experts for reasons other than those stated in ITC Clause 12 and ITC Clause 28.4 may lead to the termination of Contract negotiations.
- (h) Our Proposal is binding upon us and subject to any modifications resulting from the Contract negotiations.
- (i) In competing for (and, if the award is made to us, in executing) the Contract, we undertake to observe the laws against fraud and corruption, including bribery, in force in the country of the Client.
- (j) Neither we, nor our joint venture or associate partners or sub-consultants or any of the proposed experts have been found guilty or convicted of any violation of law that is not a minor traffic violation
- (k) We can accept payments through the international banking system or otherwise discharge ADB's obligation upon initiation of wire transfer,
- (l) We understand that it is our obligation to notify the Client and ADB should we, our joint venture or associate partners or subconsultants or any of the proposed experts prepared the TOR for this consulting assignment, become subject to any national or international sanctions, including becoming ineligible to work with ADB or other MDBs, cannot accept payments through the international banking system, should integrity issues including conflict of interest arise and/or should we or the proposed consultant be convicted of an offence excluding minor traffic violations

If the answer to any of the declarations above is NO, please provide details:

We understand that any misrepresentation that knowingly or recklessly misleads or attempts to mislead may lead to automatic rejection if our proposal or cancellation of our contract, if awarded, and may result in further remedial actions, in accordance with ADB's Anticorruption Policy (1998) and Integrity Principles and Guidelines (2015), both as amended from time to time.

We undertake, if our Proposal is accepted and the Contract is signed, to initiate the Services related to the assignment no later than the date indicated in Clause 30.2 of the **Data Sheet**.

We understand that the Client is not bound to accept any Proposal that the Client receives.

We remain,

Yours sincerely,

Authorized Signature {In full and initials}: _____

Name and Title of Signatory: _____

Name of Consultant (company's name or JV's name): _____

In the capacity of: _____

Address: _____

Contact information (phone and e-mail): _____

For a joint venture, either all members shall sign or only the lead member, in which case the power of attorney to sign on behalf of all members shall be attached.

Annex to Form TECH-1 - Required Information for Sanctions List Checking

Consultant's Information Sheet

Consultant's Information		
	Information of the Consultant	If the Consultant is a subsidiary or branch, information of any parent company/companies
Names	Full legal name(s)	
	Full trading name(s) (if any)	
Addresses	Registered address(es)	
	Trading address(es)	
	Postal address(es) (if different from trading address)	
Type of organization		
Country of constitution/ incorporation/ registration		
Year of constitution/ incorporation/ registration		
Corporate or registration number		
In case of a Joint Venture, legal name of each partner		
Consultant's authorized representative (name, address, telephone number(s), fax number(s), e-mail address)		

Joint Venture and Sub-Consultant Information Sheet

Each Joint Venture partner and Sub-Consultant must fill out this form separately.

Joint Venture / Sub-Consultant Information		
Bidder's legal name		
	Information of Joint Venture Partner or Sub-Consultant	If any Joint Venture Partner or Sub-Consultant is a subsidiary or branch, information of any parent company/companies
Names	Full Legal name(s)	
	Full trading name(s) (if any)	
Addresses	Registered address(es)	
	Trading address (es)	
	Postal address (es) (if different from trading address)	
Type of organization		
Country of constitution/ incorporation/ registration		
Year of constitution/ incorporation/ registration		
Corporate or registration number		
Joint Venture Partner's or Sub-Consultant's authorized representative information (name, address, telephone number(s), fax number(s), e-mail address)		

FORM TECH-2 (FOR FULL TECHNICAL PROPOSAL ONLY)

CONSULTANT'S ORGANIZATION AND EXPERIENCE

Form TECH-2: a brief description of the Consultant's organization and an outline of the recent experience of the Consultant that is most relevant to the assignment. In the case of a joint venture, information on similar assignments shall be provided for each partner. For each assignment, the outline should indicate the names of the Consultant's Key Experts and Sub-consultants who participated, the duration of the assignment, the contract amount (total and, if it was done in a form of a joint venture or a sub-consultancy, the amount paid to the Consultant), and the Consultant's role/involvement.

A - Consultant's Organization

1. *Provide here a brief description of the background and organization of your company, and – in case of a JV– of each member for this assignment.*
2. *Include an organizational chart, a list of Board of Directors, and beneficial ownership³.*

B - Consultant's Experience

3. *List only previous similar assignments successfully completed in the last [10] years.*
4. *List only those assignments for which the Consultant was legally contracted by the Client as a company or was one of the JV partners. Assignments completed by the Consultant's individual experts working privately or through other consulting firms cannot be claimed as the relevant experience of the Consultant, or that of the Consultant's partners or Sub-Consultants, but can be claimed by the Experts themselves in their CVs. The Consultant should be prepared to substantiate the claimed experience by presenting copies of relevant documents and references if so requested by the Client.*

³ Beneficial ownership shows all owners and major shareholders of the company, including any person or entity who enjoys the benefit of ownership including, but not limited to power of control and influence of the business transactions, receiving dividends or profit share. This includes direct or indirect ownership of the company (e.g., ownership by close relatives).

Duration	Assignment name and brief description of main deliverables or outputs	Name of Client and Country of Assignment	Approximate Contract value (in \$ or €)/ Amount Paid to Your Firm	Role on the Assignment
<i>Example 1: January 2009– April 2010</i>	<i>Improvement quality of.....”: designed master plan for rationalization of,;</i>	<i>Ministry of, [insert country]</i>	<i>\$1 million</i>	<i>Lead partner in a JV A&B&C</i>
<i>Example 2: January May 2008}</i>	<i>Support to sub-national government : drafted secondary level regulations on.....</i>	<i>Municipality of....., [insert country]</i>	<i>\$0.2 million</i>	<i>Consultant</i>

FORM TECH-3 (FOR FULL TECHNICAL PROPOSAL)

COMMENTS AND SUGGESTIONS ON THE TERMS OF REFERENCE, COUNTERPART STAFF, AND FACILITIES TO BE PROVIDED BY THE CLIENT

Form TECH-3: The Consultant will write its comments and suggestions on the Terms of Reference that could improve the quality or effectiveness of the assignment; and on requirements for counterpart staff and facilities, which are provided by the Client, including: administrative support, office space, local transportation, equipment, data, etc.

A. On the Terms of Reference

[Insert improvements to the Terms of Reference, if any]

B. On Counterpart Staff and Facilities

[Include comments on counterpart staff and facilities to be provided by the Client, e.g., administrative support, office space, local transportation, equipment, data, background reports, etc., if any]

FORM TECH-4 (FOR FULL TECHNICAL PROPOSAL ONLY)

DESCRIPTION OF APPROACH, METHODOLOGY, AND WORK PLAN IN RESPONDING TO THE TERMS OF REFERENCE

Form TECH-4 is a description of the approach, methodology and work plan for performing the assignment, including a detailed description of the proposed methodology and staffing for training, if the Terms of Reference specify training as a specific component of the assignment.

The suggested structure of the Technical Proposal (in FTP format) is as follows:

- (i) **Technical Approach and Methodology.** *Explain understanding of the objectives of the assignment as outlined in the Terms of Reference (TOR), the technical approach, and the methodology that would be adopted for implementing the tasks to deliver the expected output(s), and the degree of detail of such output. Do not repeat the TOR here.*
 - (ii) **Work Plan.** *Outline the plan for the implementation of the main activities or tasks of the assignment, their content and duration, phasing and interrelations, milestones (including interim approvals by the Client), and tentative delivery dates of the reports. The proposed work plan should be consistent with the technical approach and methodology, showing your understanding of the TOR and ability to translate them into a feasible working plan. A list of the final documents (including reports) to be delivered as final output(s) should be included here. The work plan should be consistent with the Work Schedule Form.*
 - (iii) **Organization and Staffing.** *Describe the structure and composition of the team, including the list of the Key Experts, Non-Key Experts, and relevant technical and administrative support staff.*
-

FORM TECH-5 (FOR FTP)

WORK SCHEDULE AND PLANNING FOR DELIVERABLES

N°	Deliverables ¹ (D-..)	Months											
		1	2	3	4	5	6	7	8	9		n	TOTAL
D-1	(e.g., Deliverable #1: Report A												
	1. Data Collection												
	2. Drafting												
	3. Inception Report												
	4. Incorporating Comments												
	5.												
	6. Delivery of Final Report to Client)												
D-2	(e.g., Deliverable #2:.....)												
n													

- 1 List the deliverables with the breakdown for activities required to produce them and other benchmarks such as the Client's approvals. For phased assignments, indicate the activities, delivery of reports, and benchmarks separately for each phase.
- 2 The duration of activities shall be indicated in a form of a bar chart.
3. Include a legend, if necessary, to help read the chart.

FORM TECH-6A (FOR FTP)
TEAM COMPOSITION, ASSIGNMENT, AND KEY EXPERTS' INPUTS

N°	Name, Nationality and DOB	Expert's Input (in person/month) per each Deliverable (listed in TECH-5)										Total Time-Input (in months)			
		Position		D-1		D-2		D-3			D-...		Home	Field	Total
KEY EXPERTS															
International															
K-1	e.g., Mr. A, PAK, 15.06.1954	[Team Leader]	[Home] [Field]	[2 month] [0.5 m]		[1.0] [2.5]		[1.0] [0]							
K-2	e.g., Mr. B, USA, 20.04.1969														
K-3															
National															
n															
Subtotal															
NON-KEY EXPERTS															
N-1			[Home] [Field]												
N-2															
Subtotal															
Total															

DOB = date of birth.

Consultants should consider the following in the preparation of the Team Composition, Assignment, and Key Experts' Inputs:

- (i) For Key Experts, the input should be indicated individually for the same positions as required under the Data Sheet ITC21.1.
- (ii) Months are counted from the start of the assignment or mobilization. There are 22 working (billable) days in 1 month and no less than 8 working hours in 1 working day.
- (iii) "Home" means work in the office in the expert's country of residence. "Field" work means work carried out in the Client's country or any other country outside the expert's country of residence, at Client's request.

 Full time input
 Part time input

Form TECH-6B

[Note to Consultant: Each Curriculum Vitae (CV) should have a maximum of five pages]

CURRICULUM VITAE (CV) FOR INTERNATIONAL OR NATIONAL EXPERTS

1. **Proposed Position:** *[TOR Expertise]*
2. **Name of Firm:** *[Insert name of firm proposing the expert, if applicable]*
*(Do not abbreviate
or use symbols in
any portion of the
firm or individual
name)*
3. **Name of Expert:** *[Consultant Name]*
*(Do not abbreviate
or use symbols in
any portion of the
firm or individual
name)*
4. **Current Residential
Address:**

Telephone No.:

Fax No.:

E-Mail Address:
5. **Date of Birth:**

Citizenship⁴:

⁴ For proposed national experts who are individuals of ADB member countries and have appropriate authorization to legally reside and work in the country of the assignment, but do not hold the nationality of that country, provide supporting documentation as a TECH-6B attachment.

**Type of
government ID and
ID Number.**

*(please attach a
copy of the ID to
this form)*

6. Education: *[Indicate college or university and other specialized education of expert, giving names of institutions, degrees obtained, and dates of obtainment]*

**7. Membership in
Professional
Associations:**

8. Other Trainings: *[Indicate significant training since degrees under 5 - Education were obtained]*

**9. Countries of Work
Experience:** *[List countries where expert has worked in the last 10 years]*

10. Languages: *[For each language indicate proficiency: good, fair, or poor in speaking, reading, and writing]*

**11. Employment
Record** *[Starting with present position, list in reverse order every employment held by expert since graduation, providing for each employment (see format here below): dates of employment, name of employing organization, positions held.]*

From *[Month/Year]*: _____

To *[Month/Year]*: _____

Employer: _____

Positions held: _____

**12. Detailed Tasks
Assigned**

*[List all tasks to
be performed
under this
assignment]*

**13. Work Undertaken that Best Illustrates Capability to Handle
the Tasks Assigned**

[Among the assignments in which the expert has been involved, indicate the following information for those assignments that best illustrate the expert's capability to handle the tasks listed in line 11.]

Name of assignment or project: _____

Month and Year: _____

Location: _____

Client: _____

Main project features: _____

Positions held: _____

Activities performed: _____

14. Certification:

I, the undersigned, certify to the best of my knowledge and belief that

- (i) This CV correctly describes my qualifications and experience;
- (ii) I am not a current employee of the Executing or the Implementing Agency;
- (iii) In the absence of medical incapacity, I will undertake this assignment for the duration and in terms of the inputs specified for me in Form TECH-6 provided team mobilization takes place within the validity of this proposal;
- (iv) I was not part of the team who wrote the terms of reference for this consulting services assignment;
- (v) I do not have conflict of interest in accordance with ITC 3.0;
- (vi) I am not subject to any national or international sanctions, temporary suspension or debarment by ADB or other multilateral development banks (MDB);
- (vii) I certify that I have been informed by the firm that it is including my CV in the Proposal for the *[insert name of project and contract]*. I confirm that I will be available to carry out the assignment for which my CV has been submitted in accordance with the implementation arrangements and schedule set out in the Proposal.
- (viii) I have not been found guilty or convicted of any violation of law that is not a minor traffic violation.
- (ix) I can accept payments through the international banking system or otherwise discharge ADB's obligation upon initiation of wire transfer.
- (x) I understand that it is my obligation to notify the Client and ADB should I become subject to any national or international sanction, including becoming ineligible to work with ADB or other MDBs, cannot accept payments through the international banking system, should integrity issues including conflict of interest arise and/or should we or the proposed consultant be convicted of an offence excluding minor traffic violations

If the answer to any of the declarations above is NO, please provide details:

If the CV is signed by the firm's authorized representative, insert:

- (xi) I, as the authorized representative of the firm submitting this Proposal for the *[insert name of project and contract]*, certify that I have obtained the consent of the named expert to submit his/her CV, and that s/he will be available to carry out the assignment in accordance with the implementation arrangements and schedule set out in the Proposal, and confirm his/her compliance with paras (i) to (v) above.

I understand that any willful misstatement described herein may lead to my disqualification or dismissal, if engaged.

[Signature of expert or authorized representative of the firm]⁵ Date: _____
Day/Month/Year

Full name of authorized representative

⁹ This CV can be signed by the authorized representative of the Consultant provided during proposal submission. If the Consultant's proposal is ranked first, a copy of the CV signed by the expert and/or specialist must be submitted to the Client prior to the commencement of contract negotiations.

Section 4. Financial Proposal - Standard Forms

[Notes to Consultant shown in brackets and italics provide guidance to the Consultant to prepare the Financial Proposals; they should not appear on the Financial Proposals to be submitted.]

Financial Proposal Standard Forms shall be used for the preparation of the Financial Proposal according to the instructions provided in Section 2.

NOTE: The authorized representative of the Consultant who signs the Proposal is advised to initial all pages of the original Financial Proposal.

FIN-1 Financial Proposal Submission Form

FIN-2 Summary of Costs

FIN-3 Breakdown of Remuneration

FIN-4 Other Expenses, Provisional Sums and Contingency

FORM FIN-1

FINANCIAL PROPOSAL SUBMISSION FORM

[Location, Date]

To: *[Name and address of Client]*

Dear Sirs:

We, the undersigned, offer to provide the consulting services for *[insert title of assignment]* in accordance with your Request for Proposal dated *[insert date]* and our Technical Proposal.

Our attached Financial Proposal is for the amount of *[Insert amount(s) in words and figures - [in the event the proposal involves multiple currencies, indicate the corresponding amount for each currency].]*, **excluding** the local taxes described in Clause 25 in the **Data Sheet**. We understand the *aforementioned* local taxes will be discussed, and the agreed amount will be added to the contract with appropriate provisions at the contract negotiations.

Our Financial Proposal shall be binding upon us subject to the modifications resulting from Contract negotiations, up to expiration of the validity period of the Proposal, i.e. before the date indicated in Clause 12.1 of the **Data Sheet**.

During the course of this registration or any engagement, we can accept electronic payments through the international financial system or otherwise discharge ADB's obligations upon initiation of wire transfer and it is our obligation to notify the Client and ADB if we cannot accept electronic payments through the international financial system or otherwise discharge ADB's obligations upon initiation of wire transfer.

Commissions, gratuities or fees that we have paid or will pay to an agent or any other party relating to preparation or submission of this Proposal and Contract execution, paid if we are awarded the Contract, are listed below:

Name and Address of Agent(s)/Other party	Amount and Currency or Gratuity	Purpose of Commission

If no payments are made or promised, add the following statement: "No commissions, gratuities or fees have been or are to be paid by us to agents or any other party relating to this Proposal and, in the case of award, Contract execution."

We agree to permit ADB⁶ or its representative to inspect our site, assets, accounts and records and other documents relating to the bid submission and to have them audited by auditors appointed by ADB. We understand that failure to comply with this obligation may

⁶ ADB's Office of Anticorruption and Integrity (OAI) is the initial point of contact and Investigative Office for allegations of integrity violations involving ADB-related activities.

constitute “obstructive practice” that may result in debarment and/or contract termination, if awarded.

We understand you are not bound to accept any Proposal you receive.

We understand that any misrepresentation that knowingly or recklessly misleads or attempts to mislead may lead to automatic rejection if our proposal or cancellation of our contract, if awarded, and may result in further remedial actions, in accordance with ADB’s Anticorruption Policy (1998) and Integrity Principles and Guidelines (2015), both as amended from time to time.

We remain,

Yours sincerely,

Authorized Signature *[In full and initials]*: _____

Name and Title of Signatory: _____

In the capacity of: _____

Address: _____

E-mail: _____

[FOR A JOINT VENTURE, EITHER ALL MEMBERS SHALL SIGN OR ONLY THE LEAD MEMBER OR CONSULTANT, IN WHICH CASE THE POWER OF ATTORNEY TO SIGN ON BEHALF OF ALL MEMBERS SHALL BE ATTACHED.]

FORM FIN-2 SUMMARY OF COSTS

Item	Cost			
	<i>[Consultant must state the proposed costs in accordance with Clause 16.4 of the Data Sheet. Payments will be made in the currency(ies) expressed. Delete columns which are not used.]</i>			
	<i>Insert foreign currency # 1</i>	<i>Insert foreign currency # 2, if used</i>	<i>Insert foreign currency # 3, if used</i>	<i>Insert local currency, if used and/or required (16.4 Data Sheet)</i>
Competitive Components				
Remuneration, Key Experts				
Remuneration, Non-Key Experts				
Reimbursable Expenses				
Sub-Total				
Non-Competitive Components				
Provisional Sums				
Contingency				
Sub-Total				
Total Cost of the Financial Proposal ⁷				

⁷ Should match the amount in Form FIN-1.

FORM FIN-3 BREAKDOWN OF REMUNERATION ⁸

When used for Lump Sum Contract assignment, information to be provided in this Form shall only be used to demonstrate the basis for the calculation of the Contract's ceiling amount; to calculate applicable taxes at contract negotiations; and, if needed, to establish payments to the Consultant for possible additional services requested by the Client. This Form shall not be used as a basis for payments under Lump Sum Contracts

No.	Name	Nationality	Currency	Person-Month Remuneration Rate (Home)	Time Input in Person/Month (from TECH-6) (Home)	Currency 1- as in FIN-2	Currency 2- as in FIN-2	Currency 3- as in FIN-2	Local Currency- as in FIN-2
	Position (as in TECH-6)	Firm		Person-month Remuneration Rate (Field)	Time Input in Person/Month (from TECH-6) (Field)				
KEY EXPERTS (International)⁹									
1.									
2.									
Sub-Total Costs									
KEY EXPERTS (National)									
1.									
2.									
Sub-Total Costs									
Total Costs: Key Experts (International and National)									
NON-KEY EXPERTS									
1.									

⁸ In the case of selections that do not include cost as an evaluation factor (i.e., QBS, CQS, and SSS), the Client may use an expanded version of this Form to add columns to request social charges, overhead, other charges (such as premium for field assignments in difficult locations) and the multiplier.

⁹ As identified in the Summary and Personnel Evaluation Sheet.

2.									
	Total Costs: Non-Key Experts								
	TOTAL COSTS: KEY AND NON-KEY EXPERTS								

FORM FIN-4 BREAKDOWN OF OTHER EXPENSES, PROVISIONAL SUMS AND CONTINGENCY

When used for Lump Sum contract assignment, information to be provided in this Form shall only be used to demonstrate the basis for calculation of the Contract ceiling amount, to calculate applicable taxes at contract negotiations and, if needed, to establish payments to the Consultant for possible additional services requested by the Client. This form shall not be used as a basis for payments under Lump Sum contracts.

Type of Expenses, Provisional Sums and Contingency	Quantity	Unit	Currency	Unit Price	{Currency # 1- as in FIN-2}	{Currency # 2- as in FIN-2}	{Currency# 3- as in FIN-2}	{Local Currency- as in FIN-2}
Reimbursable Expenses								
[e.g., Per diem allowances]	[Day]							
[e.g., international flights]	[RT]							
[e.g., In/out airport transportation]	[Trip]							
[e.g., Communication costs]								
[e.g., reproduction of reports]								
[e.g., Office rent]]								
Sub-Total: Reimbursable Expenses								
Provisional Sums								
Item 1								
Item 2								
Sub-Total: Provisional Sums								
Contingency								
Total: Reimbursable Expenses + Provisional Sums + Contingency								

* Provisional Sums and Contingency must be expressed in the currency indicated in the Data Sheet.

Section 5. Eligible Countries

For Contracts to be financed by loans/grants from www.adb.org/about/members

Regional Member		
Afghanistan	Philippines	Turkey
Armenia	Republic of Korea	United Kingdom
Australia	Samoa	United States
Azerbaijan	Singapore	
Bangladesh	Solomon Islands	
Bhutan	Sri Lanka	
Brunei Darussalam	Taipei, China	
Cambodia	Tajikistan	
Cook Islands	Thailand	
Federated States of Micronesia	Timor-Leste	
Fiji	Tonga	
Georgia	Turkmenistan	
Hong Kong, China	Tuvalu	
India	Uzbekistan	
Indonesia	Vanuatu	
Japan	Non-regional Member	
Kazakhstan	Austria	
Kiribati	Belgium	
Kyrgyz Republic	Canada	
Lao People's Democratic Republic	Denmark	
Malaysia	Finland	
Maldives	France	
Marshall Islands	Germany	
Mongolia	Ireland	
Myanmar	Italy	
Nauru	Luxembourg	
Nepal	Netherlands	
New Zealand	Norway	
Niue	Portugal	
Pakistan	Spain	
Palau	Sweden	
People's Republic of China	Switzerland	

Section 6. Bank's Anticorruption Policy

[Notes to the Client: this Section 6 shall not be modified]

Anticorruption Policy

ADB requires borrowers (including beneficiaries of ADB-financed activity) and their personnel, as well as firms and individuals participating in an ADB-financed activity, including but not limited to, bidders suppliers, contractors, consultants, subcontractors, subconsultants and agents (including their respective officers, directors, employees and personnel) under ADB-financed contracts, to observe the highest standard of ethics during the selection process and in execution of such contracts in accordance with ADB's Anticorruption Policy (1998, as amended from time to time). In pursuance of this policy, ADB

- (a) defines, for the purposes of this provision, the terms set forth below as follows:
 - (i) "Corrupt practice" means the offering, giving, receiving, or soliciting, directly or indirectly, anything of value to improperly influence the actions of another party.
 - (ii) "Fraudulent practice" means any action or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation.
 - (iii) "Coercive practice" means impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to improperly influence the actions of a party.
 - (iv) "Collusive practice" means an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party.
 - (v) Abuse, means theft, waste, or improper use of assets related to ADB-related activity, either committed intentionally or through reckless disregard.
 - (vi) Conflict of interest, means any situation in which a party has interests that could improperly influence a party's performance of official duties or responsibilities, contractual obligations, or compliance with applicable laws and regulations.
 - (vii) Integrity violation is any act which violates ADB's Anticorruption Policy, including items (i) to (vi) above and the following: obstructive practice, abuse, conflict of interest, violations of ADB sanctions, retaliation against whistleblowers or witnesses, and other violations of ADB's Anticorruption Policy, including failure to adhere to the highest ethical standards.
- (b) will reject a proposal for an award if it determines that the Consultant recommended for the award or any of its officers, directors, employees, personnel, subconsultants, subcontractors, service providers, suppliers or manufacturers has engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations in competing for the Contract;
- (c) will cancel the portion of the financing allocated to a contract if it determines at any time that representatives of the Client engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations during the procurement

or the execution of that contract, without the Borrower having taken timely and appropriate action satisfactory to ADB to remedy the situation, including by failing to inform ADB in a timely manner at the time they knew of the integrity violations;

- (d) will impose remedial actions on a firm or an individual, at any time, in accordance with ADB's Anticorruption Policy and Integrity Principles and Guidelines (both as amended from time to time), including declaring ineligible, either indefinitely or for a stated period of time, to participate¹⁰ in ADB-financed, -administered, or -supported activities or to benefit from an ADB-financed, -administered, or -supported contract, financially or otherwise, if it at any time determines that the firm or individual has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations. ADB reserves the right to publish any debarment; and
- (e) will have the right to require that a provision be included in request for proposals and in Contracts financed, administered or supported by ADB, requiring Consultants and other third parties engaged or involved in ADB-related activities, and their respective officers, directors, employees and personnel to permit ADB or its representative to inspect their accounts and records and other documents relating to the selection process and contract performance and to have them audited by auditors appointed by ADB.

All Bidders, Consultants, contractors, suppliers, manufacturers, service providers, and other third parties engaged or involved in ADB-related activities, and their respective officers, directors, employees and personnel, are obliged to cooperate fully in any investigation when requested by ADB to do so. As determined on a case by case basis by ADB, such co-operation includes, but is not limited to, the following:

- (a) being available to be interviewed and replying fully and truthfully to all questions asked;
- (b) providing ADB with any items requested that are within the party's control including, but not limited to, documents and other physical objects;
- (c) upon written request by ADB, authorizing other related entities to release directly to ADB such information that is specifically and materially related, directly or indirectly, to the said entities or issues which are the subject of the investigation;
- (d) cooperating with all reasonable requests to search or physically inspect their person and/or work areas, including files, electronic databases, and personal property used on ADB activities, or that utilizes ADB's Information and Communications Technology (ICT) resources or systems (including mobile phones, personal electronic devices, and electronic storage devices such as external disk drives);
- (e) cooperating in any testing or examination requested by ADB;
- (f) providing all other information relevant for the exercise of ADB's audit or inspection rights; and
- (g) preserving and protecting confidentiality of all information discussed with, and as required by, ADB.

All bidders, Consultants, contractors and suppliers shall require their officers, directors, employees, personnel, agents to ensure that, in its contract with its sub-consultants, Subcontractors, and other third parties engaged or involved in ADB-related activities, such

¹⁰ Whether as a Consultant, Sub-Consultant or Key Expert; or in any other capacity specified in the Contract

sub-consultants, Subcontractors, and other third parties similarly are obliged to cooperate fully in any investigation when requested by ADB to do so.

The Borrower hereby puts the Bidder on notice that the Bidder or any joint venture partner of the Bidder (if any) may not be able to receive any payments under the Contract if the Consultant or any of its joint venture partners, as appropriate, is, or is owned (in whole or in part) by a person or entity subject to applicable sanctions.

Section 7. Terms of Reference

Terms of Reference (ToR) for the PROJECT MANAGEMENT CONSULTANT (PMC) for Implementation of ASSAM SOLAR PROJECT.

1. Project Background

The National Action plan for Climate Change (NAPCC) has identified solar energy development as a thrust area for enhancing energy security and combating climate change and mandated the launch of the National Solar Mission to significantly increase the share of solar energy in the total energy mix..

Govt. of India is targeting to become net zero by 2070 as announced in the recently concluded COP26 climate change conference in Glasgow. Among five-point climate action plan, India has committed to target 50 percent of its energy requirements from renewable energy, bringing non-fossil fuel energy capacity to 500 GW, reduction of carbon emissions by one billion tons, and bring down the carbon intensity below 45 percent by 2030.

In line with the vision of Hon'ble Prime Minister of India, Hon'ble Chief Minister of the State of Assam has intended to install an aggregate capacity of 3000 MWp Solar Power Plants in Assam to make a markable contribution towards achievement of the above goals. To achieve this target, Assam Power Distribution Company Ltd. (APDCL) is going to implement 750 MWac Solar Power Projects at Karbi Anglong district in Assam on Engineering Procurement & Construction (EPC) mode under "Mukhya Mantri Sauro Shakti Prokolpo" through ADB funding.

The project will consist of the detailed design, construction, testing and commissioning of the 750 MWac Solar PV Plant in Lahorijan area of Karbi Anglong district of Assam, inclusive of internal electrical interconnections and connection to the grid. This includes a 250MWac component to be implemented in Public Private Partnership (PPP) format.

Assam Power Distribution Company Limited (APDCL), the government owned Power distribution company of the state of Assam will be the executing and the implementing agency for the project.

2. Purpose of the Assignment (and how they relate or contribute to the overall project objectives)

APDCL will appoint a Project Management Consultant (PMC) for Project Management, Supervision and Implementation Support as an owners Engineer to provide the services described in this Terms of Reference (TOR), to ensure the project is completed following prudent industry practice, to meet the specified standards, and as per the relevant agreements.

APDCL will enter into a Consultancy Services Agreement with the selected PMC.

The Project under the facility includes (all quantities indicated here are approximate)

- **Design, Engineering, Procurement, Supply, Installation and Commissioning of Solar PV Modules, Inverters, electrical equipment and associated Civil works**

along with Pooling Sub-Station for Solar plant of Capacity of 750 MWac in total including construction of associated EHV transmission lines, terminal bays etc. for termination at the switching sub-station to be constructed for evacuation of power from the solar Plant into the exiting grid network.

- **Implementation of the Distribution System Enhancement work to be executed in Karbi Anglong and Dima Hasso District of Assam as component of the project.**

APDCL intends to recruit a consultancy firm (Project Management Consultancy or PMC or Consultant) to provide consulting services for project management, supervision & implementation of the project. The Consultant will be responsible for review existing designs, support APDCL in procurement of turnkey contractors, supervise the works of the suppliers and contractors and ensure successful commissioning of the Project.

The Consultant must have capability in electrical, civil design and construction supervision, including safeguards, and must have experience as PMC in implementing Solar Energy generation and transmission line Projects. They will have to implement a comprehensive project management plan to ensure the most efficient, timely and economical implementation of the Project together with satisfactory safeguards implementation. The PMC will also coordinate and supervise construction works during the construction period and assist the IA to operate the plan in the most efficient way. In particular, the PMC will be responsible for supporting the IA in project supervision, preparing and updating (as required, for design/scope changes or any unanticipated impacts) of environmental safeguards documents such as Initial Environmental Examinations (IEEs) and the Environmental Management Plans (EMPs), preparing and updating as required of Social Safeguards Plans such as Resettlement Plan (RP) and Indigenous Peoples Plan (IPP) or the combined Resettlement and Indigenous Peoples Plan (RIPP) and reviewing of contractor designs, construction environment and social impact management plans, including health and safety risk assessments, to confirm EMP requirements reflected. The PMC will also provide design and engineering services, conducting review meetings, co-ordination of contractor(s), other government agencies, assist in procurement and control of schedule and quality, advise in financial matters. The PMC will also be responsible for preparing and implementing Gender Equality Social Inclusion Action Plan (GESIAP), Livelihood Restoration and Community Development Plan.

3. Duration and Location of the Services

The duration of the services will be **348** man-month spread across **5** years commencing from the date of contract signing.

The Consultancy will be based in APDCL Head Quarter, Bijulee Bhawan, Paltan Bazar Guwahati-01 and the Solar PV Project site and its other associated project site based in the district of Karbi Anglong & Dima Hassao District of Assam and the Consultant will need to deploy the Experts as per the directions of the IA at the different sites. EHSS supervisors will be based at the solar project site for the solar and distribution components, but for the BESS component (APDCL on behalf of JV) will be based at the BESS site. It is expected that the level of engagement of the National and International Experts will be front loaded so as to have a greater level of engagement during the implementation period of 3 years and a lower level of engagement during the O & M period of 2 years. The Consultant is required to keep this in view while proposing the deployment of the Experts in Form TECH-6A above.

4. Scope of Services

The primary responsibilities of the consulting firm is to advise and assist the EA/IAs in managing and supervising the sub-projects, providing technical support, administration and implementation of the project financed by ADB and capacity development for EA/IA staff

The overall works will be divided into three sub-phases:

- 1) Design, construction, and erection
- 2) Testing and Commissioning
- 3) Operation and Maintenance after commissioning of the plant

The PMC shall be responsible for review of all engineering/design/safeguard activities for the entire implementation phase until commissioning, up to the Operational Acceptance or equivalent document as stated in bid documents. The PMC shall review, supervise and follow-up the design, implementation schedule and prepare the required documents and certificates. The main tasks shall be, but not limited to, the following:

- (i) Review and comment on all designs, documents, implementation plans, construction and O&M environmental and social impact management plans, and reports submitted by the Contractor, including on design options to avoid and/or minimize the environmental and social, and involuntary resettlement and indigenous peoples impact and risks;
- (ii) Advise APDCL on design changes, quality assurance/measures, implementation plans, safeguards compliance etc.;
- (iii) Continuous project control and monitoring, ensuring adherence to all the contractual obligations of the Contractor;
- (iv) Review and recommendation of variations to cost and time submitted by the Contractor;
- (v) Support in reviewing and scrutinization of invoices submitted by the Contractor to APDCL;
- (vi) Support in preparation, monitoring the implementation of all aspects of the Contractor's environmental and social impact management plans and contractor's compliance with the EMP requirements;
- (vii) Prepare, update as required, and support ADPCL to implement the IEEs and EMPs covering the solar, distribution and BESS components including by regular supervision and monitoring as per the EMP requirements; submit semi-annual environment monitoring reports up to the completion of construction of all components reverting to annual during O&M to APDCL for onward transmission to ADB. Additionally, provide capacity building as per the IEE and EMP requirements and transfer environment, labour, and health and safety skills to APDCL's staff assigned to work in the PMU alongside the PMC's specialists, in the implementation, supervision and monitoring of the plans;
- (viii) Prepare, update, and implement APDCL's social safeguards planning documents such as Resettlement plan (RP) and Indigenous Peoples Plan (IPP) or a combined Resettlement and Indigenous Peoples Plan (RIPP), social due diligence (audit) reports if required. Monitor the implementation of social safeguards planning documents (RP/IPP/RIPP) and submit periodic monitoring reports to APDCL for

onward transmission to ADB. Additionally, transfer skills to APDCL's staff assigned to work in the PMU alongside the PMC's specialist, in the monitoring of these plans;

- (ix) Implement Gender Equality and Social Inclusion Action Plan (GESIAP) and monitor the GESIAP and submit periodic GESIAP monitoring reports to APDCL and ADB.
- (x) Develop livelihood restoration plan and community development plan and its implementation and monitoring.
- (xi) Ensure international good practice on environmental management and national environmental laws and regulations are adhered to;
- (xii) Ensure international good practice and national labor, health and safety standards are adhered to;
- (xiii) During the testing, commissioning and operation phase, advise, supervise and provide recommendation for APDCL's approvals for general test procedures developed by the Contractor,
- (xiv) Assist APDCL to achieve the Completion Certificate, and Operational Acceptance Certificate.
- (xv) Support APDCL in approving as-built drawings, documentation and O&M manuals, ensuring compliance to O&M EMP requirements;
- (xvi) Develop EHS good practice guidance and Standard Operating Procedures for EHS for O&M;
- (xvii) Support APDCL during the defect's liability period, as requested;
- (xviii) Organize contract closure activities and prepare the project completion report and studies including compliance with the environmental and social safeguard requirements.

The PMC should be an engineering firm with adequate international experience in detailed design, equipment specification and selection, procurement , safeguards, project monitoring, supervision, and coordination with contractor (s) and other stakeholders.

Specific experience in the following areas is desired:

- (i) Solar photovoltaic power plant project development and / or construction supervision of a similar scale solar project. Consultancy experiences in solar parks in India will be an advantage.
- (ii) Design, Engineering, Supervision of projects related to construction of Extra High Voltage Transmission lines (at least 400 kV) and EHV sub-station of minimum 400 kV or above voltage class.
- (iii) Preparation, updating, implementation, supervision and monitoring of social and environmental safeguards documents/plans and gender and livelihood plans for similar size large solar projects or related energy projects in accordance with internationally accepted guidelines and practices (such as those of ADB, and other international financial institutions), and
- (iv) Projects funded by multilateral/bilateral funding agencies and experience of preparing safeguard documents and reports (i.e., IEE/EMP/RIPP) and securing necessary state and national environment and social clearances required prior to the project implementation; and

- (v) Training and skill transfer programs on renewable energy development, safeguards, and related aspects.

The PMC shall assist APDCL to coordinate various activities to achieve effective project implementation within the stipulated time and budget and with full safeguards compliance by all parties involved.

The PMC shall also prepare operating manual/procedures to ensure effective operation of the plant and equipment, including for environment, health and safety management. This should include activities for (i) *a condition monitoring program*, (ii) *a functional testing program*, (iii) *routine preventative maintenance activities*, (iv) *emergency procedures*, and (v) *environment, health and safety monitoring and reporting*. The PMC should also prepare asset management plans for the power plant.

The Consultant will be expected to closely manage and monitor compliance of own personnel and contractor's personnel with COVID restrictions, and in accordance with (their) approved COVID HS-C19 plan¹¹.

5. Detailed Scope of Services

The services for the PMC shall be utilized during the Project Implementation as follows:

- (i) **Project Preparation:** Procedures- review the project management (including administration) procedures of the APDCL for the implementation of the projects and, as appropriate recommend changes and or new procedures in keeping with and modern international practice.
- (ii) **Preparation of sub projects:** Advice and assist, at a project management level, in the preparation of each sub project (studies, investigations, designs, specifications and drawings, contract conditions, commercial conditions, Bill of Quantities) to properly define the work. The studies for the subprojects' designs, shall including alternative design options for avoiding and/or minimizing the environment, involuntary resettlement (IR) and indigenous peoples (IPs) impacts and proposed measures for mitigating any unavoidable impacts.
- (iii) **Procurement:** Review existing tender documents and assist in preparation of new tender documents for EPC / PPP contracts, as required, in accordance with ADB's standard procedures and guidelines and ensuring safeguard requirements are fully reflected therein. Assist with advertisement, pre bid meetings, evaluation of technical and financial bids, preparation of bid evaluation reports, contract negotiations and preparation of documents for contract signing, and advice on submission of documents to for review and approval.

In the review of the tender documents, the expert shall particularly consider completeness of the scope of work, coherence between sections, constructability,

¹¹ See e.g.: World Health Organization. 2020. *Considerations for public health and social measures in the workplace in the context of COVID-19*. Geneva. Available here: <https://www.who.int/publications-detail/considerations-for-public-health-and-social-measures-in-the-workplace-in-the-context-of-covid-19>; HM Government. 2020. *Working safely during COVID-19 in construction and other outdoor work. Guidance for employers, employees and the self-employed*. Available here: <https://assets.publishing.service.gov.uk/media/5eb961bfe90e070834b6675f/working-safely-during-covid-19-construction-outdoors-110520.pdf>. The Canadian Construction Association – COVID 19 Standard Protocols. Available here: <https://www.cca-acc.com/wp-content/uploads/2020/04/CCA-COVID-19-Standardized-Protocols-for-All-Canadian-Construction-Sites-04-16-20.pdf>

cost, risk/shared risk and consequences thereof, and compliance with ADB's procurement procedures and guidelines.

Organization of and participation in initial kick-off meetings with contractors and relevant stakeholders.

Support to APDCL for management of contracts awarded under this project.

Assist the APDCL to ensure that the tender documents for all works contracts for the project issued by APDCL and BESS JV include provisions on the contractors' compliance performance with the environmental and social safeguard requirements and impact management plans.

Assistance in handing over of sites and facilitation of site access once social safeguard and EMP pre-construction requirements met. Assisting the APDCL in the project's environmental and social impact assessments, and compliance implementation of environmental and social impact management plans and payment of compensations and applicable entitlements to the project affected persons prior to the handing over the sites.

Establishing and maintaining cost control and monitoring cost, issuing of payment certificates.

- (iv) **Contract Management:** Advise and assist APDCL / PMU in management of the contracts. Advice on quality control programs, checking of design details of the structures and civil construction (submitted by contractors) as and when referred by APDCL and speedily advising on acceptability of such designs and suggesting corrective measures to be undertaken.

Review and approval of programs for manufacturers and delivery of materials for site construction.

Establishing and maintaining cost control procedures and monitoring cost and assisting / advising APDCL officers in the process of issuing payment certificates to contractors.

Assist APDCL and BESS JV in conducting meaningful consultations with the project affected persons and communities including IPs, women and vulnerable groups, and disclosure the project and safeguard related documents and information to them.

Assist APDCL and BESS JV in establishing the project-level Grievance Redress Mechanism (GRM), and in handling all complaints and their redressal and in maintaining a detailed record of such complaints and their redressal.

Assist APDCL in handling queries related to Right to Information Act (RTI) of the Government of India and Access to Information Policy (2018) of ADB.

Assist APDCL in managing other consultants, if any, employed by APDCL.

Other general contract management matters including but not limited preparation of progress reports and status reports as required by various agencies including ADB, Govt of Assam and the Government of India.

All contract management to take into account project safeguard requirements.

- (v) **Design Checking and Clarification:** Checking equipment delivery, mounting structures, civil buildings, foundations, structures related to Solar Power Plant,

transmission lines and substations and other subprojects. Provide recommendation for approval of all electrical and civil, structural designs and drawings pertaining to transmission lines and substations.

Review deviations, if any, and recommend course of further action to APDCL. This also includes the deviations and design alternatives for avoiding and/or minimizing potential adverse environmental and the IR and IPs impacts as possible.

Approval of methods and procedures for commissioning tests to be submitted by contractors.

Witnessing of contractor's test on completion and commissioning.

Maintain an up to date „design register“ with the record of drawings and other design, installation and testing documents of the project. This includes maintaining the latest drawings and documents in PMC's records.

All design checking to take into account project safeguard requirements.

- (vi) **Project Scheduling and Monitoring:** Preparing, maintaining and monitoring project master schedule, while optimizing the schedule to account for the time needed to prepare or update environmental and social documents for each sub-project in accordance with the ADB SPS (2009) and national laws, including the IEEs and EMPs, Resettlement Plan (RP) and Indigenous Peoples Plan (IIP) or RIPP. Review project schedules submitted by the contractors, analyze progress and suggest corrective measures at management level. All scheduling to take into account project safeguard requirements e.g., preconstruction EMP requirements for granting site access etc.

Review the project schedules submitted by contractors, monitor the progress of contractors' works and suggest corrective actions, as needed.

Updating / revising project schedule as needed.

Measuring, monitoring and reporting Targets as listed in ADB's Project Document.

Monitoring and reporting all aspects of the project including scope, cost, time, disbursements, compliance to ADB's procurement and Safeguards Policy Statement (SPS) 2009 and project safeguard requirements as set out in the project's IEEs/EMPs/RIPP.

Assist APDCL in preparation of forward-looking plans including physical, procurement and financial planning.

Preparing regular progress updates.

Arranging and conducting periodic coordination meetings at APDCL and / or at project sites.

- (vii) **Supervision of Project Implementation:** The Consultant shall assist APDCL in the supervision of the Project Packages works during the implementation phase including, but not limited to, on-site progress monitoring and verification as well as deadline and quality control. Full-time on-site representation is required, for the BESS component this includes full time EHS supervision by ADPCL on behalf of the BESS JV.

While supervising the Project Implementation, the Consultant shall:

- (a) Organize frequent site meetings, draft minutes of meeting (MoM) and distribute MoM to relevant stakeholders;
- (b) Consistently follow-up on the works progress as per the agreed work programs and implementation timetables, monitor the time schedules of delivery, installation, testing and commissioning performed by the Contractors and react pro-actively in case of delays and deviations;
- (c) Regularly inspect Project Packages on-site, verify and record materials delivered, measurements and agreed quality and scope of works and deficiencies regarding material management through contractor in and timely reporting to APDCL
- (d) Access and inspect facilities, equipment and storage areas of the contractors and ensure operations in line with best contractor practice, in particular in regard to work safety and health;
- (e) Support APDCL in the commissioning, financial & contractual closure and final acceptance /handover of the Project Packages as well as in finalization of the Completion Report.
- (f) Regularly inspect the project sites for compliance implementation of the environmental and social safeguard requirements and assist in developing and implementing corrective actions as needed to ensure safeguard compliance.

The Consultant shall not be authorized to modify the works as specified in the contract between the contractors and APDCL, to instruct modifications or in other ways incur costs on the part of APDCL. However, the Consultant shall bring to the attention of APDCL any deviations from the agreed contract volumes, quality and standard engineering practice.

- (viii) **Update, Implement, Supervise and Monitor Environmental and Social Safeguards Aspects of the Project:** The Consultant shall ensure that each sub-project complies with the applicable environmental including labour, health, and safety) and social safeguard policy requirements of ADB Safeguard Policy Statement (2009) and standards outlined in the Initial Environmental Examinations (IEEs) and their EMPs and Resettlement and Indigenous Impact Plan (RIIP), and other social safeguard documents as may be applicable. The Consultant will follow all PMC assigned requirements detailed in the EMPs for the project. Full-time on-site representation is required for environment, health and safety.

Specifically, the Consultant shall:

- (a) Ensure the required environmental and social documents for each sub-project have been prepared e.g., the IEEs and EMPs, RP and IPP or RIPP and social due diligence reports, as will be applicable. Preparation and updating of the required documents with necessary assessments etc. shall be the under the scope of the PMC.

Update environmental and social documentation for each sub-project as and when required for review and clearance by ADB, responding to comments from APDCL and ADB.

- (b) Ensure the contractor's adherence to the EMPs and RIPP requirements specific to each sub-project, including environmental, health, and safety mitigation, monitoring and implementation arrangements, as well as state and national requirements including securing of clearances and approvals. Supervision and monitoring to include on-site checks of all active construction sites with records maintained, convening monthly environment, health and safety meetings with APDCL and contractor, etc.;
 - Support APDCL to implement necessary environmental, health, and safety mitigation, monitoring and implementation arrangements that are their responsibility under the EMPs and to secure all clearances and approvals that are their responsibility;
 - (c) Monitor and report on progress of implementation and provide early warning reporting in case of potential violation of EMP requirements or applicable state, national, and international guidelines or standards identifying time-bound corrective action to be taken for non-compliances;
 - (d) Supervise update and implementation of the Resettlement plan and/or RIIP specific to each sub-project, as well as any required compensation payments;
 - (e) Prepare Monthly and Quarterly Progress reports on Environmental and Social aspects as well as semi-environmental monitoring reports up to the completion of all construction reverting to annual on O&M in line with the IEEs/EMPs and ADB requirements, and periodic social safeguard monitoring reports in line with RIPP and ADB requirements.
- (ix) **Project Progress Meetings:** Project progress meetings shall be held frequently, not less than once in every month, during implementation. These meetings at the office of APDCL (or the officers of the JV for BESS component in respect of EHS matters) shall address on-site progress of Project Packages and ensure quality assurance. The Consultant shall organize these meetings and be ready to present the following topics:
- (a) Review of Contractor's work progress and time schedules;
 - (b) Status of materials arranged/required to be arranged in a given time schedule;
 - (c) Status of reporting, cash flow and invoicing;
 - (d) Review of implementation of Environmental and Social aspects and compliance as per the Bid Document and agreed Environmental and Social Management documents.
 - (e) Monitor implementation of the social safeguard documents such as RP and/or RIIP, and corrective actions for any safeguard compliance issues, as may become applicable. Report on any identified unanticipated IR and/ or IPs impact to take corrective actions, as well as grievances and their resolution status.
- (x) **Reporting Support:** The Consultant shall prepare regular progress reports showing the monthly or quarterly progress including on update and implementation of the environmental and social plans mentioned above, and to suggest measures for any improvement, encountered bottlenecks or problems and steps to be taken or initiated through the parties concerned. They will also prepare safeguard monitoring

reports. Furthermore, the Consultant shall support APDCL in other reporting requirements towards as required for time to time.

- (xi) **Monitoring Project Disbursement:** Quarterly updating and comparative reporting on overall project disbursement and advising APDCL on rescheduling of budget against subprojects.
- (xii) **Training:** Provide on-the job training to APDCL's staff during all phases of the project. Training (based on a training needs assessment of the target staff and with reference to the EMP/RIPP) shall include technical design, procurement, contract administration, disbursement, financial management, implementation of environmental and IR and IPs safeguards, and the Gender Equality Social Inclusion Action Plan, O&M and other relevant matters. The safeguards-related training shall be designed to ensure that environmental management plan and social and gender action plan as specified in the project agreements are implemented.
- (xiii) **Capacity Building Measures:**

The Consultant shall provide

- (i) Formal and (ii) on the job training to both APDCL and Contractor's staff, plus BESS JV staff for BESS component in respect of EHS.

Formal training shall take the form of

- a. Briefings held on site at the beginning of each contract to ensure all staff working on each contract understand respective roles and responsibilities.

And

- b. One day workshops approximately 6 months interval (for the execution of works) or as instructed by the Agency that seeks to address common areas noted over the intervening period.

During their regular reviews, the Consultant is expected to provide on the job training on aspects such as in the use of checklists, performing various construction operations, setting-out of the works, quality control procedures, health and safety, social and environmental management and safeguard requirements, core labor standards, gender equality and gender-based violence and sexual exploitation risks, workers and communities health and safety, good contract management practices in conjunction with the ADB's procedures and other aspects as the circumstance dictate.

It is expected that available staff of the Consultant would be in a position to provide required level of training.

However, training on some of the specialized item(s), activities (such as, bird sensitive design) could be either provided by experts from the Head Quarter of the Consultant or could be outsourced. In such cases the Consultant is required to obtain approval of the Agency in regard to the CV, remuneration and other costs associated with it.

Thus, the scope under this activity comprises:

- (a) Prepare summarize training need assessment of Engineers of the Executive Agency (ies) and the training plan.

- (b) Based on the approved training plan, providing periodic on the job training for the engineers of the implementation agencies as far as procedural and safeguard aspects are concerned.

Consultant's proposal shall describe in details each and every component of the training as to how and where will these training be imparted including brief syllabus.

In addition, for EHS the consultant will prepare EHS good practice guidelines and SOP for O&M for the solar plant, pooling substation, distribution substations, and the BESS.

For the BESS JV the consultant will prepare an Environmental and Social Management System to allow the JV to address environment, health and safety, labor and social safeguard impacts and risks associated with its operations, including policies and procedures for implementing all its future BESS developments.

- (xiv) Development of a **Web Based Monitoring Tool: Develop a** web-based tool to monitor and update on regular basis the progress of the work also covering the key gender and safeguard indicators and activities. The tool should be accessible to the personnel associated with the project. The tool should have the following features:

- Ability for the MIS tool to be customized to meet the specific project requirements. This is planned to be managed through a User Requirement Specification (URS) process developed between the consultant and the client within one week of project award. The required customizations need to be implemented within one month after signing off of the URS.
- The MIS must have user-based access control to protect the integrity of Project Data.
- The MIS should be a web-based application, and not rely on dongle or other licensing mechanisms for access. The intent is to ensure all project participants can access the system.
- The MIS is also required to run via a mobile application to enable real time data collection and transmission when on site.
- The MIS needs to have a Dashboard that is intended for reporting to senior management.
- The MIS should support monitoring of planned vs actual progress and costs at various levels.
- The MIS should support monitoring of safeguard compliance including records of site checks etc.
- Document management and retrieval will be managed using the MIS, including correspondence and all project reports.
- Training for various levels of users must be provided, including refresher training as required.
- The MIS needs to have support or helpdesk functionality that is accessible to all project participants throughout the project lifecycle.

- All data must be categorized and handed over to the client on completion of the project.
 - **The consultant** will be responsible for procuring server/cloud access on which the MIS and all data will be stored. This will be included in the contract as a Provisional Sum.
- (xv) **Project Completion:** Assist APDCL in ensuring the Construction Contractor has achieved Pre-Commissioning with all pre-commissioning EMP requirements and issuance of the Completion Certificate, followed by Commissioning, Guarantee Test and issuance of the Functional Guarantees, confirmation all EMP requirements met, followed by Operational Acceptance. Assist the APDCL in preparing the EMP, RP and IPP (or combined RIPP) implementation compliance report.

Firm's Experience:

The firm shall have:

- (i) Minimum of five years demonstrated work experience in providing consulting services in the implementation of overall project management for similar assignments in solar power generation space.
- (ii) The firm shall possess experience in Designing and providing Project Management and Supervision support in implementation of Solar Energy Generation Projects of **minimum capacity of 200 MWp at a single location.**
- (iii) The firm shall possess experience in Designing and providing Project Management and Supervision support in implementation of EHV sub-stations and transmission lines of minimum 400 kV or above voltage class.
- (iv) The firm shall possess experience in the preparation, updating, implementation, supervision and monitoring of social and environmental safeguards plans, for similar size large solar projects or related energy projects in accordance with internationally accepted guidelines and practices (such as those of ADB, and other international financial institutions).
- (v) The firm shall possess experience in obtaining state and national environmental and social clearances for project implementation.
- (vi) Average audited annual financial turnover (net of taxes) of the firm during last three years (FY 2019-20, FY 2020-21 and 2021-22) should not be less than **INR 500.00 million** or equivalent
- (vii) **Experience with International Financial Institutions:** The firm should demonstrate that they have the experience in Designing and providing Project Management and Supervision support, including environment and social safeguards assessment and management:
 - (a) In implementation of Large-Scale MW Solar Power Generation Projects of minimum capacity of 100 MWp at a single location funded by any International Financial Institution **OR**
 - (b) In implementation of other power generation projects, Hydro based power project or any other Renewable Energy Project of minimum capacity of 100 MW funded by any International Financial Institutions **AND**

- (c) In implementation of Transmission projects (Grid Substation & transmission lines of minimum 400 kV or above voltage class) funded by any International Financial Institutions
- (d) Knowledge and experience in assessment of environmental and social impacts of development projects including on IR and IPs impacts, and their management and mitigation according to the safeguard policies' requirements of IFIs

Note:

1. *The Tender of only those Bidders will be considered who will produce documentary proofs to fulfill their experience as mentioned above.*
2. *The Bidder shall furnish documentary evidence by way of tender document, Letter of award (LOA), copies of Contract, Client certificate for successful completion of the assignment, Audited Balance Sheet and Profit & Loss Account etc., along with the Bid to establish experience / track record and financial capabilities meeting Bid Evaluation Criteria.*
3. *Submission of Client certificate for successful completion of the assignment is mandatory.*
4. ***Experience referred to in Firm's Experience shall be evaluated only for those projects where the consultant has provided full time project implementation support thought the execution of the project, not for those contract which involves only DPR preparation, Third Party Inspection works etc.***

5.1 Key Timelines or Milestones

Milestone	Number of Copies	Time Schedule
Inception Report	One hard Copy and electronic submission in pdf format.	Within a period of 30 days from the date of issuance of Notice to Proceed.
Monthly Progress Reports along with a Presentation (in PPT Format) including E&S inputs	One hard Copy and electronic submission in pdf format.	Every month within 7 days of the commencement of next calendar month.
Quarterly Progress Reports including E&S inputs	One hard Copy and electronic submission in pdf format.	Every quarter within 15 days of commencement of next quarter.
Social and Environmental Documents and Survey Reports for each sub-project as outlined in the PAM/IEE Reports/EMPs including updated IEEs/EMPs as required, Resettlement Plan (RP) and IPP (Indigenous People's Plan, or RIIP) and environmental and social due diligence or audit	One hard Copy and electronic submission in pdf format.	Within 4 weeks from the date of completion of surveys. Prior to Contractors' Mobilization and to be cleared from ADB

Milestone	Number of Copies	Time Schedule
reports (existing and/or associated facilities as may be applicable), corrective action plans as required, and the RIPP compliance implementation report.		
Social & Environmental Monitoring Reports (As required by the project categorization, per the frequency stated in the PAM, EMP and RIPP)	One hard Copy and electronic submission in pdf format.	Biannual - Within 5 working days after end of each 6 months/reports are due January (July-December period) and July (January-June period) for submission to ADB by the 15th.
Training Need Assessment Report and Capacity Development Plan	One hard Copy and electronic submission in pdf format.	Within 3 Weeks from commencement of Project
E&S: Safeguard, GAP training to APDCL officials and contractors.	-	Per capacity development plan, as and when required by the Client. Safeguard training to be reported in the E&S monitoring reports.
Reviews of Design & Drawings & Plans	-	Within maximum 14 days for each design & drawings.
EHS good practice manual and SOPs for environment and H&S (labour) for the solar plant, pooling substation, distribution substations, and the BESS	One hard Copy and electronic submission in pdf format.	To be submitted prior to commissioning of the first project components – draft for review by APDCL followed by final.
ESMS for the BESS JV	One hard Copy and electronic submission in pdf format.	To be submitted for adoption by JV before first disbursement in relation to the BESS component.
Any Other reports required for the execution of the Project	One hard Copy and electronic submission in pdf format.	As and when required by the Client.
Annual Progress Report	One hard Copy and electronic submission in pdf format.	Every year within 15 days of commencement of next year. For the purpose of Annual Progress Report the year shall mean and refer either to Calendar year or other suitable period as APDCL may decide in consultation with the PMC.
Draft Project Completion	One hard Copy and	Within 6 weeks after completion of

Milestone	Number of Copies	Time Schedule
Report including E&S input	electronic submission in pdf format.	final package.
Final Project Completion Report including E&S input	Electronic submission and 3 hard copies	Upon completion of last project, within 4 weeks after receiving and addressing comments by APDCL and on draft Completion Report.

5.2 Team Composition and Qualification Requirements for the Key Experts (and any other Requirements that will be used for evaluating the key experts under data sheet 21.1 of the ITC)

The PMC will provide the services of the following personnel, where each expert will provide the person-months stated against the listed specialty. The PMC consultant must determine those key inputs that can only be undertaken in-country and where possible the PMC is expected to be innovative in determining how deliverables can be achieved remotely. However, it should be noted that experts involved in EMP oversight including a) Environmental Specialist, (b) Health & Safety Specialist, (c) Ecologist, (d) Labor Expert, and (e) resident EHSS staff must be based on-site due to the nature of their work and because there is a requirement for full time supervision and monitoring of the contractor by PMC. For EHS staff deployment to individual subproject sites must be commensurate with site requirement and work progress and for resident staff to ensure continued supervision an alternate must be provided by PIC during periods of sick leave or annual leave more than 1-2 days. **A Firm can nominate a person for only one Expert's position. However, Team Leader* must be Solar Power Plant Expert & Deputy Team Leader must be Resident Engineer (Solar) and be a National Expert.**

Sl. No.	Position	Position	Total Person-months	Person-months (Field Office)	Person-months (Home Office)
a	Team Leader*& Solar Power Plant Expert	International	36	30	6
b	Power Systems Expert	International	21	15	6
c	Environment Specialist (Lead)	International	15	10	5
d	Health and Safety Specialist (Lead)	International	12	8	4
	Total International Experts		84	63	21
e	Civil and Structural Expert	National	12	11	1
f	Procurement & Contract Specialist	National	12	11	1
g.	ESMS Expert (BESS JV)	National	6	0	6
h.	Environment Specialist	National	12	10	2

Sl. No.	Position	Position	Total Person-months	Person-months (Field Office)	Person-months (Home Office)
	(Support Lead re Distribution and BESS)				
I	Health and Safety Specialist (Support Lead re Distribution and BESS)	National	9	7	2
j	Ecologist	National	18	16	2
k	Labor Expert	National	15	13	2
l	Social Safeguard Specialist	National	12	11	1
m	Gender Expert	National	6	5	1
n	Community Development and Livelihood Specialist	National	6	5	1
o	Deputy Team Leader & Resident Engineer (Solar)	National	60	54	6
p	Resident Engineer (Transmission)	National	18	16	2
qn	Resident Environment, Health and Safety Supervisor (EHSS) – Solar Power Plant	National	18	16	2
r	Resident Environment, Health and Safety Supervisor (EHSS) – Distribution Component and CTU Transmission Line	National	18	16	2
s	Resident Environment, Health and Safety Supervisor (EHSS) – BESS Component	National	12	11	1
t	Financial Expert	National	18	16	2
u	PPP Expert	National	6	5	1
v	Battery Energy Storage Expert	National	6	5	1
	Total Man Months-NATIONAL		264	228	36
	Total Man Months (International+ National)		348	291	57

(N.B. An expert can apply for only one position)

The assignment will require approximately **348** person-months and will be implemented over a **5** years period commencing from the date of signing of the contract.

The Consultant's Proposal must include **the minimum Key Experts' time-input of 348 person-months.**

The PMC will also provide as non-key experts all the necessary environment, biodiversity, social, labor, health and safety and gender expertise to support its supervision and monitoring and provide the necessary safeguards capacity building for APDCL to help

ensure satisfactory EMP implementation. Shortlisted firms may propose additional non-key experts if required to ensure all aspects of the safeguard work can be undertaken as specified in the scope of services. For example, experts in flora and fauna surveys, bird sensitive design, SF6, oil management, e-waste management where such services are required by the EMP requirements but the expertise is topic specific and outside the more general expertise of key experts proposed.

In addition to above, the following **support staff** shall be provided by the Consultant for 60 Months for entire duration of the project:

Support Staff	Person Months (Field Office)
1. Civil Engineer	36
2. Engineer (Solar)	60
3. Electrical / Power System Engineer	36
4. Project Accountant	60
5. Office Manager	60
6. Office Assistant/MIS Executive /Documentation Manager	60
Total	312

The break-up of allocation of Person – Months for the entire contract period of 5 years commencing from the date of signing of the contract should not be less than the following person -months schedule:

No.	Name Position (as in TECH-6)	Person -Months in 5 years contract duration			Person -Months in first 3 years contract duration			Person -Months in last 2 years contract duration		
		Time Input in (Person months) (Field office) [<i>@70% of total person month</i>]	Time Input in (Person months) (Home office) [<i>@30% of total person month</i>]	Time Input in (Person months) (Home/Field)	Time Input in (Person months) (Field office) [<i>@70% of total person month</i>]	Time Input in (Person months) (Home office) [<i>@30% of total person month</i>]	Time Input in (Person months) (Home/Field)	Time Input in (Person months) (Field office)	Time Input in (Person months) (Home office)	Time Input in (Person months) (Home/Field)
A	KEY EXPERTS (International)									
1	Team Leadership* & Solar Power Plant Expert	30	6	36	27	3	30	3	3	6
2	Power Systems Expert	15	6	21	13	5	18	3	0	3
3	Environment Specialist	10	5	15	11	5	15	0	0	0
4	Health and Safety Specialist	8	4	12	8	3	11	1	0	1
	Total Person - Months (KEY EXPERTS: International) ----- (A)	63	21	84	59	16	74	7	3	10
B	KEY EXPERTS (National)	Time Input in (Person months) (Field office) [<i>@90% of total person month</i>]	Time Input in (Person months) (Home office) [<i>@10% of total person month</i>]	Time Input in (Person months) (Home/Field)	Time Input in (Person months) (Field office) [<i>@90% of total person month</i>]	Time Input in (Person months) (Home office) [<i>@10% of total person month</i>]	Time Input in (Person months) (Home/Field)	Time Input in (Person months) (Field office)	Time Input in (Person months) (Home office)	Time Input in (Person months) (Home/Field)
1	Civil and Structural Expert	11	1	12	10	1	11	1	0	1
2	Procurement & Contract Specialist	11	1	12	11	1	12	0	0	0
3	ESMS Expert (BESS JV)	0	6	6	0	6	6			
4	Environment Specialist (Support Lead Distribution Component and BESS)	10	2	12	10	1	11	1	0	1
5	Health and Specialist (Support Lead Distribution Component and BESS)	7	2	9	7	1	8	1	0	1
6	Ecologist	16	2	18	11	1	12	0	0	0
7	Labor Expert	13	2	15	11	1	12	0	0	0
8	Social Safeguard Specialist	11	1	12	11	1	12	0	0	0

9	Gender Expert	5	1	6	5	1	6	0	0	0
10	Community Development and Livelihood Specialist	5	1	6	5	1	6	0	0	0
11	Deputy Team Leader & Resident Engineer (Solar)	54	6	60	32	4	36	24	0	24
12	Resident Engineer (Transmission)	16	2	18	16	2	18	0	0	0
13	Resident Environment, Health and Safety Supervisor (EHSS) – Solar Power Plant	16	2	18	16	2	18	0	0	0
14	Resident Environment, Health and Safety Supervisor (EHSS) – Transmission Work	16	2	18	16	2	18	0	0	0
15	Resident Environment, Health and Safety Supervisor (EHSS) – BESS component	11	1	12	11	1	12	0	0	0
16	Financial Expert	16	2	18	16	2	18	0	0	0
17	PPP Expert	5	1	6	5	1	6	0	0	0
18	Battery Energy Storage Expert	5	1	6	5	1	6	0	0	0
	Total Person Months (KEY EXPERTS: National) ----- (B)	228	36	264	198	30	228	27	0	27
	Total Person Months: Key Experts (International and National) ----- (A+B)	291	57	348	257	46	302	34	3	37
C	NON-KEY EXPERTS (Support Staff)	Time Input in (Person months) (Field) [<i>@100% of total person month</i>]	Time Input in (Person months) (Home) [<i>@0% of total person month</i>]	Time Input in (Person months) (Home/Field)	Time Input in (Person months) (Field) [<i>@100% of total person month</i>]	Time Input in (Person months) (Home) [<i>@0% of total person month</i>]	Time Input in (Person months) (Home/Field)	Time Input in (Person months) (Field office)	Time Input in (Person months) (Home office)	Time Input in (Person months) (Home/Field)
1	Civil Engineer	36	0	36	36	0	36	24	0	24
2	Engineer (Solar)	60	0	60	36	0	36	24	0	24
3	Electrical / Power System Engineer	36	0	36	36	0	36	24	0	24
4	Project Accountant	60	0	60	36	0	36	24	0	24
5	Office Manager	60	0	60	36	0	36	24	0	24
6	Office Assistant/MIS Executive /Documentation Manager	60	0	60	36	0	36	24	0	24
	Total Person Months: Non-Key Experts ----- (C)	312	0	312	216	0	216	144	0	144
	TOTAL PERSON MONTHS: KEY AND NON-KEY EXPERTS ----- (A+B+C)	603	57	660	473	46	518	178	3	181

*NOTE: The support staff mentioned is the **minimum** requirement and if the consultant thinks that they need to increase the manpower in field, then they have to increase the same at the same quoted price.*

The support staff should preferably have the experience in the region (working level fluency in local language (s)/ knowledge of local culture or administrative or administrative system, government organization, etc.

The Support Staff CVs will not be evaluated during the technical evaluation. However, the cost of the Support Staff shall be evaluated during the financial evaluation. The payment will be based on the actual man-month used for the main staff and the support staff. The Project accountant will also liaise with APDCL finance / accounts department to ensure that the audit reports as well as financial progress reports are submitted in time.

5.2.1 Qualifications, Experience and Duties of Key Personnel

a. Team Leader (TL) & Solar Power Plant Expert

The Project Manager will be responsible for managing and coordinating the overall project implementation as well as all reporting activities, and liaison with stakeholders.

- The TL will have a Masters degree in electrical engineering or relevant discipline from a reputable institution, with at least 20 years working experience in construction, operation, and management of power projects, with at least 10 years' experience in renewable energy projects. The TL will also have experience in power systems planning, engineering and design, operation, and management of power plants, especially grid-connected solar photovoltaic projects and related transmission and support systems
- He/she should possess at least 5 years of experience in management of design and build contracts of solar plants as Engineer to the contract of similar assignment.
- The TL will have work experience in developing countries and will preferably have experience working on ADB or other international development agency projects as team leader.

The TL's main duties include but are not limited to:

- (i) Control day-to-day operations of the project and report to APDCL.
- (ii) Present to APDCL the technical, safeguard and financial progress and issues, and actively work with all stakeholders to resolve such issues.
- (iii) Conduct overall supervision of activities performed by the PMC team members at power plant and other construction sites and report to APDCL.

During construction stage

- (i) Supervise the review of the detailed designs prepared by the Contractor. He will review the key design assumptions and key features of detailed and basic design of the solar PV plant prepared by the Contractor
- (ii) Supervise preparation of the project implementation schedule and its revisions when required and finalize it in consultation with APDCL.
- (iii) Review and approve essential drawings and design documents related to Solar PV Plant including power system produced by the Contractor ensuring they reflect applicable EMP requirements.
- (iv) Support APDCL in ensuring adherence to final project design
- (v) Supervise the PMC team members' activities such as review and approval of drawings and design documents, supervision, management and monitoring of construction process, witness and approval of equipment testing and commissioning, supervision of all works of the contractor, quality assurance, and supervise the Contractor's activities and enhance coordination among them.
- (vi) Supervise the PMC team members' support to APDCL in implementing all safeguards matters encompassing social, health and safety (labor) and environmental aspects, following the plans prepared during project preparation.

- (vii) Arrange records to be kept and regular photographic evidence to be collected of the project progress.
- (viii) Prepare reports and documents specified in the ToR (refer to Deliverables Table).

Other duties

- (i) Assess and supervise cost-benefit analysis of deviations in construction phase from the planned design, etc.
- (ii) Maintain proper recording of events leading to delays in construction and operational activities
- (iii) Regularly monitor contractor's compliance with health and safety obligations as per relevant standard including HS-C19.
- (iv) Ensure adherence to all statutory and EMP requirements.
- (v) Spearhead and supervise the execution of skills transfer programs for APDCL personnel.
- (vi) Assist in maintaining sound external relations and personnel relations.
- (vii) Prepare reports for submission to government and ADB on key issues during operation.
- (viii) Provide expert inputs to the capacity development plan and act as resource person/trainer/facilitator in the capacity development activities
- (ix) Review grid connection design and electrical works of the PV plant both in DC and AC sides
- (x) Ensure adherence of the electrical works to project safety plan and quality assurance plan, as well as any applicable EMP requirements.
- (xi) According to area of expertise, provide inputs to the capacity development plan and act as resource person/trainer/facilitator in the capacity development activities
- (xii) Any other related activity as may be reasonably requested by ADB

b. Power system expert

The expert shall have a bachelor's degree or higher degree in electrical engineering or similar fields and at least 8 years of relevant experience in power systems planning, engineering and design, operation, and management of power plants, especially grid-connected solar photovoltaic projects and related transmission and support systems. The expert shall have at least one large-scale grid-connected PV experience (larger than 50 MWp). Previous experience in India, is desirable. The power systems expert shall have the following responsibilities:

- (i) Review grid connection/integration design and electrical works of the PV plant both in DC and AC sides
- (ii) Ensure adherence of the electrical works to project safety plan and quality assurance plan, as well as any applicable EMP requirements.
- (iii) According to area of expertise, provide inputs to the capacity development plan and act as resource person/trainer/facilitator in the capacity development activities
- (iv) Any other related activity as may be reasonably requested by ADB
- (v) Planning, designing, monitoring and supervision works required for implementation of the distribution system enhancement works under the scope of the project

c. Civil and Structural Expert (CSE)

The CSE will have a Masters degree in civil or structural engineering, with at least 15 years of experience in design of foundations and structures, including experience with solar power plant foundations and structures, including in developing countries on projects financed by international financing agencies.

The Expert should have minimum 10 years of relevant experience in designing, quality monitoring and supervising of transmission line and Substations civil foundation works with voltage levels covering upward up to 400kV.

The expert will be responsible for the following:

- i) Planning, review of design and overseeing the construction and maintenance of building structures facilities for the substations, transmission line tower foundations & substation equipment foundations taking into consideration, but not limited to, seismic factors and other prevailing safety norms, and ensuring EMP requirements are met;
- ii) Review and approve essential drawings and design documents of civil works produced by the Contractor, in respect of the solar power plant ensuring they reflect applicable EMP requirements.
- iii) Support APDCL in ensuring adherence to final project design.
- iv) Conduct site visits during construction phase to verify quality of civil works, identify any problems during project implementation, propose remedial actions and promptly report any outstanding issues to APDCL.

- v) Advise APDCL on any contractual or technical disputes that may arise between the contractor and APDCL related to civil construction during the implementation phase.
- vi) Execute skill transfer programs for APDCL personnel during the construction stage
- vii) Prepare reports and documents specified in the ToR.

d. Procurement and Contract Specialist (PCS)

The CPS will have a degree in engineering or relevant discipline from a reputable institution preferably with a higher qualification in Contract Law, with at least 10 years of experience in construction of renewable energy projects, infrastructure or major civil works, particularly related to contract management and procurement activities, including experience in developing countries. The CPS will have at least 10 years of working experience under Asian Development Bank, World Bank or similar procurement guidelines with demonstrated knowledge in FIDIC and ENAA contract management.

The expert will be responsible for the following:

- (i) Review contract documents from the contractual point of view
- (ii) Support APDCL in running the bid management process through selection and negotiation of contract package.
- (iii) Supervise all works from the contractual point of view.
- (iv) Prepare reports and documents specified in the ToR.
- (v) Set up the procurement procedure for the project.
- (vi) Record events leading to delays in construction activities.
- (vii) Execute skills transfer to APDCL personnel during all stages of the project.
- (viii) Maintain records documenting decisions made at meetings, progress of project implementation and changes to contract plans.
- (ix) Coordinate with the environmental and social specialists and ensure that provisions on environmental and social requirements are included in the tender and contractual documents.

e. Environment Specialists (ES) (international and national positions)

The Experts shall have a Master's degree in environmental science / environmental management, or other related fields. He/she should have at least 15 years of total experience in carrying out environmental impact assessment and management of infrastructure projects and minimum of 10 years' experience in supervision, monitoring and implementation of environmental management plans (EMPs) and preparing environmental monitoring reports, including for the international solar power and transmission line projects and for the national distribution projects. Experience in implementation of at least in six MDB funded projects is essential. ISO 14001 implementation in the construction or industry sectors is required. The international expert will also have experience in a range of countries other than India and with mature environmental assessment and management enforcement practices, preferably in the power sector. In-depth understanding and demonstrated application of international good industry practice is essential. Experience in training and developing good practice guidance is essential. High standard of oral and written English essential. The international will lead the

EHS team, they will also lead on the solar component. The national will support the international by leading on the distribution and BESS component under their overall supervision and guidance.

Broadly, the expert together with the other EHS experts of PMC will be responsible for the following:

- (i) Support APDCL/JV and the project management unit (PMU) in ensuring compliance with loan covenants related to environmental safeguards as well as state and national EHS laws and regulations.
- (ii) Ensuring all aspects of the project comply with EMP requirements, compliance to national laws, and developing the capacity of APDCL/JV staff assigned to the project.
- (iii) PMC tasks as listed in the EMP and supervision of ecologist, H&S, labor expert and resident EHSS staff with respect to their tasks. The international will supervise the national environment and health and safety experts supporting the distribution and BESS components.
- (iv) Lead the preparation of monthly/quarterly report inputs and semiannual/annual environment management reports (EMRs, one consolidated report is required covering all components) which shall be submitted based on the agreed template with ADB.
- (v) Review progress on EMP implementation (environment, labour, health and safety) and enforce the required time-bound corrective actions for non-compliances as the Contractor work progresses, initiate and conduct inquiries and prepare reports following any incidents of violations, of environment, labour, health and safety aspects.
- (vi) Develop a training plan and lead all introductory and ongoing EMP training of the Contractor's staff, PMC staff, APDCL/JV staff and also pre EHS good practice guidelines/SOP and lead training on environment, health and safety (labor) to APDCL and other staff taking-over the power plant and internal transmission lines. All training materials to be provided in a format that can be used for future reference, document attendees for training through photographs and attendance list for reporting purposes.
- (vii) Ensure all EMP pre-construction requirements, permissions and permits are in place before the commencement of related work are done; and maintain records with copies of all the clearances, permits, licenses, and insurances obtained.

Tasks include the following, but not limited to:

- (a) Review the environmental assessment and environmental management plan prepared for the project to understand the background, environmental, labour, health, and safety issues, proposed project activities, mitigation and monitoring requirements of the project
- (b) Update as necessary environmental documents for each sub-project (e.g. to reflect the final solar layout) and take necessary steps to ensure compliance of the stipulated requirements in the Initial Environmental Examination (IEEs) for the project, including but not limited to, preparing all the required reports in accordance with ADB SPS wherever required prior to contractors' mobilization.
- (c) Identify potential gaps, if any, in environmental (including labour, health, and safety) issues of solar power plant, sub-stations and transmission lines, distribution lines and

BESS in terms of their nature, magnitude, extent and location and timing and duration and recommend inclusion in mitigation measures

- (d) Ensure site specific assessment checklists and consultation proformas are completed by the contractor of the distribution component, review and verify the findings through desk based and field visits to all lines. Check all final alignments for encroachment into wildlife sanctuaries (not permitted), ESZ including nominal 10km if ungazetted for Assam and Nagaland, elephant reserves, forest land, KBA, IBA, ASI and state protected monuments and unknown physical cultural resources as mapped by Directorate of Archaeology (not permitted).
- (e) If encroaching on ESZ including nominal 10km if ungazetted, elephant reserves, forest land, support Power Department in applying for and securing from the Forest Department all no-objection certificates or forest clearances required for the final alignments proposed by the contractors before works commence;
- (f) Undertake site specific assessments where required and update the IEE to reflect the site-specific assessment of final alignments including identifying mitigation measures required
- (g) Review documentation and undertake site visits to confirm that all corrective actions for existing facilities have been adequately implemented prior to a contractor being given access;
- (h) Informed by the EMP training requirements assist APDCL/JV in identifying training needs for PMU/PIU and corporate staff and identify suitable trainings on environmental, health, safety and labor issues including on-site trainings. In doing so assist APDCL on capacity building
- (i) Conduct a Training Needs Assessments informed by the EMP training requirements and then conduct training workshops for field level APDCL/JV staff, resident PMC staff, and contractors on the requirements and implementation of the Environment Management Plan on at least a bi-annual basis. Orientation will be conducted prior to mobilization
- (j) Conduct on the job or site based practical training for the resident APDCL/JV/PMC staff and contractors' environmental staff while implementing the EMP during each and every site visit
- (k) Assist APDCL/JV to establish a multi-layer Grievance Redressal Mechanism including GRC to resolve the grievances of environment, health and safety (labor) matters in a timely manner, raising awareness of its existence with the affected communities and keeping documentation
- (l) Support APDCL/JV to prepare documents and fulfil steps required to process all environment safeguards related clearances that may be required including but not limited to tree cutting permits, no objection certificates etc. that are to be obtained/processed by APDCL pre-construction.
- (m) Ensure that all necessary clearances, consents & permissions (including but not limited to CTE, CTO, hazardous wastes permit, labour licenses etc.) from ASPCB (Assam State Pollution Control Board), Forest Departments and other line departments are in place
- (n) Obtain and maintain a copy of all environment related statutory clearances and permits required for implementation EMP for all sub projects

- (o) Assist APDCL/JV to implement, monitor and supervise the Environment Management Plan and solve environmental issues that may arise during the pre-construction and construction stage
- (p) During the preparation of bidding documents, ensure APDCL/JV include environmental responsibilities as explained in the IEE as "Environmental Contract Specifications (ECS)" and review the bidding documents to confirm that necessary EMP provisions and a copy of the disclosed EMP (as per ADB website) are included in the contracts prior to award for further implementation and compliance
- (q) Assist APDCL/JV to review detailed designs to confirm they incorporate all EMP measures and also review the Contractor's environment management plans (i.e., C-SEMP/O-SEMP and subplans)
- (r) Visit each sub-project area and ensure that recent, up to date information disclosure and meaningful consultations have been conducted and that all the primary baseline physical, chemical and biological data of environmental elements including per the EMoP pre-construction requirements are in place for all subprojects prior to mobilization
- (s) Ensure that the location and timing of checking / testing all environmental parameters are in accordance with the EMoP and results are reflective of site and seasonal conditions
- (t) Prepare or review (if already existing) monitoring checklists for weekly, fortnightly and monthly checklists (as necessary) for monitoring implementation of the EMP by the contractor and by PMC EHS team
- (u) Facilitate monthly EHS meetings/site walkovers of all active project sites of all subprojects during the construction period to check resident EHSS supervision and monitoring activities and adequate implementation of EMP measures and, advise APDCL and contractors if improvements are needed, document each site visit in field visit note including photographs
- (v) In addition to monthly site visits carry out at least quarterly in-depth environment audits and random spot checks of all contractors to verify compliance
- (w) Assist contractor/APDCL in undertaking quantitative monitoring required by the EMoP and provide advise (e.g. templates) for adequate record keeping for environmental monitoring purposes
- (x) Facilitate ongoing information disclosure (including local IEE and EMR disclosure) and consultations between APDCL/JV, the contractor and local people or other relevant agencies where necessary, prepare a community liaison plan, and assist APDCL in conflict resolution on environmental issues during executing stage of the project. Maintain proper records of all environment related grievances & consultations and details on how they were addressed
- (y) Help APDCL/JV and the contractors respond to any environmental grievances and to develop and implement corrective action as necessary to address exceedance of performance standards or non-compliance issues
- (z) Propose appropriate mitigation measures for the unanticipated adverse environmental impacts, including conditions set out in relevant permits and clearances as and when required.
- (aa) Based on review of the IEE and Environment Management Plan (EMP), make necessary updates/amendments (including conducting additional meaningful consultations) for ADB

review and clearance if design/scope changes occur or any other unanticipated impacts arise during implementation and any issues are not covered

- (bb) Undertake gap analysis of APDCL's current practice versus national requirements and international good practice on pollution risk management and control for the design, operation and maintenance of its distribution substations, and develop an easy to understand good practice manual (standard operating procedures) with photos/drawings in order to facilitate adherence to national requirements and adoption international good practice
- (cc) Prepare EHS good practice guidelines and SOP for operational EHS management for adoption by APDCL/JV, as the mechanism by which the O&M EMP measures will be implemented for the solar power plant, pooling substation, distribution substations and BESS;
- (dd) Prepare or review (if already existing) reporting formats for monthly, quarterly, semi-annual monitoring reports of the contractor
- (ee) Prepare monthly, quarterly, semi-annual during construction, and annual during O&M environmental monitoring reports (on agreed template) based on at least monthly site visits to all active construction sites, at least quarterly site visits to all O&M sites, and completed checklists for submission to the APDCL and ADB throughout project implementation in compliance with ADB SPS. The reports submitted to APDCL shall report all violations of environmental matters (including but not limited to environment related grievances received, labour, safety & health of the laborers and locals, and the compliance conditions of consents & permissions), measures taken to restore compliance, all documentations/records, photos, and proofs of receipts and actions taken
- (ff) Preparation of mid-term evaluation & completion report at the end of the project on the implementation activities of the EMPs. The reports shall document with photographs all good practices adopted in the sub projects (so that such practices can be incorporated in future projects), trainings and workshops conducted, and the improvements noticed after training, consultations and analysis of grievances addressal.

f. Ecologist (EC)

The Expert will have a Master's or a higher degree in ecology or related field. They will have relevant professional experience of 15 years or more in undertaking ecological survey (flora and fauna) and assessments. At least 5 years of supervision of vegetation clearance and construction works in the field. Flora and fauna survey experience in the North East states of India and Assam is required. Experience in training and developing good practice guidance is essential. Experience with international MDB funded projects and projects in natural/critical habitats is essential. High standard of oral and written English essential, ability to speak Assamese will be beneficial.

- (a) Support the environment specialist to deliver their tasks with respect to the biological environment, providing training on biodiversity requirements, ensuring detailed designs, C-SEMP/O-SEMP and subplans are reflective of biodiversity requirements,
- (b) Monitor in coordination with the forest department implementation of the compensatory reforestation plan for tree cutting ensuring that no net loss of biodiversity is achieved,

- (c) Conduct ecology surveys per the EMP/EMoP, conduct ongoing consultations with the forest and wildlife department and local persons regarding wildlife sightings, oversee the wildlife rescue protocol, and supervise all vegetation clearance/cutting of trees, demolition works, earthworks, and all works located within forest or scrub habitat even if not forest land,
- (d) Ecology staff of PIC to participate in monthly EHS meetings/site walkovers. Undertake at least monthly site visits to all active project sites across all subprojects during the construction period.
- (e) Provide ecological inputs to development of good practice EHS guidelines and SOP for operation and providing APDCL staff training on the same.
- (f) Provide ecological inputs to monthly, quarterly, semi-annual/annual environmental monitoring reports (on agreed template) based on at least monthly site visits to all active construction sites, at least quarterly site visits to O&M sites, and completed checklists for submission to the APDCL and ADB throughout project implementation in compliance with ADB SPS

g. Health and Safety Specialist (HSS) (international and national positions)

The experts will have a Masters degree in field related to construction health and safety management and a recognized formal construction health and safety qualification e.g. IOSH or NEBOSH is essential. They will have at least 15 years' experience in carrying out health and safety supervision, monitoring and implementation of occupational and community health and safety plans for construction of major infrastructure projects, preferably in the power sector, with at least 5 years' experience in undertaking health and safety risk assessment. For the international, experience in a range of countries other than India and with mature enforcement practices for health and safety management is required. Experience of ISO 45001 implementation for construction or high-risk industry sectors such as oil, gas, thermal power generation or chemicals is required for the international. Understanding and demonstrated application of international good practice for occupational and community health and safety management such as per the IFC EHS General and Transmission/Distribution Line Guidelines and ILO's guidelines is essential. Experience in facilitating health and safety risk assessment workshops, trainings, and developing good practice guidance is essential. Experience with international MDBs funded projects is essential. A high standard of both oral and written English is required. The international will lead on the solar component. The national will support the international by leading on the distribution and BESS component under their overall supervision and guidance.

- (a) Support the environment specialist to deliver their tasks with respect to H&S, leading on H&S training activities, ensuring detailed designs, C-SEMP/O-SEMP and subplans are reflective of H&S requirements, etc.
- (b) Review documentation and undertake site visits to confirm that all corrective actions for existing facilities have been adequately implemented prior to a contractor being given access;
- (c) Facilitate health and safety risk assessment workshops for the design, construction, and operational risks related to subprojects to be attended by APDCL/JV and their contractors and resulting in risk assessments that will inform approval of detailed designs and the development of H&S Plans under the C-SEMP/O-SEMP;

- (d) Health and safety staff of PIC to participate in monthly EHS meetings/site walkovers. Undertake at least monthly site visits to all active project sites across all subprojects during the construction period.
- (e) In addition to monthly site visits, carry out at least quarterly in-depth H&S audits and random spot checks of all contractors to verify compliance
- (f) Help APDCL/JV to respond to any H&S incidents including incident reporting and corrective action
- (g) Undertake gap analysis of APDCL's current practice versus national requirements and international good practice on health and safety management for the design, operation and maintenance of its distribution substations, and develop an easy to understand good practice manual (standard operating procedures) with photos/drawings in order to facilitate adherence to national requirements and adoption international good practice;
- (h) Provide H&S inputs to development of good practice EHS guidelines and SOP for operation and providing APDCL/JV staff training on the same.
- (i) Provide H&S inputs to monthly, quarterly, semiannual/annual environmental monitoring reports (on agreed template) based on at least monthly site visits to all active construction and under O&M sites, and completed checklists for submission to the APDCL and ADB throughout project implementation in compliance with ADB SPS

h. Labor Specialist (LS)

The expert will have a Bachelor's degree or higher in field related to labor law and a minimum of 5 years of work experience in compliance to labor laws and labor acts, factory act, workforce management and related fields. Experience of liaison with various state/central labor departments is beneficial. Proficiency in English preferred. Ability to speak Assamese will be beneficial.

- (a) Support the environment specialist to deliver their tasks with respect to labor, leading on labor training activities, ensuring detailed designs, C-SEMP/O-SEMP and subplans are reflective of labor requirements, etc.
- (b) Labor staff of PIC to participate in monthly EHS meetings/site walkovers. Undertake at least monthly site visits to all active project sites across all subprojects during the construction period.
- (c) In addition to monthly site visits, carry out at least quarterly in-depth labor audits and random spot checks of all contractors to verify compliance
- (d) Help APDCL/JV to respond to any labor disputes including incident reporting and corrective action. Facilitate consultations between the contractor and workers or other relevant agencies where necessary and assist APDCL in conflict resolution on labor issues during executing stage of the project. Maintain proper records of all labor related grievances & consultations and details on how they were addressed
- (e) Provide labor inputs to development of good practice EHS guidelines and SOP for operation and providing APDCL/JV staff training on the same.

- (f) Provide labor inputs to monthly, quarterly, semi-annual/annual environmental monitoring reports (on agreed template) based on at least monthly site visits to all active construction and O&M sites and completed checklists for submission to the APDCL and ADB throughout project implementation in compliance with ADB

i. Social Safeguards Expert (SSE)

The Expert shall have a Master's degree in Social science / Social Welfare / Social Management or similar field with 10 years of total experience and minimum 5 years' experience overseeing projects with significant Land Acquisition, Involuntary Resettlement and Indigenous Peoples Impacts. The expert shall have good knowledge of ADB Safeguard Policy Statement (2009) on IR and IP safeguard requirements. Regional Experience in resettlement/livelihood restoration and stakeholder engagement will be an added advantage. He/she must have experience of at least two multilateral funded projects.

The overall responsibilities will be assisting the APDCL as part of the PMC tasks in this TORs, to update, implement and monitor the Resettlement Plan (RP) and Indigenous Peoples Plan (IPP) or the Combined Resettlement and Indigenous Peoples Plan (RIPP), and other safeguard documents as social due diligence reports as applicable. Specific tasks of the social safeguards expert will be, but not limited to the following:

- Work closely with APDCL and technical design team including conducting site visits (as possible jointly with the technical design team), to guide the technical design team on social and involuntary resettlement impact risks and requirements of ADB SPS (2009) and national laws and assess and identify design measures to avoid and/or minimize the IR and IPs impacts as possible; assist in planning compensation and mitigation measures for unavoidable impacts.
- Identify permanent or temporary impacts arising from IR and/or involuntary restrictions on land use or on access to legally designated parks and protected areas as applicable, and propose measures to minimize and mitigate the impacts.
- The primary responsibilities of the Social Safeguard Specialist are to advise and assist APDCL in mitigating Social and issues, prepare and implement the Resettlement Plan and Indigenous Peoples Plan or the Combined Resettlement and Indigenous Peoples Plan in compliance with the requirements of ADB Safeguard Policy Statement (SPS 2009) and national laws. Providing logistic Support, Administrative on and Implementation of Social Safeguards Planning documents and management & Monitoring of social safeguards Plans.
 - Update the census and socio-economic surveys of all affected households/APs, updated IR and IPs impact assessments and compensation rates for losses, with close collaboration with APDCL and Karbi Anglong Autonomous Council (KAAC);
 - Meaningful consultation (as per ADB SPS 2009) with affected persons, indigenous peoples communities and any individually affected HHs from indigenous people, and other stakeholders and disclosure of RP/IPP/RIPP leaflet at project sites;
 - Update the Resettlement Plan and Indigenous Peoples Plan or the Combined Resettlement and Indigenous Peoples Plan (RP and RIPP or Combined RIPP);

- Getting the Approval of updated RP/IPP/RIPP from APDCL and ADB and further disclosure;
- Guide and assist the APDCL in setting up the project level Grievance Redress Mechanism (GRM) for receiving, recording and resolution of complaints that may be received from the project affected persons and communities;
- Conduct meaningful consultation with IPs communities as per the ADB SPS (2009) on IPs requirements;
- Design social management system with regard to the implementation of RP and IPP or the Combined RIPP and other safeguard planning instruments;
- Propose indicators on key RIPP implementation tasks for integrating into the web-based monitoring tool for progress of project works;
- Assist the APDCL to include provisions in tender and contract documents on environmental and social safeguard requirements, including the EMP and RIIP, as well as requirements on gender based violence and sexual exploitation risks, core labor standards, and workers and community health and safety. Support the APDCL to evaluate the bids as applicable.
- Capacity Building Training on social safeguards to APDCL and other relevant agencies covering national, state guidelines and ADB Safeguard Policy Statement (SPS), 2009
- Undertake field studies to fill in identified gaps in socioeconomic databases; and confirm and update monitoring indicators on land acquisition, compensation payment, income restoration and rehabilitation, and resettlement activities;
- Implement the RP and IPP or the combined RIPP and ensure timely completion of RP/IPP/RIPP implementation with completion of payment of compensation, assistance, relocation and resettlement prior to commencement of civil work construction
- Establish a framework with monitoring indicators for safeguard performance monitoring;
- Ensure the management plans prepared by the project contractors are compliant with the ESMS.
- Addressing the grievance and record keeping, facilitate the resolution of grievances and provide updates on grievances status in the periodic environmental and social monitoring reports (SMRs) to be submitted to ADB for review, approval and disclosure.
- PMCs prepare monthly progress reports on progress of RP and IPP or the combined RIPP implementation and will ensure compliance in consultation with the Social and Environmental Safeguard Cell at APDCL on social, resettlement, and indigenous peoples aspects of the project including the progress in redressing APs' grievances and complaints.
- PMC safeguards specialists will monitor the safeguards compliance and RIPP implementation, and assist the APDCL to prepare the semi-annual monitoring report and will submit to PMU and PMU will submit it to ADB.
- Any other issues that may arise during the updating, implementing and monitoring of the RP/IPP or RIPP including due diligence report where necessary

j. Gender Specialist (GS)

The expert should preferably have a bachelor's or a higher degree in sociology, anthropology, social sciences or similar. The expert should preferably have relevant professional experience of 10 years or more. The expert will be responsible for assisting the APDCL in understanding and implementing actions envisaged in the project Gender

Equality Social Inclusion Action Plan (GESIAP), Livelihoods Restoration and Community Development Plan, and preparation and submission of the GESIAP implementation progress report quarterly. The specialist shall have good knowledge on ADB Policy on Gender and Development and ADB's strategic priority on accelerating progress in gender equality (Strategy 2030 Operational Plans) and country's national gender policies and agenda. Experience with similar assignments with ADB and its developing member countries is highly preferred.

He/she should be responsible for making necessary arrangements to accommodate for gender-inclusive engagements and participation of vulnerable people in the project's activities and consultations with APs and communities, as well as resolution of grievances from women and other affected persons that require gender sensitive approaches. He/she shall also ensure implementation of the social development and gender relevant features included in the design of the project, including monitoring of occupational and community health and safety, community awareness activities, compliance of core labour standards by the civil works contractors (if any), prevention of Gender-based violence (GBV) and Sexual exploitation (SE) risks.

k. Deputy Team Leader & Resident Solar Engineer (RSE)

The RSE will have a degree in engineering, with at least 8 years of experience in construction of Solar PV projects. The RSE will spend a minimum 90% of the allocated time on site.

The expert will be responsible for the following:

- (i) Support APDCL and TL in planning and preparation of strategy documents of the Contractor, regarding civil works.
- (ii) Supervise all works on site.
- (iii) Supervise Contractor's activities and enhance the coordination between Contractor and local communities
- (iv) Assist APDCL and TL to prepare reports and documents specified in the ToR.
- (v) Record events leading to delays in construction activities.
- (vi) Enforce all safety measures during construction.
- (vii) Assist in maintaining sound external relations and personnel relations.
- (viii) Maintain records documenting decisions made at Site meetings, progress of project implementation and changes to contract plans

I. Community Development and Livelihood Specialist (CDLE)

The Community Development and Livelihoods Expert will work with APDCL, KAAC and other relevant departments and provide support to identify and roll out appropriate livelihood activities and opportunities identified through a needs based and participatory

approach. The Expert will also focus on developing strategies to empower women and particularly well-functioning and operating village level self-help groups (SHG) or functional groups (FGs) in these areas and provide a potential model for future. The Expert will help APDCL staff in designing and implementing skills training, financing, and entrepreneurial opportunities at the affected household and SHG/FG level. The Expert will explore and help set up partnerships with other stakeholders to support design and implementation for livelihood activities. The Expert will preferably have background in business development, marketing and/or skills training with demonstrated experience of at least 10 years in small and micro scale ventures and will be responsible for linking the communities with market opportunities. Experience of working with international agencies would be desirable

m. Resident Sub-station & Transmission Engineer (RTE)

The Resident Sub-station & Transmission Engineer shall hold an engineering degree in electrical / mechanical (preferably Electrical) and shall have a professional work record of not less than 10 years in planning, designing, managing, quality assurance and supervising construction of EHV Sub-station & transmission line with voltage levels of minimum 400 kV and not less than 10 years in planning, designing, managing, quality assurance and supervising substations works with voltage levels of minimum 400 kV.

He/she shall possess experience in construction of Air/Gas Insulated Substation of minimum 400 kV.

He/she shall have also experience of not less than 10 years in survey of transmission line at voltage level of minimum 400 kV. Experience of Stringing of conductor, erection of special and multi circuit tower will be preferred.

The Transmission Engineer will undertake, but not limited to, the following:

- (i) Assist Team Leader and the power systems expert in review of design and drawings related to the Sub-station and Transmission Line;
- (ii) Assist Team Leader and the power system expert, in construction supervision and progress monitoring, of the works of Sub-stations and Transmission Line;
- (iii) Assist Team Leader in all other activities as entrusted by Team Leader.
- (iv) Ensure adherence of all safety norms as per the safety regulation of construction of Sub-station and transmission line during the whole construction cycle
- (v) Shall have to involve in planning, designing, monitoring and supervision works required for implementation of the distribution system enhancement works under the scope of the captioned project.

n. Resident Environment, Health and Safety (Labor) Supervisors (EHSS)

The EHSSs will have a degree or a higher qualification in a field related to health and safety, with at least 5 years of experience in the construction industry, preferably of renewable energy projects or major civil works or major transmission/distribution works. The EHSS will spend at least 90% of the allocated time on site. Degrees in construction or process health and safety

related field and a masters degree or higher is an advantage. The consultant should have a recognized formal construction health and safety qualification e.g., IOSH or NEBOSH. He/she must have the requisite number of years' experience in carrying out health and safety supervision, monitoring and implementation of occupational and community health and safety plans for construction of major infrastructure projects adopting international good practices for health and safety management, preferably in solar, distribution or related energy project. Experience in consulting services for implementation of large solar farm project and distribution works is an advantage. There will be three positions: one focused on overseeing full-time the solar power plant contractors, one focused on overseeing full-time the distribution line contractors and the transmission line associated with the solar plant, and one focused full-time on overseeing installation of the BESS component. Ability to communicate in local Assamese language will be an advantage.

The EHSSs shall assist and support APDCL in establishing and managing proper environment, health and safety/labour management systems throughout the implementation of the project including, but not limited to, the tasks listed below and the environment/health and safety/labour related roles and responsibilities of the consultant as detailed in the Project's EMP:

- (i) Assist the EHS team in the conduct of formal environment/health and safety/labor management trainings to APDCL and their contractors at the appropriate stage in project implementation as set out in the EMP, including preparation of all training materials in a format that can be used for future reference, document attendees for trainings through photographs and attendance list;
- (ii) Together with the EHS team, facilitate health and safety risk assessment workshops for the design, construction, and operational risks related to APDCL's project components to be attended by applicable EA and their contractors and resulting in risk assessments that will inform approval of detailed designs and the development of H&S Plans;
- (iii) Undertake daily site checks during the construction period to check adequate implementation of EMP measures and, advise ADPCL/JV, and their contractors if improvements are needed, document each site visit in field visit note including photographs;
- (iv) Guide contractor in undertaking monitoring required by the EMP and provide advice to contractors (e.g. templates) for adequate record keeping for environmental monitoring purposes;
- (v) Help APDCL/JV to document and appropriately respond to any environment, H&S incidents or labor grievances that occur during the project implementation;
- (vi) Support regular, in-depth environment/health and safety/labor audits and random spot checks to verify compliance to applicable requirements during construction, record any non-compliance and initiate necessary corrective actions;
- (vii) Help APDCL/JV to develop and implement corrective action as necessary to address expedience of performance standards or non-compliance issues related to environment/health and safety/labor; and
- (viii) Coordinate the implementation of the grievance redressal mechanism on-site and assist APDCL/JV to resolve on-going issues of environmental, social and health impacts during construction

o. Financial Expert (FE)

He/she shall possess minimum master's degree in accounting, business administration, or finance. He/she must have a minimum of 10 years of experience in financial management of loan financed projects, preferably with experience with ADB loan projects. Preference will be given to those who are certified public accountants or have other recognized accounting or financial management certification. He/she will manage the financial management system of the project, and establish a sound accounting practice and system to manage the resources available to the Project.

The Financial Expert shall perform the following but not limited to:

- (i) Support APDCL in ensuring that separate accounts for the project are duly maintained and that receipts and expenditures are duly segregated by financing source (e.g. ADB and counterpart funding);
- (ii) Develop and maintain a project accounting, reporting and financial management manual;
- (iii) Support APDCL in ensuring that a) all payments are duly prepared, reviewed, authorized, and recorded in the accounting system correctly and in a timely manner, and all expenditure items meet the eligibility criteria as defined in the ADB financing agreement, and are supported by adequate documentation (invoice, contracts, evidence of payments etc.) as outlined in the ADB loan disbursement handbook (2022, as amended from time to time);
- (iv) Conduct periodic analysis of the execution of the procurement and disbursement projections and provide analysis of the any significant variances between planned vs actual expenditures;
- (v) Support APDCL in conducting quarterly reconciliation of the project disbursement records and ADB's disbursement data available in the Loan Financial Information Services (LFIS) Portal to ensure the correctness and completeness of the project records and financial reports/statements. Follow-up on any discrepancies to ensure these are resolved in a prompt manner;
- (vi) Support APDCL in conducting monthly reconciliations of the various advance accounts designed to receive ADB financing and any related subaccounts (*if applicable*). Analyze and follow-up on all reconciliation items;
- (vii) Assist APDCL in preparing financial information and analysis to be included in the quarterly progress reports (QPR) in an agreed format to be submitted to ADB;
- (viii) Support APDCL in preparing separate project financial statements annually covering the activities financed under all the funding sources (e.g., ADB and counterpart funding) in a format agreed with ADB;
- (ix) Support the FREMAA and AADB in ensuring that the project financial statements are audited and that the audit report, the audited consolidated financial statements and the management letter(s) are submitted to ADB in a timely manner;
- (x) Assist APCL in managing fund flow in accordance with component and expenditure categories funded by the project;
- (xi) Assist APDCL in preparing annual budgets for project;

- (xii) Identify any issues in the financial management system for project implementation and recommend measures to address the issues identified;
- (xiii) Provide timely inputs on financial related matters to the team leader for preparing the project report.
- (xiv) Support APDCL in preparing for external and internal audits and following-up and resolution of audit observations;
- (xv) Assist APDCL in other tasks as assigned by the project management unit (PMU) head or project director or equivalent

p. PPP Expert (PPPE)

The PPP Expert will be at least B.E / B. Tech and MBA in related field or be a Chartered Accountant / Public Certified Public Accountant degree holder with at least 15 years' experience in supporting PPP Projects in the power sector and should have implemented at least 3 solar power projects. Experience in Eastern India will be an advantage.

The **PPP Expert's** tasks shall include but not be limited to the following.

- (i) Review the existing policy, legal, regulatory, and institutional framework to facilitate, guide, and manage the development of PPPs in the power sector applicable to Assam
- (ii) Identify and address challenges to scaling up private sector development and PPPs in Assam Power Sector
- (iii) Lead in formulating strategies and operational structure for inclusion of private sector in the project in consultation with ADB, APDCL, and relevant government agencies
- (iv) Review the project financial and economic models to assess the impact of proposed PPP structures on the project and the benefits / costs attached with each
- (v) Provide support throughout the project planning, investment decision preparation, and project structuring processes
- (vi) Review of contract documents for PPP component of the project, ensuring EMP requirements reflected, and suggest best course of contracting models which may be adopted.
- (vii) Support during bid process in responding to bidder queries, coordination with technical and legal experts and assistance in negotiations with bidders till signing of project agreements

q. Battery Energy Storage Expert

The consultant should have a minimum of 12 years of general experience of which minimum 10 years relevant experience. The expert should have at least a bachelor's or master's degree in engineering or other relevant areas with experience of at least 4 years' working on battery storage projects with government agencies at the central or state level; preferably in multilateral agencies funded projects to deliver projects across the battery storage value chain. Experience with BESS projects, including clean energy project undertaken in India will be an added advantage.

The Consultant shall carry out the following tasks:

Task 1: Prefeasibility and DPR Preparation

The expert will provide advisory support/TA during the planning phase for BESS project development. Key activities include-

- Support APDCL in identifying possible sites for BESS implementation in the state on Generation/Distribution/Transmission Side
- Support APDCL in decision making in identifying different value streams for BESS deployment, including innovative business model for procurement.
- Providing recommendations on possible modes for charging of BESS (RE Vs Non-RE)
- Assist in technical due diligence of BESS projects: Load curve analysis, network studies, system designing, technology selection, power evacuation, BOM/BOQ preparation, SLD design, etc.
- Support in assessing financial viability of BESS proposition.
- Ensuring project development as per necessary environment and social norms including the ESMS/EMP requirements
- Preparation of prefeasibility reports and DPRs for standalone BESS/RE+BESS projects
- Support in decision making for Go/No-Go Decision on overall feasibility and next stage (project tendering)

The Consultant needs to review, monitor and validate the work conducted by all third-party agencies/consultants engaged by APDCL/OTPC in the BESS development and ensure smooth progress as per timelines.

Task 2: Procurement Side Assistance

- Review of technical specifications, contractual and financial requirements and criteria for BESS procurement of entire system along with BOP including EMP requirements are reflected as appropriate
- Offer BESS related inputs towards preparation of RfP in line with international/domestic competitive bidding ensuring EMP requirements are reflected
- Offer BESS related inputs in drafting of EPC and O&M contracts ensuring EMP requirements are reflected
- Support APDCL in bid process management, tender evaluation, vendor due-diligence and award

- Review/support in development of Power Purchase Agreement, and other documents
- Assist APDCL in customizing the standard BESS model documents, including long-term/short-term contracts to be entered by APDCL with different stakeholders
- Provide advisory inputs in developing pitches/ agendas/notes/ write ups etc. for the consideration of Ministries and Government Departments of Centre and State for implementation of program

Task 3: Project Implementation and Monitoring Support

- Monitoring project development and implementation as per schedule: Progress including EMP implementation with support EHS team to be monitored and status report to be furnished on monthly basis to APDCL
- Ensuring project development as per project schedule and reporting any deviations
- Coordinate with key stakeholders involved and offer guidance on matters related to BESS project(s)
- Review of work carried out by EPC and O&M contractor and review progress in compliance with EPC and O&M contracts
- Monitoring project O&M activities with support EHS team and highlight any areas of concern

Task 4: Capacity Building and Knowledge Transfer

- Provide requisite information on technical, financial and regulatory fronts for BESS, as and when required, including amendments, and key upcoming policies
- Conduct quarterly training sessions/lectures for all stakeholders on project progress in BESS space.

ESMS Expert (BESS JV)

The ESMS expert will have:

- Bachelors and masters in environmental management or related field.
- At least fifteen (15) years of relevant experience in ESMS establishment.
- Experience in environment training and capacity development.
- Experience of developing ESMS to ISO certification standard, ideally for energy related sector.
- Experience of environmental management requirements for MDB general corporate finance projects.
- Fluency in English is required.

Tasks required include:

- Familiarize with the JV's structure and proposed corporate activities (BESS) through document reviews, meetings and consultations.
- Develop an ESMS for the JV at the corporate level. As part of the ESMS development, prepare environment, health and safety, labor, and social safeguards policies, implementing procedures, SOPs, guidelines, and manuals covering all aspects of environment management, health and safety management, land acquisition, community engagement, labor management,

gender, grievance redress, and other environment and social impacts and risks at corporate level related to their design, construction, operation and maintenance activities.

- Ensure the resulting ESMS is agreeable to the JV management to ensure its adoption by them prior to first disbursement of the equity investment, that it is capable of being ISO certified, and incorporates the following elements: (i) environmental and social policies and procedures, and applicable legal and other requirements; (ii) identification of impacts and risks of all the JV's proposed business activities (materials, processes, and services); (iii) organizational structure and staffing including skills and competencies on environmental and social safeguard-related areas with named staff assigned responsibilities under the ESMS and arrangements to fill any gaps with consultancy support, together with terms of reference for staff positions and consultants; (iv) staff and contractor training and awareness; (v) monitoring including pollution, health and safety, and labor management inspections and records; (vi) annual internal and third party ESMS audit arrangements and corrective action plans, as maybe required; and (vii) annual management reporting arrangement. GIIP such as the IFC ESMS Toolkit should be referred to by the ESMS expert in developing the ESMS: https://www.ifc.org/wps/wcm/connect/6147cbba-efe8-4879-ba77-c7af63bede7c/ESMS_Toolkit_General.pdf?MOD=AJPERES&CVID=I50s0OZ
- Support and guide JV on getting the ESMS ISO certified if desired.
- Provide formal training and on-the-job advice and support to the environment, health and safety staff and JV management in relation to their corporate responsibilities under the ESMS, ensuring they have the capacity to identify the impacts and risks of future opportunities and advocate for environmentally sustainable and climate resilient planning and development in the future preparation of operational policies and procedures, strategies and road maps, and BESS projects of the JV.
- For roll out of the ESMS provide the environment, health and safety staff and management with formal training in the form of train-the-trainers on implementation of the ESMS following adoption. Training modules to cover environment, health and safety, land acquisition, community engagement, labor, gender, grievance redress, and any other environment and social impacts and risks that are covered by the ESMS and in format that the environment, health and safety staff and management can deliver the training to other staff as part of the ESMS later on with training materials provided to them.
- Provide formal training and on-the job-advice and support to the environment, health and safety staff and management in relation to their project responsibilities (initially only the project under the BESS component is being delivered but will expand to other BESS projects in future) to enable them to manage the safeguard aspects in compliance with the ESMS requirements.
- Support preparation of a report on ESMS implementation as part of the project's EMR.

5.3 Reporting Requirements and Time Schedule for Deliverables

At a minimum, list the following:

- (i) format, frequency, and contents of reports;**
Refer section 5.1 key timelines or milestones

- (ii) number of copies, and requirements to electronic submission in pdf and word format (USB Drive and e-mail). Final reports shall be delivered in USB Drive and e-mail in addition to the specified number of hard copies;**

Refer section 5.1 key timelines or milestones

- (iii) dates of submission; and**

Refer section 5.1 key timelines and milestones

- (iv) persons to receive them; etc.**

*Chief General Manager, NRE, APDCL, Office at 2nd Floor, Annex Building ,
Bijulee Bhawan, Paltan Bazar, Guwahati-1*

5.4 Relevant background information or materials for the assignment

- (a) APDCL will establish a project management unit (PMU). During the implementation of the project, APDCL shall provide coordination and liaison with all relevant stakeholders.
- (b) APDCL will make available for the duration of the services, the relevant reports, data, and documents in their possession pertinent to the proposed services and necessary for the requested services as maximum as possible within its capacity.
- (c) APDCL will provide and make available to the Consultants:
 - i. Organizational support: assistance in arrangements for workshops, meetings, and field visits; and access to required data, maps and other relevant information as available within its capacity.
 - ii. Arrangement with other governmental and provincial agencies, authorities and offices for receiving their cooperation as necessary for the execution of the services.

5.5 Indication is downstream work is potentially considered

The Consultant is advised that, subject to performance and necessity, additional work, prior to the conclusion of the contract, may be negotiated with the consultant.

5.6 Training and capacity building requirement—specify

During regular work, each national and international expert in the PMC's team will transfer knowledge and skills to persons in APDCL's PMU or other persons nominated by APDCL to work alongside the PMC.

In addition to such regular skills transfer activities, the PMC should propose workshops on the following topics. These training/workshops/seminars should be scheduled in consultation with APDCL, to coincide with the availability of national and international consultants in Guwahati and covered within the person-months allocated to each consultant. APDCL will provide the venue and other facilities to conduct these training and capacity building sessions.

- a. Resource assessment and conceptual design of solar power plants

- b. Installation, testing and commissioning of solar power plants
- c. Grid integration and related issues
- d. Planning and execution of operation & maintenance of solar power plants
- e. Environmental and Social Safeguards Management, Implementation, Monitoring, and Compliance (ADB SPS, State, and National Level)
- f. Good Labour, Health, and Safety Practices in Solar Power Project Development
- g. Addressing Grievances and other related activities
- h. Other Relevant Topics including per the capacity building plan which will be set out in the EMP/RIPP

6. COVID-19 Team Considerations

The PMC must address COVID-19 restrictions, controls and requirements, Technical Proposal and shall also include a Health and Safety COVID-19 Plan (HS-C19 Plan), in accordance with the relevant government regulations and guidelines on COVID-19 prevention and control of the country as applicable and to international good practice guidelines, such as World Health Organization 2020. Considerations for public health and social measures in the workplace in the context of COVID-19. Geneva. Available here: <https://www.who.int/publications-detail/considerations-for-public-health-and-social-measures-in-the-workplace-in-the-context-of-covid-19>.

The PMC must include quarantine and PPE costs both for expatriation and repatriation of consultants where it is considered essential for in-country inputs. The PMCs personnel shall comply with Covid 19 related quarantine requirements applicable to India.

COVID-19 Specific Duties/Responsibilities (Refer to Annex 1 COVID online assistance)

- a. "Review the Site-Specific Health and Safety Management Plan (SSHSMP) for the Project that is prepared and submitted by the Contractor. Then, make recommendation to the Employer in relation to the approval of the SSHSMP. Communicate the approved SSHSMP to all consultants and the contractor throughout all project stages. Should any unforeseen events occur, review the updated SSHSMP and make recommendation to the Employer in relation to the approval of the SSHSMP."
- b. "In addition to the obligation to maintain safety on site, the PMC will be required to undertake formal monthly safety audits throughout all stages of the Project."
- c. "Prepare the Project Execution Plan, which inter alia, include how management of SSHSMP is to be addressed throughout all stages of the Project."

7. Client's Input and Counterpart Personnel

(a) *Services, facilities, and property to be made available to the Consultant by the Client:*

- Consultant shall have to arrange their own Office accommodation for the Team Leader and other project staff. The office accommodation shall be located in

Guwahati within a radius of not more than 2 km from APDCL's HQ. Additional Project site office to be established by the consultant nearest to the project site for day to day monitoring of the project activities at site.

- The Consultant should make their own arrangement for office furniture, equipment, stationeries, photocopier, printer communication facilities like telephone, internet connection etc. including its maintenance thereof. Vehicle for transportation to Project site and to & fro to APDCL's HQ shall be arrange by the consultant of its own.
- Monthly rent for the Office Accommodation and vehicle shall be the responsibility of the Consultant Firm.

(b) Professional and support counterpart personnel to be assigned by the Client to the Consultant's team:

APDCL will establish a Project Management Unit (PMU). During the implementation of the project, APDCL shall provide coordination and liaison with all relevant stakeholders.

APDCL will provide the following personnel

- Project Engineer (s) at both Head quarter level and field.*
- Safeguard focal points as per the EMP.*

8. Client will provide the following inputs, project data and reports to facilitate preparation of the Proposals:

Not applicable

9. Basis of Payment

This is a Time-Based Contract and all payments must be supported by monthly invoices, including timesheets and any deliverables relevant to the input. Invoices will be subject to validation and approval for payment.

Annex 1: COVID-19 References

1. ADB/PPFD. Guidance Note to Staff in Providing Advice to Borrowers/EAs on the effect of the Coronavirus outbreak on Procurement Operations. 24 February 2020.
2. ADB/SDCC. July 2020. ADB Internal Good Practice Advisory Note on COVID-19 Health and Safety.
3. ADB/SDCC. June 2020. Interim Advisory Note – Protecting the Safety and Well-Being of Workers and Communities from COVID-19 <https://www.adb.org/publications/safety-well-being-workers-communities-covid-19>
4. ADB/PPFD. Guidance on Consulting Services in light of COVID-19 for ADB Staff issued by PPFD on 19 March 2020.
5. World Bank. Labor Management Procedures template. COVID-19 LMP Template, April 16, 2020.
6. FIDIC COVID-19 Guidance Memorandum to Users of FIDIC Standard Forms of Works Contract. April 2020.
7. World Health Organization. 2020. Considerations for Public Health and Social Measures in the Workplace in the Context of COVID-19. Geneva.

ASSAM SOLAR PROJECT

Project Number: XXXXXX



TIME BASED CONTRACT FOR CONSULTING SERVICES

CONTRACT NUMBER:

APDCL/CGM (NRE)/ADB/MMSSP/PMC/....

PROJECT MANAGEMENT CONSULTANT

between

Assam Power Distribution Company Limited,

and

.....(Consultant)

Dated: DD MM 2024

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Preface

1. The standard Contract form consists of four parts: the Form of Contract to be signed by the Client and the Consultant, the General Conditions of Contract (GCC), including Attachment 1 (Anticorruption Policy); the Special Conditions of Contract (SCC); and the Appendices.
2. The General Conditions of Contract, including Attachment 1, shall not be modified. The Special Conditions of Contract that contain clauses specific to each Contract intend to supplement, but not over-write or otherwise contradict, the General Conditions.

I. Form of Contract

TIME-BASED

[Text in brackets and/or in italics is for guidance purposes only and should be deleted in the final contract]

This CONTRACT (hereinafter called the "Contract") is made on the *[number]* day of the month of *[month]*, *[year]*, between, on the one hand, *[name of Client or Recipient or Beneficiary]* (hereinafter called the "Client") and, on the other hand, *[name of Consultant]* (hereinafter called the "Consultant").

[Note: If the Consultant consists of more than one entity, the previous paragraph should be partially amended to read as follows: "... (hereinafter called the "Client") and, on the other hand, a Joint Venture (name of the Joint Venture) consisting of the following entities, each member of which will be jointly and severally liable to the Client for all the Consultant's obligations under this Contract, namely, [name of member] and [name of member] (hereinafter called the "Consultant").]

WHEREAS

- (a) the Client has requested the Consultant to provide certain consulting services as defined in this Contract (hereinafter called the "Services");
- (b) the Consultant, having represented to the Client that it has the required professional skills, expertise and technical resources, has agreed to provide the Services on the terms and conditions set forth in this Contract; and
- (c) the Client has received [or has applied for] a loan [or grant or financing] from the Asian Development Bank: toward the cost of the Services and intends to apply a portion of the proceeds of this [loan/grant/financing] to eligible payments under this Contract, it being understood that (i) payments by the Bank will be made only at the request of the Client and upon approval by the Bank; (ii) such payments will be subject, in all respects, to the terms and conditions of the [loan/grant/financing] agreement, including prohibitions of withdrawal from the [loan/grant/financing] account for the purpose of any payment to persons or entities, or for any import of goods, if such payment or import, to the knowledge of the Bank, is prohibited by the decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations; and (iii) no party other than the Client shall derive any rights from the [loan/grant/financing] agreement or have any claim to the [loan/grant/financing] proceeds;

NOW THEREFORE the parties hereto hereby agree as follows:

1. The following documents attached hereto shall be deemed to form an integral part of this Contract:
 - (a) The General Conditions of Contract (including Attachment 1: Anticorruption Policy);
 - (b) The Special Conditions of Contract;

(c) Appendices:

Appendix A: Terms of Reference

Appendix B: Key Experts

Appendix C: Remuneration Cost Estimates

Appendix D: Other Expenses, Provisional Sums and Contingency Cost Estimates

Appendix E: Form of Advance Payments Guarantee

If there is any inconsistency between the documents, the following order of precedence shall prevail: the Special Conditions of Contract; the General Conditions of Contract, including Attachment 1; Appendix A; Appendix B; Appendix C and Appendix D; Appendix E. Any reference to this Contract shall include, where the context permits, a reference to its Appendices.

2. The mutual rights and obligations of the Client and the Consultant shall be as set forth in the Contract, in particular:
- (a) the Consultant shall carry out the Services in accordance with the provisions of the Contract; and
 - (b) the Client shall make payments to the Consultant in accordance with the provisions of the Contract.

IN WITNESS WHEREOF, the Parties hereto have caused this Contract to be signed in their respective names on the day and year first above written.

For and on behalf of *[Name of Client]*

[Authorized Representative of the Client-- name, title and signature]

For and on behalf of *[Name of Consultant or Name of a Joint Venture]*

[Authorized Representative of the Consultant-- name and signature]

[Note: For a joint venture, either all members shall sign or only the lead member, in which case the power of attorney to sign on behalf of all members shall be attached.

For and on behalf of each of the members of the Consultant *[insert the name of the Joint Venture]*

[Name of the lead member]

[Authorized Representative on behalf of a Joint Venture]
[add signature blocks for each member if all are signing]

II. General Conditions of Contract

A. GENERAL PROVISIONS

1. Definitions

- (a) Unless the context otherwise requires, the following terms whenever used in this Contract have the following meanings:
- (b) “Applicable Guidelines” are guidelines or policies of the Asian Development Bank governing the selection and contract award process as specified in the Special Conditions of Contract (**SCC**).
- (c) “Applicable Law” means the laws and any other instruments having the force of law in the Client’s country, or in such other country as may be specified in the **SCC**, as they may be issued and in force from time to time.
- (d) “Bank” means the Asian Development Bank.
- (e) “Borrower [*or Recipient or Beneficiary*]” refers to the Government, Government agency or other entity that signs the financing [*or loan or grant or project*] agreement with the Bank.
- (f) “Client” refers to the [*the implementing or the executing*] agency that signs the Contract for the Services with the Selected Consultant.
- (g) A “Consultant” is a legally-established professional consulting firm or entity selected by the Client to provide the Services under the signed Contract.
- (h) A “Contract” is the legally binding signed written agreement between the Client and the Consultant and which includes all the attached documents listed in its paragraph 1 of the Form of Contract (the General Conditions [GCC], the Special Conditions (SCC), and the Appendices).
- (i) A “Day” is a working day unless indicated otherwise.
- (j) “Effective Date” refers to the date on which this Contract comes into force and effect pursuant to Clause GCC 11.
- (k) “Experts” are collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-Consultant or Joint Venture (JV) member(s) assigned by the Consultant to perform the Services or any part thereof under the Contract.
- (l) “Foreign Currency” is any currency other than the currency of the Client’s country.
- (m) “GCC” refers to these General Conditions of Contract.
- (n) “Government” refers to the government of the Client’s country.
- (o) “Joint Venture (JV)” is an association with or without a legal

personality distinct from that of its members, of more than one entity where one member has the authority to conduct all businesses for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.

- (p) “Key Expert(s)” refers to an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose Curriculum Vitae (CV) was taken into account in the technical evaluation of the Consultant’s proposal.
- (q) “Local Currency” is the currency of the Client’s country.
- (r) “Non-Key Expert(s)” is an individual professional provided by the Consultant or its Sub-Consultant to perform the Services or any part thereof under the Contract.
- (s) “Party” refers to the Client or the Consultant, as the case may be, and “Parties” means both of them.
- (t) The Special Conditions of Contract (SCC) can amend or supplement but not overwrite the GCC.
- (u) “Services” refers to the work to be performed by the Consultant pursuant to this Contract, as described in Appendix A hereto.
- (v) “Sub-Consultant” is an entity to whom/which the Consultant subcontracts any part of the Services while remaining solely liable for the execution of the Contract.
- (w) “Third Party” means any person or entity other than the Government, the Client, the Consultant or a Sub-Consultant.

2. Relationship between the Parties

2.1. Nothing contained herein shall be construed as establishing a relationship of master and servant or of principal and agent as between the Client and the Consultant. The Consultant, subject to this Contract, has complete charge of the Experts and Sub-Consultants, if any, performing the Services and shall be fully responsible for the Services performed by them or on their behalf hereunder.

3. Law Governing Contract

3.1. This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law as specified in the **SCC**.

4. Language

4.1. This Contract has been executed in the language specified in the **SCC**, which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract.

5. Headings

5.1. The headings shall not limit, alter or affect the meaning of this Contract.

6. Communications

6.1. Any communication required or permitted to be given or made

pursuant to this Contract shall be in writing in the language specified in Clause GCC 4. Any such notice, request or consent shall be deemed to have been given or made when delivered in person to an authorized representative of the Party to whom the communication is addressed, or when sent to such Party at the address specified in the **SCC**.

6.2. A Party may change its address for notice hereunder by giving the other Party any communication of such change to the address specified in the **SCC**.

7. Location

7.1. The Services shall be performed at such locations as are specified in **Appendix A** hereto and, where the location of a particular task is not so specified, at such locations, whether in the Government's country or elsewhere, as the Client may approve.

8. Authority of Member in Charge

8.1. In case the Consultant is a JV, the members hereby authorize the member specified in the **SCC** to act on their behalf in exercising all the Consultant's rights and obligations toward the Client under this Contract, including without limitation the receiving of instructions and payments from the Client.

9. Authorized Representatives

9.1. Any action required or permitted to be taken, and any document required or permitted to be executed under this Contract by the Client or the Consultant may be taken or executed by the officials specified in the **SCC**.

10. Corrupt and Fraudulent Practices

10.1. The Bank requires compliance with its Anticorruption Policy as set forth in **Attachment 1** to the GCC.

Commissions and Fees

10.2. The Client requires the Consultant to disclose any commissions, gratuities, or fees that may have been paid or are to be paid to agents or any other party with respect to the selection process or execution of the Contract. The information disclosed must include at least the name and address of the agent or the other party, the amount and currency, and the purpose of the commission, gratuity or fee. Failure to disclose such commissions and gratuities may result in the termination of the Contract and/or remedial actions including sanctions by the Bank.

B. COMMENCEMENT, COMPLETION, MODIFICATION AND TERMINATION OF CONTRACT

11. Effectiveness of Contract

11.1. This Contract shall come into force and effect on the date (the "Effective Date") of the Client's notice to the Consultant instructing the Consultant to begin carrying out the Services. This notice shall confirm that the effectiveness conditions, if any, listed in

the **SCC** have been met.

12. Termination of Contract for Failure to Become Effective

12.1. If this Contract has not become effective within such time period after the date of Contract signature as specified in the **SCC**, either Party may, by not less than 22 days written notice to the other Party, declare this Contract to be null and void, and in the event of such a declaration by either Party, neither Party shall have any claim against the other Party with respect hereto.

13. Commencement of Services

13.1. The Consultant shall confirm the availability of Key Experts and begin carrying out the Services not later than the number of days after the Effective Date specified in the **SCC**.

14. Expiration of Contract

14.1. Unless terminated earlier pursuant to Clause GCC 19 hereof, this Contract shall expire at the end of such time period after the Effective Date as specified in the **SCC**.

15. Entire Agreement

15.1. This Contract contains all covenants, stipulations and provisions agreed by the Parties. No agent or representative of either Party has authority to make, and the Parties shall not be bound by or be liable for, any statement, representation, promise or agreement not set forth herein.

16. Modifications or Variations

16.1. Any modification or variation of the terms and conditions of this Contract, including any modification or variation of the scope of the Services, may only be made by written agreement between the Parties. However, each Party shall give due consideration to any proposals for modification or variation made by the other Party.

16.2. In cases of substantial modifications or variations, the prior written consent of the Bank is required.

17. Force Majeure

a. Definition

17.1. For the purposes of this Contract, "Force Majeure" means an event which is beyond the reasonable control of a Party, is not foreseeable, is unavoidable, and makes a Party's performance of its obligations hereunder impossible or so impractical as reasonably to be considered impossible under the circumstances, and subject to those requirements. Examples include, but are not limited to, war, riots, civil disorder, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, and lockouts or other industrial action confiscation or any other action by Government agencies.

17.2. Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or such Party's Experts, Sub-Consultants or agents or employees, nor (ii) any

event which a diligent Party could reasonably have been expected to both take into account at the time of the conclusion of this Contract, and avoid or overcome in the carrying out of its obligations hereunder.

17.3. Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

b. No Breach of Contract

17.4. The failure of a Party to fulfill any of its obligations hereunder shall not be considered to be a breach of, or default under, this Contract insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event has taken all reasonable precautions, due care and reasonable alternative measures, all with the objective of carrying out the terms and conditions of this Contract.

c. Measures to be Taken

17.5. A Party affected by an event of Force Majeure shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall take all reasonable measures to minimize the consequences of any event of Force Majeure.

17.6. A Party affected by an event of Force Majeure shall notify the other Party of such event as soon as possible, and in any case not later than 14 calendar days following its occurrence, providing evidence of the nature and cause the event, and shall similarly give written notice of the restoration of normal conditions as soon as possible.

17.7. Any period within which a Party shall, pursuant to this Contract, complete any action or task, shall be extended for a period equal to the time during which the Party was unable to perform the action as a result of Force Majeure.

17.8. During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consultant, upon instructions by the Client, shall either:

- (a) demobilize, in which case the Consultant shall be reimbursed for additional costs they reasonably and necessarily incurred, and, if required by the Client, in reactivating the Services; or
- (b) continue with the Services to the extent reasonably possible, in which case the Consultant shall continue to be paid under the terms of this Contract and be

reimbursed for additional costs reasonably and necessarily incurred.

17.9. In the case of disagreement between the Parties as to the existence or extent of Force Majeure, the matter shall be settled according to Clauses GCC 48 and 49.

18. Suspension

18.1. The Client may, by written notice of suspension to the Consultant, suspend all payments to the Consultant hereunder if the Consultant fails to perform any of its obligations under this Contract, including carrying out of the Services, provided that the notice of suspension (i) shall specify the nature of the failure, and (ii) shall request the Consultant to remedy the failure within a period not exceeding 30 calendar days after receipt by the Consultant of the notice of suspension.

19. Termination

19. 1 This Contract may be terminated by either Party as per provisions set up below:

a. By the Client

19.1.1 The Client may terminate this Contract in case of the occurrence of any of the events specified in paragraphs (a) through (f) of this Clause occurs. In this case, the Client shall give at least 30 calendar days' written notice of termination to the Consultant for events referred to in (a) to (d); at least 60 calendar days' written notice in case of the event referred to in (e); and at least 5 calendar days' written notice for the event referred to in (f):

- (a) If the Consultant fails to remedy a failure in the performance of its obligations hereunder, as specified in a notice of suspension pursuant to Clause GCC 18;
- (b) If the Consultant becomes (or, if the Consultant consists of more than one entity, if any of its members) becomes insolvent or bankrupt or enter into any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary;
- (c) If the Consultant fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause GCC 49.1;
- (d) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than 60 calendar days;
- (e) If the Client, in its sole discretion and for any reason whatsoever, decides to terminate this Contract; or
- (f) If the Consultant fails to confirm the availability of Key Experts as required in Clause GCC 13.

19.1.2 Furthermore, if the Client determines that the

Consultant has engaged in corrupt, fraudulent, collusive, coercive *[or obstructive]* practices or other integrity violations, in competing for or in executing the Contract, the Client may, after giving 14 calendar days' written notice to the Consultant, terminate the Consultant's employment under the Contract.

b. By the Consultant

19.1.3 The Consultant may terminate this Contract, by not less than 30 calendar days' written notice to the Client, in case any of the events specified in paragraphs (a) to (d) of this Clause occurs.

- (a) If the Client fails to pay any money due to the Consultant pursuant to this Contract and not subject to dispute pursuant to Clauses GCC 49.1 within 45 calendar days after receiving written notice from the Consultant that the payment is overdue;
- (b) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than 60 calendar days;
- (c) If the Client fails to comply with any final decision reached as a result of arbitration pursuant to Clause GCC 49.1; or
- (d) If the Client is in material breach of its obligations pursuant to this Contract and has not remedied the same within 45 days (or a longer period that the Consultant may have subsequently approved in writing) following the receipt by the Client of the Consultant's notice specifying the breach.

c. Cessation of Rights and Obligations

19.1.4 Upon termination of this Contract pursuant to Clauses GCC 12 or GCC 19 hereof, or upon expiration of this Contract pursuant to Clause GCC 14, all rights and obligations of the Parties hereunder shall cease, except (i) such rights and obligations as may have accrued on the date of termination or expiration, (ii) the obligation of confidentiality set forth in Clause GCC 22, (iii) the Consultant's obligation to permit inspection, copying and auditing of their accounts and records set forth in Clause GCC 25, and (iv) any right a Party may have under the Applicable Law.

d. Cessation of Services

19.1.5 Upon termination of this Contract by notice of either Party to the other pursuant to Clauses GCC 19a or GCC 19b, the Consultant shall, immediately upon dispatch or receipt of such notice, take all necessary steps to bring the Services to a close in a prompt and orderly manner and shall make every reasonable effort to keep expenditures for this purpose to a minimum. With respect to documents prepared by the Consultant, the Consultant shall proceed as provided in Clause GCC 27. For equipment and materials furnished by the Client,

the Consultant shall refer to Clause GCC 28.

**e. Payment
upon
Termination**

19.1.6 Upon termination of this Contract, the Client shall pay the Consultant the following:

- (a) remuneration for Services satisfactorily performed prior to the effective date of termination, other expenses, provisional sums, and contingency for expenditures actually incurred prior to the effective date of termination; and pursuant to Clause 42; and
- (b) in the case of termination pursuant to paragraphs (d) and (e) of Clause GCC 19.1.1, reimbursement of any reasonable cost incidental to the prompt and orderly termination of this Contract, including the cost of the return travel of the Experts.

C. OBLIGATIONS OF THE CONSULTANT

20. General

**Standard of
Performance**

20.1 The Consultant shall perform the Services and carry out the Services with all due diligence, efficiency and economy, in accordance with generally accepted professional standards and practices, and shall observe sound management practices, and employ appropriate technology and safe and effective equipment, machinery, materials and methods. The Consultant shall always act, in respect of any matter relating to this Contract or to the Services, as a faithful adviser to the Client, and shall at all times support and safeguard the Client's legitimate interests in any dealings with the third parties.

20.2 The Consultant shall employ and provide such qualified and experienced Experts and Sub-Consultants as are required to carry out the Services.

20.3 The Consultant may subcontract part of the Services to an extent and with such Key Experts and Sub-Consultants as may be approved in advance by the Client. Notwithstanding this approval, the Consultant shall retain full responsibility for the Services.

**Law
Applicable to
Services**

20.4 The Consultant shall perform the Services in accordance with the Contract and the Applicable Law and shall take all practicable steps to ensure that any of its Experts and Sub-consultants, comply with the Applicable Law.

20.5 Throughout the execution of the Contract, the Consultant shall comply with the import of goods and services prohibitions in the Client's country when

- (a) as a matter of law or official regulations, *[the Borrower's/ Beneficiary's]* country prohibits commercial relations with

that country; or

- (b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in that country.

20.6 The Client shall notify the Consultant in writing of relevant local customs, and the Consultant shall, after such notification, respect such customs.

21. Conflict of Interests

21.1 The Consultant shall hold the Client's interests paramount, without any consideration for future work, and strictly avoid conflict with other assignments or their own corporate interests.

Consultant Not to Benefit from Commissions, Discounts, etc.

21.1.1 The payment of the Consultant pursuant to GCC F (Clauses GCC 41 to GCC 46) shall constitute the Consultant's only payment in connection with this Contract and, subject to Clause GCC 21.1.3, the Consultant shall not accept for its own benefit any trade commission, discount or similar payment in connection with activities pursuant to this Contract or in the discharge of its obligations hereunder, and the Consultant shall use its best efforts to ensure that any Sub-Consultants, as well as the Experts and agents of either of them, similarly shall not receive any additional payment.

21.1.2 If the Consultant, as part of the Services, has the responsibility of advising the Client on the procurement of goods, works, or services, the Consultant shall comply with the Bank's Applicable Guidelines, and shall at all times exercise this responsibility in the best interests of the Client. Any discounts or commissions obtained by the Consultant in procuring goods, works, or services shall be for the account of the Client.

Consultant and Affiliates Not to Engage in Certain Activities

21.1.3 The Consultant agrees that, during the term of this Contract and after its termination, the Consultant and any entity affiliated with the Consultant, as well as any Sub-Consultants and any entity affiliated with such Sub-consultants, shall be disqualified from providing goods, works or non-consulting services resulting from or directly related to the Consultant's Services for the preparation or implementation of the project, unless otherwise indicated in the **SCC**.

Prohibition of Conflicting Activities

21.1.4 The Consultant shall not engage, and shall cause its Experts as well as its Sub-Consultants not to engage, either directly or indirectly, in any business or professional activities that would conflict with the activities assigned to them under this Contract.

Strict Duty to Disclose Conflicting Activities	21.1.5 The Consultant has an obligation and shall ensure that its Experts and Sub-Consultants shall have an obligation to disclose any situation of actual or potential conflict that impacts their capacity to serve the best interests of their Client, or that may reasonably be perceived as having this effect. Failure to disclose these situations may lead to the disqualification of the Consultant or the termination of its Contract.
22. Confidentiality	22.1 Except with the prior written consent of the Client, the Consultant and the Experts shall not at any time communicate to any person or entity any confidential information acquired in the course of the Services, nor shall the Consultant and the Experts make the recommendations formulated in the course of, or as a result of, the Services public.
23. Liability of the Consultant	23.1 Subject to additional provisions, if any, set forth in the SCC, the Consultant's liability under this Contract shall be as determined under the Applicable Law.
24. Insurance to be Taken out by the Consultant	24.1 The Consultant (i) shall take out and maintain, and shall cause any Sub-Consultants to take out and maintain, at its (or the Sub-Consultants', as the case may be) own cost but on terms and conditions approved by the Client, insurance against the risks, and for the coverage specified in the SCC, and (ii) at the Client's request, shall provide evidence to the Client showing that the insurance has been taken out and maintained and that the current premiums have been paid. The Consultant shall ensure that such insurance is in place prior to commencing the Services as stated in Clause GCC 13.
25. Accounting, Inspection and Auditing	25.1 The Consultant shall keep, and shall make all reasonable efforts to cause its Sub-Consultants to keep, accurate and systematic accounts and records in respect of the Services and in such form and detail as will clearly identify relevant time changes and costs. 25.2. The Consultant shall permit and shall cause its Sub-Consultants to permit, the Bank and/or persons appointed by the Bank to inspect the Site, assets and/or all accounts and records relating to the performance of the Contract and the selection process to provide the Services, and to have such accounts and records audited by auditors appointed by the Bank if requested by the Bank. The Consultant's attention is drawn to Clause GCC 10 which provides, among others, that acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under this Clause GCC 25.2 constitute an integrity violation subject to contract termination (as well as to a determination of ineligibility under the Bank's Anticorruption Policy

and Integrity Principles and Guidelines).

**26. Reporting
Obligations**

26.1 The Consultant shall submit the reports and documents specified in **Appendix A** to the Client, in the form, in the numbers and within the time periods set forth in the said Appendix.

**27. Proprietary Rights
of the Client in
Reports and
Records**

27.1 Unless otherwise indicated in the **SCC**, all reports and relevant data and information such as maps, diagrams, plans, databases, other documents and software, or supporting records or materials compiled or prepared by the Consultant for the Client in the course of the Services shall be confidential and become and remain the absolute property of the Client. The Consultant shall deliver all such documents to the Client, together with a detailed inventory thereof not later than the date of termination or expiration of this Contract. The Consultant may retain a copy of these documents, data and/or software but shall not use the same for purposes unrelated to this Contract without prior written approval of the Client.

27.2 If license agreements are necessary or appropriate between the Consultant and third parties for purposes of development of the plans, drawings, specifications, designs, databases, other documents and software, the Consultant shall obtain the Client's prior written approval to such agreements, and at its discretion the Client shall be entitled at its discretion to require recovering the expenses related to the development of the program(s) concerned. Other restrictions about the future use of these documents and software, if any, shall be specified in the **SCC**.

**28. Equipment,
Vehicles and
Materials**

28.1 Equipment, vehicles, and materials made available to the Consultant by the Client, or purchased by the Consultant wholly or partly with funds provided by the Client, shall be the property of the Client and shall be marked accordingly. Upon termination or expiration of this Contract, the Consultant shall make an inventory of such equipment, vehicles, and materials available to the Client and shall dispose of the equipment, vehicles, and materials in accordance with the Client's instructions. While in possession of such equipment, vehicles, and materials, the Consultant, unless otherwise instructed by the Client in writing, shall insure them at the expense of the Client in an amount equal to their full replacement value.

28.2 Any equipment or materials brought by the Consultant or its Experts into the Client's country for the use either for the project or personal use shall remain the property of the Consultant or the Experts concerned, as applicable.

D. CONSULTANT'S EXPERTS AND SUB-CONSULTANTS

**29. Description and
Obligations of Key**

29.1 The title, agreed job description, minimum qualification and time-input estimates to carry out the Services of each of the

Experts

Consultant's Key Experts are described in **Appendix B**.

29.2 If required to comply with the provisions of Clause GCC 20 'Standard of Performance,' adjustments with respect to the estimated time-input of Key Experts set forth in **Appendix B** may be made by the Consultant by a written notice to the Client, provided that (i) that such adjustments shall not alter the original time-input estimates for any individual by more than 10% or one week, whichever is larger; and (ii) that the aggregate of these adjustments shall not cause payments under this Contract to exceed the ceilings set forth in Clause GCC 41.2.

29.3 If additional work is required beyond the scope of the Services specified in **Appendix A**, the estimated time-input for the Key Experts may be increased by agreement in writing between the Client and the Consultant. When payments under this Contract exceed the ceilings set forth in Clause GCC 41.1, the Parties shall sign a Contract amendment.

29.4 The Consultant shall require all Experts and Sub-consultants to observe the highest level of ethical and behavioral standards and shall refrain from any form of bullying, harassment, discrimination and misconduct, including sexual harassment and abuse, and shall, at all times, behave in a manner that creates an environment free of bullying, harassment, discrimination and misconduct.

29.5 If the Consultant becomes aware that an Expert or Sub-consultant may have been involved in any form of bullying, harassment, discrimination or misconduct, the Consultant shall immediately inform the Client of the issue and provide the Client with (a) as much information concerning the issue as is reasonably available to the Consultant, (b) a description of what investigation, review or other steps the Consultant is taking with respect to such issue, and (c) any additional information that the Client may require. If the Consultant receives or becomes aware of any allegation or report of possible bullying, harassment, discrimination or misconduct by any Expert or Sub-consultant, the Consultant shall take reasonable and immediate steps to investigate or verify such incident rigorously, diligently and expeditiously, and shall ensure that it has the power and legal authority to suspend or terminate such Expert or Sub-consultant. If the Client determines in its sole discretion that any possible allegation or report of possible bullying, harassment, discrimination or misconduct by any Expert or Sub-consultant could adversely affect people working at or associated with the project or the reputation of the Client or Government (or agency of the Government), then the Consultant shall, forthwith at the request of the Client, suspend or physically separate such Expert or Sub-consultant from the project and such persons.

30. Replacement of Key Experts

30.1 Except as the Client may otherwise agree in writing, no changes shall be made in the Key Experts.

30.2 Notwithstanding GCC 30.1, the substitution of Key Experts during Contract execution may be considered only based on the Consultant's written request and due to circumstances outside the reasonable control of the Consultant, including but not limited to death or medical incapacity. In this case, the Consultant shall forthwith provide as a replacement, a person of equivalent or better qualifications and experience, and at the same rate of remuneration.

**31. Approval of
Additional Key
Experts**

31.1 If during execution of the Contract, additional Key Experts are required to carry out the Services, the Consultant shall submit to the Client for review and approval a copy of their Curricula Vitae (CVs). If the Client does not object in writing (stating the reasons for the objection) within 22 days from the date of receipt of the CVs, the additional Key Experts shall be deemed to have been approved by the Client.

**32. Removal of Experts
or Sub-Consultants**

32.1 If the Client or the Consultant finds that any of the Experts or Sub-Consultant has breached Clause 29.4 or has been charged with having committed a criminal action, or if the Client determines that Consultant's Expert or Sub-consultant has engaged in corrupt, fraudulent, collusive or coercive *[or obstructive]* practice while performing the Services, the Consultant shall, at the Client's written request, provide a replacement.

32.2 In the event that any of Key Experts, Non-Key Experts, or Sub-Consultants is found by the Client to be incompetent or incapable in discharging assigned duties, the Client, specifying the grounds therefore, may request the Consultant to provide a replacement.

32.3 Any replacement of the removed Experts or Sub-Consultants shall possess better qualifications and experience and shall be acceptable to the Client.

**33. Replacement/
Removal of Experts
– Impact on
Payments**

33.1 Except if the Client agrees otherwise, (i) the Consultant shall bear all additional travel and other costs arising out of or incidental to any removal and/or replacement, and (ii) the remuneration to be paid for any of the replacement Experts shall not exceed the remuneration that would have been payable to the Experts replaced or removed.

**34. Working Hours,
Overtime, Leave,
etc.**

34.1 Working hours and holidays for Experts are set forth in **Appendix B**. To account for travel time to and from the Client's country, experts carrying out Services inside the Client's country shall be deemed to have commenced or finished work in respect of the Services such number of days before their arrival in, or after their departure from, the Client's country as is specified in **Appendix B**.

34.2 The Experts shall not be entitled to overtime pay nor to paid sick leave or vacation leave except as specified in **Appendix B**, and

the Consultant's remuneration shall be deemed to cover these items.

34.3 Any leaves taken by Key Experts shall be subject to the prior approval of the Consultant who shall ensure that absence for leave purposes will not delay the progress and or impact adequate supervision of the Services.

E. OBLIGATIONS OF THE CLIENT

35. Assistance and Exemptions

35.1 Unless otherwise specified in the **SCC**, the Client shall use its best efforts to:

- (a) Assist the Consultant with obtaining work permits and other documents as shall be necessary to enable the Consultant to perform the Services.
- (b) Assist the Consultant with promptly obtaining, for the Experts and, if appropriate, their eligible dependents, all necessary entry and exit visas, residence permits, exchange permits, and any other documents required for their stay in the Client's country while carrying out the Services under the Contract.
- (c) Facilitate prompt clearance through customs of any property required for the Services and of the personal effects of the Experts and their eligible dependents.
- (d) Issue all instructions and information to officials, agents and representatives of the Government that may be necessary or appropriate for the prompt and effective implementation of the Services.
- (e) Assist the Consultant and the Experts and any Sub-Consultants employed by the Consultant for the Services with obtaining exemption from any requirement to register or obtain any permit to practice their profession or to establish themselves either individually or as a corporate entity in the Client's country according to the Applicable Law in the Client's country.
- (f) Assist the Consultant, any Sub-Consultants, and their Experts with obtaining the privilege, pursuant to the Applicable Law in the Client's country, of bringing into the Client's country reasonable amounts of foreign currency for the purposes of the Services or for the personal use of the Experts and of withdrawing any such amounts as may be earned therein by the Experts in the execution of the Services.
- (g) Provide to the Consultant any such other assistance as may be specified in the **SCC**.

36. Access to Project

36.1 The Client warrants that the Consultant shall have, free of

Site	charge, unimpeded access to the project site as required to perform the Services. The Client will be responsible for any damage to the project site or any property thereon resulting from such access and will indemnify the Consultant and Experts in respect of liability for any such damage, unless the damage was caused by the willful default or negligence of the Consultant or any Sub-Consultants or their Experts.
37. Change in the Applicable Law Related to Taxes and Duties	37.1 If, after the date of this Contract, there is any change in the Applicable Law in the Client's country with respect to taxes and duties which increases or decreases the cost incurred by the Consultant in performing the Services, the remuneration and reimbursable expenses otherwise payable to the Consultant under this Contract shall be increased or decreased accordingly by agreement between the Parties hereto, and corresponding adjustments shall be made to the ceiling amounts specified in Clause GCC 41.1
38. Services, Facilities and Property of the Client	38.1 The Client shall make the services, facilities, and property described in the Terms of Reference (Appendix A) available to the Consultant and the Experts, for the purposes of the Services and free of any charge, at the times and in the manner specified in said Appendix A. 38.2 In case the services, facilities, and property shall not be made available to the Consultant as and when specified in Appendix A, the Parties shall agree on (i) any time extension that it may be appropriate to grant to the Consultant for the performance of the Services; (ii) the manner in which the Consultant shall procure any such services, facilities, and property from other sources; and (iii) the additional payments, if any, to be made to the Consultant as a result thereof pursuant to Clause GCC 41.3.
39. Counterpart Personnel	39.1 The Client shall make such professional and support counterpart personnel available to the Consultant free of charge. These personnel shall be nominated by the Client with the Consultant's advice, if specified in Appendix A. 39.2 If counterpart personnel are not provided by the Client to the Consultant as and when specified in Appendix A, the Client and the Consultant shall agree on (i) how the affected part of the Services shall be carried out, and (ii) the additional payments, if any, to be made by the Client to the Consultant as a result thereof pursuant to Clause GCC 41.3. 39.3 Professional and support counterpart personnel, excluding Client's liaison personnel, shall work under the exclusive direction of the Consultant. If any member of the counterpart personnel fails to adequately perform any work assigned to the member by the Consultant that is consistent with the position occupied by the member, the Consultant may request the replacement of the

member, and the Client shall not unreasonably refuse to act upon the request.

**40. Payment
Obligation**

40.1 In consideration of the Services performed by the Consultant under this Contract, the Client shall make the payments to the Consultant and in such manner as is provided by GCC F below.

F. PAYMENTS TO THE CONSULTANT

41. Ceiling Amount

41.1 An estimate of the cost of the Services is set forth in **Appendix C** (Remuneration) and **Appendix D** (Other Expenses, Provisional Sums and Contingency).

41.2 Payments under this Contract shall not exceed the ceilings in foreign and local currencies specified in the **SCC**.

41.3 For any payments in excess of the ceilings specified in GCC41.2, an amendment to the Contract shall be signed by the Parties referring to the provision of this Contract that evokes such amendment.

**42. Remuneration and
Other Expenses,
Provisional Sums
and Contingency**

42.1 The Client shall pay the Consultant (i) remuneration determined on the basis of time actually spent by each Expert in the performance of the Services after the date of commencing of Services or such other date as the Parties shall agree in writing and (ii) other expenses, provisional sums, and contingency that are actually and reasonably incurred by the Consultant in the performance of the Services.

42.2 All payments shall be at the rates set forth in **Appendix C** and **Appendix D**.

42.3 Unless the **SCC** provides for the price adjustment of the remuneration rates, the remuneration shall be fixed for the duration of the Contract.

42.4 The remuneration rates shall cover: (i) salaries and allowances as the Consultant agreed to pay the Experts as well as factors for social charges and overheads (bonuses or other means of profit-sharing shall not be allowed as an element of overheads), (ii) the cost of backstopping by home office staff not included in the Experts' list in **Appendix B**, (iii) the Consultant's profit, and (iv) any other items as specified in the **SCC**.

42.5 Any rates specified for Experts not yet appointed shall be provisional and shall be subject to revision, with the written approval of the Client, once the applicable remuneration rates and allowances are known.

43. Taxes and Duties

43.1 The Consultant, Sub-Consultants and Experts are responsible for meeting any and all tax liabilities arising out of the Contract unless it is stated otherwise in the **SCC**.

43.2 As an exception to the above and as stated in the **SCC**, all local identifiable indirect taxes and other local taxes which are not included in the Consultant's Financial proposal in accordance with ITC 25, which are itemized and finalized at Contract negotiations, are reimbursed to the Consultant or are paid by the Client on behalf of the Consultant.

44. Currency of Payment

44.1 Any payment under this Contract shall be made in the currency(ies) specified in the **SCC**.

45. Mode of Billing and Payment

45.1 Billings and payments in respect of the Services shall be made as follows:

- (a) **Advance payment.** Within the number of days after the Effective Date, the Client provide the Consultant with an advance payment as specified in the **SCC**. Unless otherwise indicated in the **SCC**, an advance payment shall be made against an advance payment bank guarantee acceptable to the Client in an amount (or amounts) and in a currency (or currencies) specified in the **SCC**. This guarantee (i) is to remain effective until the advance payment has been fully set off, and (ii) is to be in the form set forth in **Appendix E**, or in such other form as the Client shall have approved in writing. The advance payments will be set off by the Client in equal installments against the statements for the number of months of the Services specified in the **SCC** until the advance payments have been fully set off.
- (b) **Itemized invoices.** As soon as practicable and not later than fifteen (15) days after the end of each calendar month during the period of the Services, or after the end of each time interval otherwise indicated in the **SCC**, the Consultant shall submit to the Client, in duplicate, itemized invoices, accompanied by the receipts or other appropriate supporting documents, of the amounts payable pursuant to Clauses GCC 44 and GCC 45 for such interval, or any other period indicated in the **SCC**. Separate invoices shall be submitted for expenses incurred in foreign currency and in local currency. Each invoice shall show remuneration and reimbursable expenses separately.
- (c) The Client shall pay the Consultant's invoices within 60 days after the receipt by the Client of the itemized invoices and supporting documents. Only the portion of the invoice that is not satisfactorily supported may be withheld from payment. Should any discrepancy be found to exist between actual payment and costs authorized to be incurred by the Consultant, the Client may add or subtract the difference from any subsequent payments.
- (d) **Final payment.** The final payment under this Clause shall be made only after the final report and a final invoice (identified as such) shall have been submitted by the Consultant and approved

as satisfactory by the Client. The Services shall be deemed completed and finally accepted by the Client and the final report and final invoice shall be deemed approved by the Client as satisfactory 90 calendar days after receipt of the final report and final invoice by the Client unless the Client gives written notice to the Consultant specifying in detail deficiencies in the Services, the final report or final invoice within the 90-calendar day period. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated. Any amount that the Client has paid or has caused to be paid in accordance with this Clause in excess of the amounts payable in according to the provisions of this Contract shall be reimbursed by the Consultant to the Client within 30 days after receipt by the Consultant of notice thereof. Any claim by the Client for reimbursement must be made within 12 calendar months after receipt by the Client of a final report and a final invoice approved by the Client in accordance with this clause.

- (e) All payments under this Contract shall be made to the accounts of the Consultant specified in the **SCC**.
- (f) With the exception of the final payment under (d), payments do not constitute acceptance of the Services nor relieve the Consultant of any obligations hereunder.

46. Interest on Delayed Payments

46.1 If the Client had delayed payments beyond fifteen (15) days after the due date stated in Clause GCC 45.1 (c), interest shall be paid to the Consultant on any amount due by, not paid on, the due date for each day of delay at the annual rate stated in the **SCC**.

G. FAIRNESS AND GOOD FAITH

47. Good Faith

47.1 The Parties undertake to act in good faith with respect to each other's rights under this Contract and to adopt all reasonable measures to ensure the realization of the objectives of this Contract.

H. SETTLEMENT OF DISPUTES

48. Amicable Settlement

48.1 The Parties shall seek to resolve any dispute amicably by mutual consultation.

48.2 If either Party objects to any action or inaction of the other Party, the objecting Party may file a written Notice of Dispute to the other Party providing in detail the basis of the dispute. The Party receiving the Notice of Dispute will consider it and respond in writing within 14 days after receipt. If that Party fails to respond within 14 days, or the dispute cannot be amicably settled within 14 days following the response of that Party, Clause GCC 49.1 shall apply.

- 49. Dispute Resolution** 49.1 Any dispute between the Parties arising under or related to this Contract that cannot be settled amicably may be referred to by either Party to the adjudication or arbitration in accordance with the provisions specified in the **SCC**.

I. ELIGIBILITY

- 50. Eligibility** 50.1 Compliance with the Bank's eligibility policy is required throughout the Contract's execution.

II. General Conditions

Attachment 1: Bank's Anticorruption Policy

[“Notes to the Client”: the text in this Attachment 1 shall not be modified]

Anticorruption Policy

ADB requires borrowers (including beneficiaries of ADB-financed activity) and their personnel, as well as firms and individuals participating in an ADB-financed activity, including but not limited to, bidders suppliers, contractors, consultants, subcontractors, subconsultants and agents (including their respective officers, directors, employees and personnel) under ADB-financed contracts, to observe the highest standard of ethics during the selection process and in execution of such contracts in accordance with ADB's Anticorruption Policy (1998, as amended from time to time). In pursuance of this policy, ADB

- (a) defines, for the purposes of this provision, the terms set forth below as follows:
 - (i) “Corrupt practice” means the offering, giving, receiving, or soliciting, directly or indirectly, anything of value to improperly influence the actions of another party.
 - (ii) “Fraudulent practice” means any action or omission, including a misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain a financial or other benefit or to avoid an obligation.
 - (iii) “Coercive practice” means impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to improperly influence the actions of a party.
 - (iv) “Collusive practice” means an arrangement between two or more parties designed to achieve an improper purpose, including influencing improperly the actions of another party.
 - (v) Abuse, means theft, waste, or improper use of assets related to ADB-related activity, either committed intentionally or through reckless disregard.
 - (vi) Conflict of interest, means any situation in which a party has interests that could improperly influence a party's performance of official duties or responsibilities, contractual obligations, or compliance with applicable laws and regulations.
 - (vii) Integrity violation is any act which violates ADB's Anticorruption Policy, including items (i) to (vi) above and the following: obstructive practice, abuse, conflict of interest, violations of ADB sanctions, retaliation against whistleblowers or witnesses, and other violations of ADB's Anticorruption Policy, including failure to adhere to the highest ethical standards.
- (b) will reject a proposal for an award if it determines that the Consultant recommended for the award or any of its officers, directors, employees, personnel, subconsultants, subcontractors, service providers, suppliers or manufacturers has engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations in competing for the Contract;
- (c) will cancel the portion of the financing allocated to a contract if it determines at any time that representatives of the Client engaged in corrupt, fraudulent, collusive, coercive, or

obstructive practices or other integrity violations during the procurement or the execution of that contract, without the Borrower having taken timely and appropriate action satisfactory to ADB to remedy the situation, including by failing to inform ADB in a timely manner at the time they knew of the integrity violations;

- (d) will impose remedial actions on a firm or an individual, at any time, in accordance with ADB's Anticorruption Policy and Integrity Principles and Guidelines (both as amended from time to time), including declaring ineligible, either indefinitely or for a stated period of time, to participate¹² in ADB-financed, -administered, or -supported activities or to benefit from an ADB-financed, -administered, or -supported contract, financially or otherwise, if it at any time determines that the firm or individual has, directly or through an agent, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices or other integrity violations. ADB reserves the right to publish any debarment; and
- (e) will have the right to require that a provision be included in request for proposals and in Contracts financed, administered or supported by ADB, requiring Consultants and other third parties engaged or involved in ADB-related activities, and their respective officers, directors, employees and personnel to permit ADB or its representative to inspect their accounts and records and other documents relating to the selection process and contract performance and to have them audited by auditors appointed by ADB.

All Bidders, Consultants, contractors, suppliers, manufacturers, service providers, and other third parties engaged or involved in ADB-related activities, and their respective officers, directors, employees and personnel, are obliged to cooperate fully in any investigation when requested by ADB to do so. As determined on a case by case basis by ADB, such cooperation includes, but is not limited to, the following:

- (a) being available to be interviewed and replying fully and truthfully to all questions asked;
- (b) providing ADB with any items requested that are within the party's control including, but not limited to, documents and other physical objects;
- (c) upon written request by ADB, authorizing other related entities to release directly to ADB such information that is specifically and materially related, directly or indirectly, to the said entities or issues which are the subject of the investigation;
- (d) cooperating with all reasonable requests to search or physically inspect their person and/or work areas, including files, electronic databases, and personal property used on ADB activities, or that utilizes ADB's Information and Communications Technology (ICT) resources or systems (including mobile phones, personal electronic devices, and electronic storage devices such as external disk drives);
- (e) cooperating in any testing or examination requested by ADB;
- (f) providing all other information relevant for the exercise of ADB's audit or inspection rights; and
- (g) preserving and protecting confidentiality of all information discussed with, and as required by, ADB.

All bidders, Consultants, contractors and suppliers shall require their officers, directors, employees, personnel, agents to ensure that, in its contract with its sub-consultants, Subcontractors, and other third parties engaged or involved in ADB-related activities, such sub-

¹² Whether as a Consultant, Sub-Consultant or Key Expert; or in any other capacity specified in the Contract

consultants, Subcontractors, and other third parties similarly are obliged to cooperate fully in any investigation when requested by ADB to do so.

The Borrower hereby puts the Bidder on notice that the Bidder or any joint venture partner of the Bidder (if any) may not be able to receive any payments under the Contract if the Consultant or any of its joint venture partners, as appropriate, is, or is owned (in whole or in part) by a person or entity subject to applicable sanctions.

III. Special Conditions of Contract

Number of GC Clause	Amendments of, and Supplements to, Clauses in the General Conditions of Contract														
1 (b)	<u>Applicable Guidelines</u> ADB Procurement Policy 2017 (Policy) and Procurement Regulations for ADB Borrowers 2017 (as amended from time to time) (Procurement Regulations)														
1(c) and 3.1	<u>Applicable Law</u> The Contract shall be construed in accordance with the law of India.														
4.1	<u>Language</u> The language is English														
6.1 and 6.2	<u>Contact Details</u> <table border="1"> <tr> <td data-bbox="461 1272 824 1373">Client:</td><td data-bbox="824 1272 1360 1373">Assam Power Distribution Company Ltd</td></tr> <tr> <td data-bbox="461 1373 824 1541">Attention:</td><td data-bbox="824 1373 1360 1541">Chief General Manager (NRE), APDCL; 2nd Floor, Annex Building, Bijulee Bhawan, Paltan Bazar, Guwahati-01</td></tr> <tr> <td data-bbox="461 1541 824 1608">E-mail (where permitted):</td><td data-bbox="824 1541 1360 1608">cgm.nre@apdcl.org</td></tr> <tr> <td data-bbox="461 1608 824 1675">Consultant:</td><td data-bbox="824 1608 1360 1675"></td></tr> <tr> <td data-bbox="461 1675 824 1743">Attention:</td><td data-bbox="824 1675 1360 1743"></td></tr> <tr> <td data-bbox="461 1743 824 1810">Facsimile:</td><td data-bbox="824 1743 1360 1810"></td></tr> <tr> <td data-bbox="461 1810 824 1877">E-mail (where permitted):</td><td data-bbox="824 1810 1360 1877"></td></tr> </table>	Client:	Assam Power Distribution Company Ltd	Attention:	Chief General Manager (NRE), APDCL; 2nd Floor, Annex Building, Bijulee Bhawan, Paltan Bazar, Guwahati-01	E-mail (where permitted):	cgm.nre@apdcl.org	Consultant:		Attention:		Facsimile:		E-mail (where permitted):	
Client:	Assam Power Distribution Company Ltd														
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E-mail (where permitted):	cgm.nre@apdcl.org														
Consultant:															
Attention:															
Facsimile:															
E-mail (where permitted):															

8.1	<u>Lead Member of Joint Venture</u> <i>[Note: If the Consultant consists only of one entity, state "N/A";</i> OR <i>If the Consultant is a Joint Venture consisting of more than one entity, the name of the JV member whose address is specified in Clause SCC6.1 should be inserted here.]</i> The Lead Member on behalf of the JV is _____ _____ <i>[insert name of the member]</i>
9.1	<u>Authorized Representatives</u> The Authorized Representatives are: For the Client:, Chief General Manager (NRE), APDCL; 2nd Floor, Annex Building, Bijulee Bhawan, Paltan Bazar, Guwahati-01, email: cgm.nre@apdcl.org For the Consultant: <i>[insert name, title]</i> _____
11.1	<u>Conditions of Effectiveness of Contract</u> (i) Approval of the Contract by the Bank (ADB), (ii) Client's approval of the consultant's proposal for appointment of key staff (iii) receipt of an advance payment guarantee <i>by the Client</i> followed by receipt of an advance payment <i>by the Consultant</i>
12.1	Termination of Contract for Failure to Become Effective: The time period shall be three (3) months from the date the Contract was signed
13.1	Commencement of Services: The number of days shall be ten (10) days after the effective date of Contract.

	Confirmation of Key Experts' availability to start the Assignment shall be submitted to the Client in writing as a written statement signed by each Key Expert.
14.1	<u>Contract Period</u> Expiration of Contract: The time period shall be 60 months after the effective date of Contract
21.1.3	<u>Conflict</u> The Client may disqualify the Consultant from providing goods, works or non-consulting services due to a conflict of a nature described in Clause GCC 21.1.3
23.1	<u>Consultant's Liability</u> The following limitation of the Consultant's Liability towards the Client can be subject to the Contract's negotiations: "Limitation of the Consultant's Liability towards the Client: (a) Except in the case of gross negligence or willful misconduct on the part of the Consultant or on the part of any person or a firm acting on behalf of the Consultant in carrying out the Services, the Consultant, with respect to damage caused by the Consultant to the Client, shall not be liable to the Client: (i) for any indirect or consequential loss or damage; and (ii) for any direct loss or damage that exceeds one times the total value of the Contract; (b) This limitation of liability shall not (i) affect the Consultant's liability, if any, for damage to Third Parties caused by the Consultant or any person or firm acting on behalf of the Consultant in carrying out the Services; (ii) be construed as providing the Consultant with any limitation or exclusion from liability which is prohibited by the <i>[insert "Applicable Law," if it is the law of the Client's country, or insert "applicable law in the Client's country," if the Applicable Law stated in Clause SCC 1.1(c) is different from the law of</i>

	<i>the Client's country].</i> <i>Notes to the Client and the Consultant: Any suggestions made by the Consultant in the Proposal to introduce exclusions or limitations of the Consultant's liability under the Contract should be carefully scrutinized by the Client and discussed with the Bank <u>prior to accepting any changes</u> to what was included in the issued RFP. In this regard, the Parties should be aware of the Bank's policy on this matter which is as follows:</i> <i>To be acceptable to the Bank, any limitation of the Consultant's liability should at the very least be reasonably related to (a) the damage the Consultant might potentially cause to the Client and (b) the Consultant's ability to pay compensation using its own assets and reasonably obtainable insurance coverage. The Consultant's liability shall not be limited to less than a multiplier of the total payments to the Consultant under the Contract for remuneration and reimbursable expenses. <u>A statement to the effect that the Consultant is liable only for the re-performance of faulty Services is not acceptable to the Bank.</u> Also, the Consultant's liability should never be limited to loss or damage caused by the Consultant's gross negligence or willful misconduct.</i> <i>The Bank does not accept a provision to the effect that the Client shall indemnify and hold the Consultant harmless against Third Party claims, except, of course, if a claim is based on loss or damage caused by a default or wrongful act of the Client to the extent permissible by the law applicable in the Client's country.]</i>
24.1	<u>Insurance Coverage</u> The insurance coverage against the risks shall be as follows: a) Professional liability insurance, with a minimum coverage of 100% of the contract value b) Third Party motor vehicle liability insurance in respect of motor vehicles operated in the Client's country by the Consultant or its Experts or Sub-Consultants, with a minimum coverage "<i>in accordance with the applicable law in the Client's country</i>" c) Third Party liability insurance, with a minimum coverage "<i>in accordance with the applicable law in the Client's country</i>" d) Employer's liability and workers' compensation insurance of the Experts and Sub-Consultants in accordance with the relevant provisions of the applicable law in the Client's country, as well as, with respect to such Experts, any such life, health, accident, travel or other insurance as may be appropriate; and e) Insurance against loss of or damage to (i) equipment purchased

	in whole or in part with funds provided under this Contract, (ii) the Consultant's property used in the performance of the Services, and (iii) any documents prepared by the Consultant in the performance of the Services.
27.1	<u>Exceptions to Proprietary Rights</u> <i>Not Applicable</i>
27.2	<u>Future Use of Documents</u> Neither Party shall use these <i>documents and software</i> for purposes unrelated to this Contract without the prior written approval of the other Party.
32. Removal of Experts or Sub-Consultants	Insert the following as Sub-Paragraph 32.3 and renumber original Sub- Paragraph 32.3 as Sub-Paragraph 32.4: "Key Experts, Non-Key Experts or Sub consultants who are found to be in breach of the Consultant's Code of Conduct (ESHS) (e.g. spreading communicable diseases, sexual harassment, gender based violence, illicit activity or crime) shall be replaced by the Consultant, or at the Client's written request."
35.1 (a) through (f)	<i>Client shall not have the obligation to the following points of GCC 35.1:</i> (b) Assist the Consultant with promptly obtaining, for the Experts and, if appropriate, their eligible dependents, all necessary entry and exit visas, residence permits, exchange permits and any other documents required for their stay in the Client's country while carrying out the Services under the Contract. (c) Facilitate prompt clearance through customs of any property required for the Services and of the personal effects of the Experts and their eligible dependents. (e) Assist the Consultant and the Experts and any Sub-consultants employed by the Consultant for the Services with obtaining exemption from any requirement to register or obtain any permit to practice their profession or to establish themselves either individually or as a corporate entity in the Client's country according to the applicable law in the Client's country. (f) Assist the Consultant, any Sub-consultants and the Experts of either of them with obtaining the privilege, pursuant to the

	Applicable Law in the Client's country, of bringing into the Client's country reasonable amounts of foreign currency for the purposes of the Services or for the personal use of the Experts and of withdrawing any such amounts as may be earned therein by the Experts in the execution of the Services.
41.2	The ceiling in foreign currency or currencies is: _[insert amount and currency] exclusive of local indirect taxes. The ceiling in local currency is: _____ [insert amount and currency] [indicate: inclusive or exclusive] of local indirect taxes. Any indirect local taxes chargeable in respect of this Contract for the Services provided by the Consultant shall be paid by the Consultant.
42.3	<u>Price Adjustments</u> Price adjustment on the remuneration <i>applies</i> Payments for remuneration made in foreign and/or local currency shall be adjusted as follows: (1) Remuneration paid in foreign currency on the basis of the rates set forth in Appendix C shall be adjusted every 12 months (and, the first time, with effect for the remuneration earned in the 13th calendar month after the date of the Contract Effectiveness date) by applying the following formula: $R_f = R_{fo} \times \frac{I_f}{I_{fo}} \quad \{ \text{or} \quad R_f = R_{fo} \times \left[0.1 + 0.9 \frac{I_f}{I_{fo}} \right] \}$ where R_f is the adjusted remuneration; R_{fo} is the remuneration payable on the basis of the remuneration rates (Appendix C) in foreign currency; I_f is the official index for salaries in the country of the foreign currency for the first month for which the adjustment is supposed to have effect; and I_{fo} is the official index for salaries in the country of the foreign currency for the month of the date of the Contract. The Consultant shall state here the name, source institution, and any necessary identifying characteristics of the official index for

	salaries corresponding to I_t and I_{t_0} in the adjustment formula for remuneration paid in foreign currency: <i>[Insert the name, source institution, and necessary identifying characteristics of the index for foreign currency, e.g. "Consumer Price Index for all Urban Consumers (CPI-U), not seasonally adjusted; U.S. Department of Labor, Bureau of Labor Statistics"]</i> (2) Remuneration paid in local currency pursuant to the rates set forth in Appendix D shall be adjusted every <i>[insert number]</i> months (and, for the first time, with effect for the remuneration earned in the <i>[insert number]</i> the calendar month after the date of the Contract) by applying the following formula: $R_t = R_{t_0} \times \frac{I_t}{I_{t_0}}$ where R_t is the adjusted remuneration; R_{t_0} is the remuneration payable on the basis of the remuneration rates (Appendix D) in local currency; I_t is the official index for salaries in the Client's country for the first month for which the adjustment is to have effect; and I_{t_0} is the official index for salaries in the Client's country for the month of the date of the Contract. The Client shall state here the name, source institution, and any necessary identifying characteristics of the official index for salaries corresponding to I_t and I_{t_0} in the adjustment formula for remuneration paid in local currency: <i>[Insert the name, source institution, and necessary identifying characteristics of the index for foreign currency]</i> (3) Any part of the remuneration that is paid in a currency different from the currency of the official index for salaries used in the adjustment formula, shall be adjusted by a correction factor X_0/X. X_0 is the number of units of currency of the country of the official index, equivalent to one unit of the currency of payment on the date of the contract. X is the number of units of currency of the country of the official index, equivalent to one unit of the currency of payment on the first day of the first month for which the adjustment is supposed to have effect.
42.4	<u>Other Items to Be Covered As Remuneration</u>

	<i>"Not applicable"</i>
43.1 and 43.2	<u>Taxes and Duties</u> "the Client shall pay on behalf of the Consultant, the Sub-consultants and the Experts," OR "the Client shall reimburse the Consultant, the Sub-consultants and the Experts"] any indirect taxes, duties, fees, levies and other impositions imposed, under the applicable law in the Client's country, on the Consultant, the Sub-consultants and the Experts in respect of: (a) any payments whatsoever made to the Consultant, Sub-consultants and the Experts (other than nationals or permanent residents of the Client's country), in connection with the carrying out of the Services; (b) any equipment, materials and supplies brought into the Client's country by the Consultant or Sub-consultants for the purpose of carrying out the Services and which, after having been brought into such territories, will be subsequently withdrawn by them; (c) any equipment imported for the purpose of carrying out the Services and paid for out of funds provided by the Client and which is treated as property of the Client; (d) any property brought into the Client's country by the Consultant, any Sub-consultants or the Experts (other than nationals or permanent residents of the Client's country), or the eligible dependents of such experts for their personal use and which will subsequently be withdrawn by them upon their respective departure from the Client's country, provided that: i) the Consultant, Sub-consultants and experts shall follow the usual customs procedures of the Client's country in importing property into the Client's country; and ii) if the Consultant, Sub-consultants or Experts do not withdraw but dispose of any property in the Client's country upon which customs duties and taxes have been exempted, the Consultant, Sub-consultants or Experts, as the case may be, (a) shall bear such customs duties and taxes in conformity with the regulations of the Client's country, or (b) shall reimburse them to the Client if they were paid by the Client at the time the property in question was brought into the Client's country.
44.1	<u>Currency of Payments</u>

	The currency [currencies] of payment shall be the following: <i>[list currency (ies) which should be the same as in the Financial Proposal, Form FIN-2]</i>
45.1(a)	<u>Advance Payments</u> The following provisions shall apply to the advance payment and the advance bank payment guarantee: (1) An advance payment @ 10% of the contract amount shall be made within 45 days from the Contract signing upon receipt of advance bank payment guarantee of equivalent amount in favor of Assam Power Distribution Company Limited. The advance payment will be set off by the Client in equal installments against the statements for the first 12 months of the Services until the advance payment has been fully set off. (2) The advance bank payment guarantee shall be in the amount and in the currency of the currency(ies) of the advance payment.
45.1(b)	The Consultant shall submit to the Client itemized statements at time intervals of “every quarter”.
45.1(e)	<u>Consultant’s Accounts</u> The accounts are: for foreign currency: <i>[insert account]</i>. for local currency: <i>[insert account]</i>.
46.1	<u>Interest Rate on Delayed Payments</u> The interest rate is: SBI 6 Month MCLR
49.	<u>Dispute Resolution</u> <i>[Note: In contracts with foreign consultants, the Bank requires that the international commercial arbitration in a neutral venue is used.]</i> Disputes shall be settled by arbitration in accordance with the

	following provisions: 1. Selection of Arbitrators. Each dispute submitted by a Party to arbitration shall be heard by a sole arbitrator or an arbitration panel composed of three (3) arbitrators, in accordance with the following provisions: (a) Where the Parties agree that the dispute concerns a technical matter, they may agree to appoint a sole arbitrator or, failing agreement on the identity of such sole arbitrator within thirty (30) days after receipt by the other Party of the proposal of a name for such an appointment by the Party who initiated the proceedings, either Party may apply to <i>[name an appropriate international professional body, e.g., The Fédération Internationale Des Ingénieurs-Conseils (FIDIC) of Lausanne, Switzerland</i> for a list of not fewer than five (5) nominees and, on receipt of the list, the Parties shall alternately strike names there from, and the last remaining nominee on the list shall be the sole arbitrator for the matter in dispute. If the last remaining nominee has not been determined in this manner within sixty (60) days of the date of the list, The Fédération Internationale Des Ingénieurs-Conseils (FIDIC) of Lausanne, Switzerland shall appoint, upon the request of either Party and from such list or otherwise, a sole arbitrator for the matter in dispute. (b) Where the Parties do not agree that the dispute concerns a technical matter, the Client and the Consultant shall each appoint one (1) arbitrator, and these two arbitrators shall jointly appoint a third arbitrator, who shall chair the arbitration panel. If the arbitrators named by the Parties do not succeed in appointing a third arbitrator within thirty (30) days after the second arbitrator named by the Parties has been appointed, the third arbitrator shall, at the request of either Party, be appointed by The Secretary General of the Permanent Court of Arbitration, The Hague (c) If, in a dispute subject to paragraph (b) above, one Party fails to appoint its arbitrator within thirty (30) days after the other Party has appointed its arbitrator, the Party that has named an arbitrator may apply to the Secretary General of the Permanent Court of Arbitration, The Hague to appoint a sole arbitrator for the matter in dispute, and the arbitrator appointed pursuant to such application shall be the sole arbitrator for that dispute. 2. Rules of Procedure. Except as otherwise stated herein, arbitration proceedings shall be conducted in accordance with the rules of procedure for arbitration of the United Nations Commission on International Trade Law (UNCITRAL) as in force
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	on the date of this Contract. 3. Substitute Arbitrators. If, for any reason, an arbitrator is unable to perform his or her function, a substitute shall be appointed in the same manner as the original arbitrator. 4. Nationality and Qualifications of Arbitrators. The sole arbitrator or the third arbitrator appointed pursuant to paragraphs 1(a) to 1(c) above shall be an internationally recognized legal or technical expert with extensive experience in relation to the matter in dispute and shall not be a national of the Consultant's home country or of the home country of any of their members or Parties or of the Government's country. For the purposes of this Clause, "home country" means any of: (a) the country of incorporation of the Consultant or of any of their members or Parties; or (b) the country in which the Consultant's [or any of their members' or Parties'] principal place of business is located; or (c) the country of nationality of a majority of the Consultant's [or of any members' or Parties'] shareholders; or (d) the country of nationality of the Sub-Consultants concerned, where the dispute involves a subcontract. 5. Miscellaneous. In any arbitration proceeding hereunder: (a) proceedings shall, unless otherwise agreed by the Parties, be held in <i>[select a country which is neither the Client's country nor the Consultant's country]</i>; (b) the <i>[insert type of language]</i> language shall be the official language for all purposes; and (c) the decision of the sole arbitrator or of a majority of the arbitrators (or of the third arbitrator if there is no such majority) shall be final and binding and shall be enforceable in any court of competent jurisdiction, and the Parties hereby waive any objections to or claims of immunity in respect of such enforcement.
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IV. Appendices

APPENDIX A: TERMS OF REFERENCE

[Note: This Appendix shall include the final Terms of Reference (TORs) worked out by the Client and the Consultant during the negotiations; dates for completion of various tasks; location of performance for different tasks; detailed reporting requirements; Client's input, including counterpart personnel assigned by the Client to work on the Consultant's team; and specific tasks that require prior approval by the Client.

Insert the text based on the Section 7 (Terms of Reference) of the ITC in the RFP and modified based on the Forms TECH-1 to TECH-5 in the Consultant's Proposal. Highlight the changes to Section 7 of the RFP]

If the Services consist of or include the supervision of civil works, the following action that require prior approval of the Client shall be added to the "Reporting Requirements" section of the TORs: Taking any action under a civil works contract designating the Consultant as "Engineer," for which action, pursuant to such civil works contract, the written approval of the Client as "Employer" is required.]

APPENDIX B: KEY EXPERTS

[Insert a table based on Form TECH-6 of the Consultant's Technical Proposal and finalized at the Contract's negotiations. Attach the Curriculum Vitae (updated and signed by the respective Key Experts) demonstrating the qualifications of Key Experts.]

[Specify Hours of Work for Key Experts: List here the hours of work for Key Experts; travel time to and from the Client's country; entitlement, if any, to leave pay; public holidays in the Client's country that may affect Consultant's work; etc. Make sure there is consistency with Form TECH-6. In particular: there are twenty-two (22) working (billable) days in 1 month and no less than eight (8) working (billable) hours in 1 working (billable) day.]

APPENDIX C: REMUNERATION COST ESTIMATES

Monthly rates for the Experts:

[Insert the table with the remuneration rates. The table shall be based on [Form FIN-3] of the Consultant's Proposal and reflect any changes agreed upon at the Contract negotiations, if any. The footnote shall list the changes made to [Form FIN-3] at the negotiations or state that none has been made.]

Model Form I
Breakdown of Agreed Fixed Rates in Consultant's Contract

We hereby confirm that we have agreed to pay to the Experts listed, who will be involved in performing the Services, the basic fees and away from the home office allowances (if applicable) indicated below:

(Expressed in [insert name of currency])*

Experts		1	2	3	4	5	6	7	8
Name	Position	Basic Remuneration rate per Working Month/Day/Year	Social Charges ¹	Overhead ¹	Subtotal	Profit ²	Away from Home Office Allowance	Agreed Fixed Rate per Working Month/Day/Hour	Agreed Fixed Rate per Working Month/Day/Hour ¹
Home Office									
Work in the Client's Country									

¹ Expressed as percentage of 1

² Expressed as percentage of 4

* If more than one currency, add a table

Signature _____

Date _____

Name and Title: _____

APPENDIX D: OTHER EXPENSES AND PROVISIONAL SUMS

1. *Insert the table with the Other Expenses and Provisional Sums. The table shall be based on [Form FIN-4] of the Consultant's Proposal and reflect any changes agreed upon at the Contract negotiations, if any. The footnote shall list the changes made to [Form FIN-4] at the negotiations or state that none has been made.*

2. All other expenses and provisional sums shall be reimbursed at actual cost, unless otherwise explicitly provided in this Appendix, and no reimbursement shall be made in excess of the Contract amount.

APPENDIX E: FORM OF ADVANCE PAYMENTS GUARANTEE

[See Clause GCC 45.1 (a) and SCC 45.1 (a)]

Guarantor Letterhead or SWIFT Identifier Code

Bank Guarantee for Advance Payment

Guarantor: _____ *[insert commercial Bank's Name, and Address of Issuing Branch or Office]*

Beneficiary: _____ *[insert name and address of Client]*

Date: _____ *[insert date]*

ADVANCE PAYMENT GUARANTEE No.: _____ *[insert number]*

We have been informed that _____ *[name of Consultant or a name of the Joint Venture, same as appears on the signed Contract]* (hereinafter called "the Consultant") has entered into Contract No. _____ *[reference number of the contract]* dated _____ *[insert date]* with the Beneficiary, for the provision of _____ *[brief description of Services]* (hereinafter called "the Contract").

Furthermore, we understand that, according to the conditions of the Contract, an advance payment in the sum of _____ *[insert amount in figures]* (_____) *[insert amount in words]* is to be made against an advance payment guarantee.

At the request of the Consultant, we, as Guarantor, hereby irrevocably undertake to pay the Beneficiary any sum or sums not exceeding in total an amount of _____ *[insert amount in figures]* (_____) *[insert amount in words]*¹ upon our receipt of the Beneficiary's complying demand supported by the Beneficiary's written statement, whether in the demand itself or in a separate signed document accompanying or identifying the demand, stating that the Consultant is in breach of their obligation under the Contract because the Consultant has failed to repay the advance payment in accordance with the Contract conditions, specifying the amount that the Consultant has failed to repay.

It is a condition for any claim and payment under this guarantee to be made that the advance payment referred to here must have been received by the Consultant on their account number _____ at _____ *[insert name and address of bank]*.

¹ The Guarantor shall insert an amount representing the amount of the advance payment and denominated either in the currency(ies) of the advance payment as specified in the Contract, or in a freely convertible currency acceptable to the Client.

The maximum amount of this guarantee shall be progressively reduced by the amount of the advance payment repaid by the Consultant as indicated in certified statements or invoices marked as "paid" by the Client that shall be presented to us. This guarantee shall expire, at the latest, upon our receipt of the payment certificate or paid invoice indicating that the Consultant has made full repayment of the amount of the advance payment, or on the ___ day of _____ [month], _____ [year],² whichever is earlier. Consequently, we must receive any demand for payment under this guarantee at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees (URDG) 2010 revision, ICC Publication No. 758.

[Signature(s)]

Note: All italicized text is for indicative purposes only to assist in preparing this form and shall be deleted from the final product.

² Insert the expected expiration date. In the event of an extension of the time for completion of the Contract, the Client would need to request an extension of this guarantee from the Guarantor. Such request must be in writing and must be made prior to the expiration date established in the guarantee. In preparing this guarantee, the Client might consider adding the following text to the form, at the end of the penultimate paragraph: "The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed [six months][one year], in response to the Client's written request for such extension, and this request shall be presented to the Guarantor before the expiry of the guarantee."

(OPTIONAL) APPENDIX F: SUMMARY OF TOTAL CONTRACT

Insert the contract summary as a table with the total costs for remuneration, reimbursable expenses, provisional sums, contingency and taxes. The table shall be based on [Form FIN-2] of the Consultant's Proposal and reflect any changes agreed upon at the Contract negotiations, if any.